Narrative of Services in the Liberation of Chili, Peru and Brazil,

Earl of Thomas Cochrane Dundonald

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NARRATIVE OF SERVICES IN THE LIBERATION OF CHILI, PERU, AND BRAZIL,

FROM SPANISH AND PORTUGUESE DOMINATION

by

THOMAS, EARL OF DUNDONALD, G.C.B.
Admiral of the Red; Rear-Admiral of the Fleet, etc. etc.

VOL. II

MDCCCLIX

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CHAPTER I.

BRAZILIAN AND PORTUGUESE FACTIONS—DON PEDEO ORDERED TO QUIT BRAZIL—APPOINTED "PERPETUAL PROTECTOR"—PROCLAIMED EMPEROR OF BRAZIL—EFFORTS TO OBTAIN FOREIGN OFFICERS AND SEAMEN—THE NAVAL COMMAND OFFERED TO ME—ACCEPTATION THEREOF—ARRIVAL AT RIO DE JANEIRO—VISIT OF INSPECTION TO THE SQUADRON—CONDITION OF THE VESSELS—INFERIORITY OF SEAMEN—IMPERIAL AFFABILITY—ATTEMPT TO EVADE THE TERMS OFFERED ME—THIS FAILING, TO REDUCE THE VALUE OF MY PAY—PRETENDED COMMISSION CONFERRED—AND REFUSED—THE POINT ARGUED—I DECLINE THE COMMAND—THE PRIME MINISTER GIVES IN—EXPLANATORY FORTARIA—FORMAL COMMISSION—ORDERS TO BLOCKADE BAHIA—PORTUGUESE FACTION—AVERSE TO ME FROM THE OUTSET.

Although these memoirs relate to personal services in Brazil, it is nevertheless essential, in order to their comprehension, briefly to recapitulate a few events which more immediately led to my connection with the cause of independence in that country.

The expulsion of the Portuguese Royal Family from Lisbon, in consequence of the occupation of Portugal by the armies of the French Republic, was followed by the accession of Don John VI. to the throne of Portugal whilst resident in Rio de Janeiro.

Twelve months previous to my arrival in Brazil, His Majesty returned to Portugal, leaving his son and heir-apparent, Don Pedro, regent of the Portuguese possessions in South America, which had been for some time in a state of disaffection, arising from a growing desire throughout the various provinces for a distinct nationality. Hence two opposing interests had

arisen,—a Brazilian party, which had for its object national independence; and a Portuguese party, whose aim was to prevent separation from the mother country—or, if this could not be accomplished, so to paralyse the efforts of the Brazilians, that in case of revolt it might not be difficult for Portugal to keep in subjection, at least the Northern portion of her South American Colonies. It will be necessary, in the course of the narrative, to bear these party distinctions clearly in mind.

As the Regent, Don Pedro, was supposed to evince a leaning to the Brazilian party, he gave proportionate offence to the Portuguese faction, which—though inferior in number, was, from its wealth and position, superior in influence; hence the Regent found himself involved in disputes with the latter, which in June 1821 compelled him to submit to some humiliations.

Shortly previous to this, the Cortes at Lisbon—aware of what was going on in Brazil, and disregarding the temperate views of the King—issued a declaration inviting the Brazilian municipalities to repudiate the Regent's authority at Rio de Janeiro, and to adhere to the immediate administration of the Cortes alone—thus indicating a course to be pursued by the Portuguese faction in Brazil. The result was—as had been anticipated—disunion amongst the people, consequent on the formation of petty provincial governments; each refusing to pay revenue to the central Government at Rio de Janeiro, for the alleged reason that the Regent was only waiting an opportunity to invest himself with absolute power. This opinion was eagerly adopted by the commercial class—consisting almost exclusively of native Portuguese—in the hope that the Cortes would reinvest them with their ancient trade privileges and monopolies, to the exclusion of foreigners, whom they considered as interlopers—the English especially, who, protected by a treaty of commerce, were fast undermining the former monopolists. Amidst these difficulties Don Pedro, though

nominally Regent of Brazil, found himself, in reality, little more than Governor of Rio de Janeiro.

In July 1821, the Lisbon Cortes passed a decree, that thenceforth the Brazilian and Portuguese armies should form one body; the object being to ship the Brazilian troops to Portugal, and to send Portuguese troops to Brazil, thereby ensuring its subjection. The Regent was, moreover, ordered to return to Portugal.

These rash steps greatly irritated the native Brazilians, who saw in them a subversion of all their hopes of nationality. With scarcely less rashness, they issued proclamations declaring Brazil independent, with Don Pedro as Emperor; but he repudiated the act, and prepared to quit Brazil in obedience to orders.

The approaching departure of the Regent caused a general ferment, when a popular leader arose in the person of José Bonifacio de Andrada e Silva, vice-president of the provisional Junta at San Paulo. Summoning his colleagues at midnight, they signed an address to the Regent—to the effect that his departure would be the signal for a declaration of independence—daring the Cortes at Lisbon to promulgate laws for the dismemberment of Brazil into insignificant provinces, possessing no common centre of union; above all, daring them to dispossess Don Pedro of the authority of Regent conferred by his august father. This address was conveyed to the Prince by Bonifacio himself, and was shortly afterwards followed by others of a similar nature from the Southern provinces, and from the municipality of Rio de Janeiro—all begging him to remain and avert the consequences of the late decrees of the Cortes. On more deliberate reflection Don Pedro consented, and was shortly afterwards invested with the title of "Perpetual Protector and Defender of Brazil."

Meanwhile the Cortes, confident in their own power, were enforcing their obnoxious decrees by the despatch of ships of war and troops to the Northern provinces. As the intention of this step was unmistakeable, His Royal Highness the Protector promptly issued a manifesto, declaring the wish of Brazil to maintain an amicable union with Portugal, but at the same time calling on the Brazilians to secure their independence by force, if necessary. In furtherance of this determination, an attack was made by the Brazilian troops upon General Madeira, the Portuguese commandant at Bahia, but from want of proper military organization, it proved unsuccessful.

Despatches now arrived from Portugal, which cut off every hope of reconciliation, and on the 12th of October, Don Pedro was induced to accept the title of "Constitutional Emperor of Brazil," with Bonifacio de Andrada as his Minister of the Interior, of Justice, and of Foreign Affairs.

The Southern provinces gave in their adhesion to the Emperor, but all the Northern provinces—including Bahia, Maranham, and Parà—were still held by Portuguese troops; a numerous and well appointed squadron commanding the seaboard, and effectually preventing the despatch of Brazilian forces to those localities by water; whilst by land there were neither roads, nor other facilities of communication with the Northern patriots, who were thus isolated from effectual aid, could such have been rendered from Rio de Janeiro.

His Imperial Majesty saw that, without a fleet, the dismemberment of the Empire—as regarded the Northern provinces—was inevitable; and the energy of his minister Bonifacio in preparing a squadron, was as praiseworthy as had been the Emperor's sagacity in determining upon its creation. A voluntary subscription was enthusiastically entered into; artisans flocked into the dockyard; the only ship of the line in the harbour required

to be nearly rebuilt; but to man that and other available vessels with native seamen was impossible—the policy of the mother country having been to carry on even the coasting trade exclusively by Portuguese, who could not now be relied on by Brazil, in the approaching contest with their own countrymen.

Orders were consequently sent to the Brazilian *chargé d'affaires* in London, to engage officers and seamen there; and to stimulate these, a decree was, on the 11th of December, 1822, issued by His Imperial Majesty, to sequestrate Portuguese property throughout the Empire, and also another, *that all prizes taken in the war should become the property of the captors*, which decrees must be borne in mind.

His Imperial Majesty, having ascertained that the War of Independence in the Pacific had been brought to a successful conclusion by the squadron under my command, ordered his minister, Bonifacio, to communicate with me, through the Brazilian Consul at Buenos Ayres; judging that, from the termination of hostilities in the Pacific, I might be at liberty to organize a naval force in Brazil, which—if properly conducted—might successfully cope with the Portuguese fleet protecting the Northern harbours of the Empire.

Accordingly, whilst residing on my estate at Quintera, in Chili, I received from Antonio Manuel Correa, the Brazilian Consul at Buenos Ayres, a letter on the part of His Imperial Majesty, inviting me to accept service under the Brazilian flag, guaranteeing moreover rank and position in no way inferior to that which I then held under the Republic of Chili; the Consul exhorting me, in addition, "to throw myself upon the munificence of the Emperor, and the undoubted probity of His Majesty's Government, which would do me justice." The following is one of the letters of invitation:—

Le Conseiller Agent du Brésil, près le Gouvernement de Buenos Ayres à l'Amiral Lord Cochrane, Commandant-en-Chef les forces navales de la République du Chili.

MILORD,

Le Brésil, puissance du premier ordre devint un nouvel empire, une nation indépendente sous le légitime héritier de la monarchie, Pierre le Grand, son auguste defenseur.

C'est par son ordre—c'est de sa part, et en vertu des dépêches ministériales, que je viens de reçevoir de Monseigneur Joseph Bonifacio de Andrada e Silva, Ministre de l'Intérieur et des Relations Extérieures du Brésil, en date du 13 Septembre dernier—que j'ai l'honneur de vous adresser cette note; en laquelle votre Grace est invitée, pour—et de part le Gouvernement du Brésil—à accepter le service de la nation Brésilienne; chez qui je suis dûment autorisé à vous assurer le rang et le grade nullement inférieur à celui que vous tenez de la République.

Abandonnez vous, Milord, à la reconnaisance Brésilienne; à la munificence du Prince; à la probité sans tache de l'actuel Gouvernement; on vous fera justice; on ne rabaissera d'un seul point la haute considération—Rang—grade—caractère—et avantages qui vous sont dûs.

(Signé) ANTONIO MANUEL CORREA DA CAMARA, Consul de l'Empire du
Brésil, à Buenos Ayres, 4 Novembre, 1822.

Annoyed by the ingratitude with which my services were requited in Chili, and disliking the inaction consequent on the capture of Valdivia,

followed by the annihilation of the Spanish naval force at Callao, and elsewhere in the Pacific—whereby internal peace had been obtained for Chili, and independence for Peru—I felt gratified by the further terms of invitation, contained in a second letter—"Venez, milord, l'honneur vous invite—la gloire vous appelle. Venez—donner à nos armés navales cet ordre merveilleux et discipline incomparable de puissante Albion" —and on mature consideration returned the following reply:—

Valparaiso, Nov. 29, 1832.

Sir,

The war in the Pacific having been happily terminated by the total destruction of the Spanish naval force, I am, of course, free for the crusade of liberty in any other quarter of the globe.

I confess, however, that I had not hitherto directed my attention to the Brazils; considering that the struggle for the liberties of Greece—the most oppressed of modern states—afforded the fairest opportunity for enterprise and exertion.

I have to-day tendered my ultimate resignation to the Government of Chili, and am not at this moment aware that any material delay will be necessary, previous to my setting off, by way of Cape Horn, for Rio de Janeiro, calling at Buenos Ayres, where I hope to have the pleasure of meeting you, and where we may talk further on this subject; it being, in the meantime, understood that I hold myself free to decline—as well as entitled to accept—the offer which has, through you, been made to me by His Imperial Majesty. I only mention this from a desire to preserve a consistence of character, should the Government (which I by no means anticipate) differ so widely in its nature from those which I

have been in the habit of supporting, as to render the proposed situation repugnant to my principles—and so justly expose me to suspicion, and render me unworthy the confidence of His Majesty and the nation.

(Signed) COCHRANE.

To Don ANTONIO MANUEL COEREA DA CAMARA, His Brazilian Majesty's
Consul at Buenos Ayres.

Having obtained the unqualified consent of the Chilian Government—there being now no enemy in the Pacific—- I chartered a vessel for my own conveyance, and that of several valuable officers and seamen who, preferring to serve under my command, desired to accompany me. Knowing that the Portuguese were making great efforts to re-establish their authority in Brazil, no time was lost in quitting Chili.

We reached Rio de Janeiro on the 13th of March, 1822, barely six months after the declaration of Independence. Despatching a letter to the Prime Minister Bonifacio de Andrada—reporting my arrival in conformity with the invitation which His Imperial Majesty had caused to be transmitted to me through his Consul-General at Buenos Ayres—I was honoured by the Imperial command to attend His Majesty at the house of his Minister, where a complimentary reception awaited me. The Emperor assured me that, so far as the ships themselves were concerned, the squadron was nearly ready for sea; but that good officers and seamen were wanting; adding, that, if I thought proper to take the command, he would give the requisite directions to his Minister of Marine.

On the following day, the Prime Minister—after a profusion of compliments on my professional reputation, and an entire concurrence with

the invitation forwarded to me by the Consul at Buenos Ayres—which invitation he stated to have arisen from his own influence with the Emperor—desired me to communicate personally with him, upon all matters of importance, the Minister of Marine being merely appointed to transact subordinate business. As nothing more positive was said in relation to my appointment, it struck me that this also might be included amongst the subordinate duties of the Minister of Marine, to whose house I repaired; but he could say nothing on the subject, as nothing specific had been laid before him. Being desirous to come to a proper understanding, I wrote to the Prime Minister, that the officers who had accompanied me from Chili would expect the same rank, pay, and emoluments as they had there enjoyed; that, as regarded myself, I was prepared to accept the terms offered by His Imperial Majesty, through the Consul at Buenos Ayres, viz. the same position, pay, and emoluments as had been accorded to me by the Chilian Government; and that although I felt myself entitled to the customary remuneration in all well-regulated states for extraordinary, as well as ordinary, services, yet I was more anxious to learn the footing on which the naval service was to be put, than the nature of any stipulations regarding myself.

On the following day His Imperial Majesty invited me at an early hour to the palace, in order to accompany him on a visit to the ships of war, with some of which I was much pleased, as demonstrative of the exertions which must have been made within a short time to get them into such creditable condition. Great care had evidently been bestowed upon the *Pedro Primiero*, rated as a 74—though in the English service she would have been termed a 64. She was evidently a good sailer, and was ready for sea, with four months provisions on board, which scarcely half filled her hold, such was her capacity for stowage; I had therefore reason to be satisfied with my intended flagship.

Another showy vessel was the *Maria da Gloria*—a North American clipper; a class of vessels in those days little calculated to do substantial service, being built of unseasoned wood, and badly fastened. Though mounting 32 guns, she was a ship of little force, having only 24-pounder carronades, mixed with short 18-pounder guns. As a redeeming feature, she was commanded by a Frenchman, Captain Beaurepaire, who had contrived to rally round him some of his own countrymen, mingled with native Brazilians—in which he displayed considerable tact to free himself from the unpromising groups elsewhere to be selected from.

The history of this vessel was not a little curious: she had been built in North America at the expense of the Chilian Government, and sent to Buenos Ayres, where an additional 40,000 dollars was demanded by her owners. Payment of this was demurred to, when, without the slightest consideration for the expense incurred by Chili in her building and equipment, her captain suddenly got under weigh, and proceeding to Rio de Janeiro, sold her to the Brazilian Government.

I was further much pleased with the *Piranga*, a noble frigate mounting long 24-pounders on the main deck. Not to enter into any further details, with regard to the ships, a brief notice must be taken of the men, who, with the exception of the crew of the *Maria da Gloria*, were of a very questionable description,—consisting of the worst class of Portuguese, with whom the Brazilian portion of the men had an evident disinclination to mingle. On inquiry, I ascertained that their pay was only eight milreas per month, whereas in the merchant service, eighteen milreas was the current rate for good seamen,—whence it naturally followed that the wooden walls of Brazil were to be manned with the refuse of the merchant service. The worst kind of saving—false economy—had evidently established itself in the Brazilian Naval Administration.

The captains complained of the difficulties they had to contend with as regarded the crews, particularly that the marines were so much gentlemen that they considered themselves degraded by cleaning their own berths, and had demanded and obtained attendants to wait on them! whilst they could only be punished for offences by their own officers! or, to use the words of one of the captains, "They were very much their own masters, and seemed inclined to be his!" It was, indeed, evident to me that neither seamen nor marines were in any state of discipline.

Not having as yet had experience of political party in the Empire, it struck me as an anomaly that Portuguese should be employed in such numbers to fight their own countrymen, though I afterwards became but too well acquainted with the cause of a proceeding at the time beyond my comprehension. In the course of our visit of inspection, the phrase "attacking the Portuguese parliamentary force," was frequently used by the Emperor, and was no less singular, as implying that the Brazilian Government did not make war against the King or country of Portugal, but merely against the Cortes; the distinction, as regarded the conduct of hostilities, being without a difference.

A curious circumstance occurred after this visit of inspection. On landing —hundreds of people of all ages and colours, crowded round to kiss His Majesty's hands—paternally extended on both sides to rows of devoted subjects, who, under no other circumstances, could have come in such familiar contact with royalty. To this ceremony the Emperor submitted with the greatest possible good humour and affability, his equanimity not even being ruined by familiarities such as I had never before seen taken with King or Emperor.

On the 17th, a visit was paid to me by the Minister of Marine, Luiz da Cunha Moreira, relative to the terms of my appointment, he being evidently

desirous that my services should be obtained at as cheap a rate as possible, notwithstanding the concurrence of the Prime Minister with the offers which had been made through the Consul-General at Buenos Ayres. The pay now offered was that of an admiral in the Portuguese service,—notoriously the worst paid in the world. On enquiring what this might be, I found it less than half what I had received in Chill! My pay there being 8000 dollars per annum, with permission from the Supreme Director to appropriate another 4000 from the Government moiety of captures made.

By way of reply, I produced a letter from the Chilian Minister of Marine, counter-signed by the Supreme Director, acknowledging the receipt of an offer subsequently made to the Chilian Government voluntarily to give up to public exigencies a portion of my pay greater than the amount now tendered—at the same time telling the Minister, that by accepting such an arrangement I should lose more annually by entering the Brazilian service than the whole sum offered to me. Without condescending to chaffer on such a subject, I added that His Imperial Majesty had invited me to Brazil on specific promises, which, if my services were required, must be strictly fulfilled; if not, it would be candid in him to say so, as it was not the amount of pay for which I contended; but the reflection, that if the first stipulations of the Brazilian Government were violated, no future confidence could be placed in its good faith. If the State were poor, I had no objection, conditionally, to surrender an equal or even a greater proportion of pay than I had tendered to the Chilian Government; but that it was no part of my intention to be placed on the footing of a Portuguese admiral, especially after the terms, which, without application on my part, had been voluntarily offered to induce me to accept service in Brazil.

The Minister of Marine seemed hurt at this, and said the State was not poor, and that the terms originally offered should be complied with, by granting me the amount I had enjoyed in Chili; a decision the more speedily

arrived at, from an intimation on my part, of referring to the Prime Minister, as requested in cases of difficulty. This the Minister of Marine begged me not to do, saying that there was no occasion for it.

He next proposed that, as my Brazilian pay was to be equivalent to that which I received in Chili, it should he numerically estimated in Spanish dollars, at the rate of 800 reis per dollar—though the Brazilian mint was then actually restamping those very dollars at the rate of 960 reis! thus, by a manoeuvre, which reflected little credit on a Minister, lessening the pay agreed on by one-fifth. To this proposition I replied that there was no objection, provided my services were also revalued—as he seemed disposed to revalue his dollar; so that, setting aside the offers which had induced me to leave Chili, I would make a new offer, which should not only compensate for the difference in dispute, but leave a considerable surplus on my side into the bargain. Alarmed at the sarcasm, and perhaps judging from my manner, that I cared little for a service in which such petty expedients formed an important element, he at once gave up the false value which he had attached to the dollar, and agreed to estimate it at 960 reis—a microscopic saving, truly!

As such a mode of proceeding had been adopted towards me, it became necessary on my part to look well after the interests of the officers who had accompanied me under the assurance that their position in Brazil should be at least equal to that which they had held on the other side of the continent. This was not more a duty than a necessity, for I saw that, unless supported by officers upon whose talent and courage reliance could be placed, it would be out of my power individually to accomplish any enterprise satisfactory to myself or beneficial to Brazil. I therefore required and obtained the same stipulations with regard to their respective rank and pay as had, in my own case, been insisted on. Of these, Admiral Grenfell is the only survivor.

On the 19th, a writing on a common sheet of letter paper was forwarded to me by the Minister of Marine, purporting to be a commission, with the rank of admiral; stating, however, inaccurately the amount of pay and table money agreed upon, by transposing the one for the other,—so that the table money was figured as pay, and the pay as table money; the effect being, that when on shore, my pay would have amounted to exactly one half of the sum stipulated! This proceeding could not be tolerated, so on the following morning I returned the commission to the Minister of Marine, who hastened to assure me that it was a mistake, which should be rectified.

This pretended commission was accompanied by the following order to take command of the squadron:—

> His Imperial Majesty—through the secretary for naval affairs—commands that the Admiral of the Imperial and National Marine—Lord Cochrane—shall take command of the squadron at anchor in this port, consisting of the ship *Pedro Primiero*; the frigates *Unao*, *Nitherohy*, and *Carolina*; the corvettes *Maria de Gloria* and *Liberal*; the brig *Guarani*, and the schooners *Real* and *Leopoldina*; hoisting his flag aboard the line-of-battle ship: the said Admiral having, at his choice, the whole—or any of the said vessels, for the purpose of the expedition about to sail.

Palace of Rio de Janeiro, March 19, 1823.

(Signed) LUIZ DA CUNHA MOREIEA.

There was, however, another point still less satisfactory. The commission conferred upon me the rank of Admiral, but of what grade was not specified. On pressing the Minister of Marine, he admitted that it was only intended to give me the rank of Junior Admiral,—there being already two Admirals in the service, whose functions would not, however, interfere with

me, as their duties were confined to the ordinary administration of a Board of Admiralty. I at once told him that for me to serve under such naval administrators was out of the question. As the Minister of Marine professed want of sufficient power to warrant him in altering the commission, I announced my intention of taking it to the Prime Minister, and respectfully restoring it into his hands. The Minister of Marine again begged me not to do so, as an alteration might be made, if I would consent to go at once on board the *Pedro Primiero*—on board which ship my flag had been directed to be hoisted at mid-day! This, it is needless to add, was declined, not only by myself, but by the officers who had accompanied me from Chili.

The Minister of Marine affected to be surprised at my want of confidence in the Government, but I explained that this was not the case. "It was quite possible that a Congress might at any time be convened which would be less liberally inclined than the present ministry, and that acceptance of an appointment so loosely made might afford the admirals placed over me, not only a control over my movements, but an easy and convenient mode of getting rid of me after I had done their work; and this without any imputation of injustice on their proceedings. The fact, indeed, of a Cortes being about to assemble, and the possibility of their interfering with me, was sufficient to fix my determination to have nothing to do with the command, under any circumstances, save those set forth in the tender made to me by command of His Majesty."

To this the Minister replied, that, "if I could be thus dismissed, the Government must likewise fall—because to suppose that a popular assembly could dictate to His Majesty in such a case was to suppose the Government no longer in existence."

I then frankly told the Minister, that "my experience as a naval officer—founded upon many years' practical observation, had taught me that, in

engagements of this nature, it was necessary to be clear and explicit in every arrangement. I did not mean to insinuate anything disrespectful to the ministers of His Brazilian Majesty, but knowing that a Senate was about to assemble, and having reason to believe that a majority of the members might differ from the ministerial views, and might—when the work was done—take a fancy to see the squadron commanded by one of their own countrymen—a step which would leave me no alternative but to quit the service—it was much better for all parties to put our mutual engagements on a firm basis."

The Minister continued to argue the point, but finding argument of no avail in altering my determination, he insinuated—though not stating as much in positive terms—that he had no prospect of any arrangement being effected regarding my rank other than that which had been tendered.

Determined to be no longer trifled with—on the following morning I waited on the Prime Minister, Bonifacio de Andrada, whom I found in high dudgeon at what he termed the unreasonableness of my demands; stating, moreover, that the Consul at Buenos Ayres had exceeded his authority by writing me a bombastic letter, though but a few days before, Andrada not only expressed his entire concurrence in its contents, but stated that the letter had been written through his influence with the Emperor!

To this I replied that, "be that as it might, it was absurd to suppose that I should have given up my position in Chili for anything less in Brazil, and that all that had been offered by the Consul, or desired by me, was simply an equivalent to my Chilian command, with adequate reimbursement of any losses I might sustain by quitting Chili so abruptly, before the settlement of my affairs with that country. This offer had been made on behalf of His Imperial Majesty, under the express authority of the Prime Minister himself, as set forth in the Consul's letters, and for this I held the Government

responsible. But, at the same time, I informed the Prime Minister that if he were disinclined to fulfil his own voluntary obligations, I would at once free him from them by declining the proffered command, and therefore begged of him to take back his commission, about which I would hold no further parley."

This step was evidently unexpected, for, lowering his tone, Bonifacio assured me that "good faith was the peculiar characteristic of the Brazilian Administration;" and to prove this, he had to announce to me that a Cabinet Council had that morning been held, at which it was resolved that the newly created honour of "First Admiral of Brazil" should be conferred upon me, with the pay and emoluments of Chili, as stipulated through the Consul at Buenos Ayres. He then asked me if I was content, to which I replied in the affirmative; pointing out, however, how much better it would have been to have taken this course at first, than to have caused such contention about a matter altogether insignificant, as compared with the work in hand. He replied that, as everything had been conceded, it was not worth while to reopen the question; but to this view I demurred, telling him that *nothing whatever had been conceded, the Government having only fulfilled its own stipulations*, which were insignificant in comparison with obtaining the services of an officer whom it believed competent to carry out alone, what otherwise would entail great expense on the State. I further assured him that it would afford me much satisfaction to prove to him of how little importance was all that which had been the subject of dispute, and that His Imperial Majesty's Government might rest assured that my utmost exertions would be used to bring the naval war to a speedy termination.

He then requested me to hoist my flag forthwith, as the Government was very anxious on this point. Accordingly, at four o'clock in the afternoon of the 21st of March, 1823, I went on board the *Pedro Primiero*, and hoisted

my flag, which was saluted with twenty-one guns from each ship of war, the salute being acknowledged from the flagship with an equal number.

Shortly afterwards, a *portaria*, dated on the same day, was sent to me, explanatory of the commission which had given rise to so much trouble, and detailing my future pay as agreed upon. By the same document I was ordered to take command of the squadron, and an intimation was given that a formal commission as "First Admiral" would forthwith be made out.

It was further acknowledged that, by accepting the Brazilian command, I had risked an admitted reward for services rendered to Chili and Peru, to the extent of more than sixty thousand dollars—and it was agreed that this amount should be repaid to me in the event of those countries not fulfilling their obligations—provided equivalent services were rendered to Brazil. For more than thirty years Chili has withheld that amount, but the Brazilian Government has never fulfilled this portion of its engagements.

Notwithstanding the praiseworthy exertions of the administration to place their navy in a creditable position as regarded the ships, the want of seamen was severely felt, and little had been done beyond shipping a number of Portuguese sailors, whose fidelity to the Imperial cause was doubtful.

In the hope of getting a more reliable class of men for the flagship, I authorised Captain Crosbie to offer from my own purse, eight dollars per man, in addition to the bounty given by the Government, and by this means procured some English and North American seamen, who, together with the men who accompanied me from Chili, sufficed to form a tolerable nucleus for a future crew; as to the rest—though far short of the ship's complement—it had never before fallen to my lot to command a crew so inefficient.

On the 26th of March, the following commission from His Imperial Majesty was presented to me:—

IMPERADOR,

> The valour, intelligence, activity, and other qualities of Lord Cochrane as an admiral, being well-known by the performance of various services in which he has been engaged, and seeing how advantageous it would be for the Empire to avail itself of the known qualities of an Officer so gifted, I deem it proper to confer on him a patent as "First Admiral of the National and Imperial Navy," with an annual salary of eleven contos and five hundred and twenty milreis, whether at sea or on shore; and further in table money, when embarked, five contos, seven hundred and twenty milreis, which is the same pay and table money as he received in Chili. To which favour, no admiral of the Imperial Navy shall claim succession, neither to the post of "First Admiral," which I have thought fit to create solely for this occasion, from the motives aforesaid, and from particular consideration of the merits of the said Lord Cochrane. The supreme Military Council will so understand, and shall execute the necessary despatches.

Given at the Palace of Rio de Janeiro, March 21st, 1823.

Second year of the Independence of the Empire.

(Signed) IMPERADOR. LUIZ DA CUNHA MOREIEA,

Secretary of State,

March 26th, 1823.

LEONARDO ANTONIO BASTO.

Thus was a right understanding established, my only object during the undignified contentions which had arisen, being—relinquishment of the

proffered command, in order to carry out my long-entertained intention of visiting Greece, then engaged in a struggle for independence—or to obtain a definite arrangement with the Brazilian Government, which should recognise the circumstances under which I had been induced to quit Chili—*confer upon me permanent rank—give me the equivalent promised with regard to pay*—and be binding on both parties.

On the 29th of March, a proclamation was issued by the Imperial Government declaring Bahia in a state of blockade, the Portuguese having there assembled a combined naval and military force superior to that of Brazil, and, under ordinary circumstances, fully competent to maintain itself; as well as to put down, or at least paralyse, any movement in favour of independence.

The following orders were then communicated to me, and were of the usual kind, viz. "to capture or destroy all enemy's ships and property, whereever found:"—

> His Imperial Majesty, through the Secretary of State for the Marine, commands that the First Admiral, Lord Cochrane, Commander-in-Chief of the Squadron, shall, to-morrow morning, proceed from this port with such vessels as he shall judge proper to the port of Bahia, to institute a rigorous blockade, destroying or capturing whatever Portuguese force he may fall in with—doing all possible damage to the enemies of this Empire, it being left to the discretion of the said Admiral to act as he shall deem advantageous, in order to save that city from the thraldom to which it is reduced by the enemies of the cause of Brazil; for this purpose consulting with Gen. Labatu, commanding the Army, in order to the general good of the service, and glory of the national and Imperial arms.

Palace of Rio Janeiro, March 30, 1823.

LUIZ DA CUNHA MOREIRA.

To the Brazilian party and the mass of the people generally, the approaching departure of the squadron was a matter for congratulation, but to the Portuguese faction it presented a cause for fear, as tending to destroy their hopes of re-establishing the authority of the mother country. Their influence, as has before been said, was as great, if not greater, than that of the patriots, and being more systematic, it had been effectually employed to increase the disaffection which existed in the Northern provinces to the—as yet—but partially established authority of his Imperial Majesty.

It is not my intention for a moment to impute malicious motives to the Portuguese faction in Brazil. The King of Portugal, Don John VI. had, within twelve months, quitted their shores to resume the throne of his ancestors, so that they had a right to the praise of loyalty, and the more so, as at that time few calculated on separation from the mother country. The Empire itself was not six months old, and therefore they were not to be blamed for doubting its stability. The Cortes at Lisbon had sent a large force for the protection of the more remote provinces, and in an attack upon these at Bahia, the Brazilian troops had been unsuccessful, so that no great confidence was to be reposed on any future *military* efforts to eject the Portuguese troops.

Where the Portuguese party was really to blame, consisted in this,—that seeing disorder everywhere more or less prevalent, they strained every nerve to increase it, hoping thereby to paralyse further attempts at independence, by exposing whole provinces to the evils of anarchy and confusion. Their loyalty also partook more of self-interest than of attachment to the supremacy of Portugal, for the commercial classes, which formed the real strength of the Portuguese faction, hoped, by preserving the

authority of the mother country in her distant provinces, thereby to obtain as their reward the revival of old trade monopolies, which twelve years before had been thrown open, enabling the English traders—whom they cordially hated—to supersede them in their own markets. Being a citizen of the rival nation, their aversion to me personally was undisguised; the more so perhaps, that they believed me capable of achieving at Bahia—whither the squadron was destined—that irreparable injury to their own cause, which the Imperial troops had been unable to effect. Had I, at the time, been aware of the influence and latent power of the Portuguese party in the empire, not all the so-called concessions made by De Andrada would have induced me to accept the command of the Brazilian navy; for to contend with faction is more dangerous than to engage an enemy, and a contest of intrigue was alike foreign to my nature and inclination.

CHAPTER II.

ATTEMPT TO CUT OFF THE ENEMY'S SHIPS—DISOBEDIENCE TO ORDERS—LETTER TO THE PRIME MINISTER—WORTHLESSNESS OF THE MEN—THEIR TREACHERY—BLOCKADE ESTABLISHED—EQUIPMENT OF FIRESHIPS—ENEMY'S SUPPLIES CUT OFF—PORTUGUESE UNTRUSTWORTHY—DEMONSTRATIONS OF THE ENEMY—HIS PRETENDED CONTEMPT FOR US—THE ENEMY RETURNS TO PORT—THEIR CONSTERNATION AT THE FIRESHIPS—PORTUGUESE CONTEMPLATE ATTACKING US—FLAGSHIP RECONNOITRES ENEMY AT ANCHOR—EXCESSIVE ALARM AT MY NOCTURNAL VISIT—PROCLAMATION OF THE COMMANDANT—CONSTERNATION IN THE CITY—THE AUTHORITIES DECIDE ON EVACUATING BAHIA—INSTRUCTIONS TO THE BRAZILIAN CAPTAINS—WARNINGS ADDRESSED TO THE AUTHORITIES—ENEMY QUITS BAHIA—READINESS FOR CHASE—NUMBERS OF THE ENEMY—CAPTURE OF THE CONVOY—PRIZES DISABLED—ATTEMPT OF TROOPS TO ESCAPE—PRIZES SENT TO PERNAMBUCO—PURSUIT DISCONTINUED—REASONS FOR GOING TO MARANHAM—REASONS FOR NOT TAKING MORE PRIZES—ADVANTAGES TO THE EMPIRE.

On the 3rd of April, we put to sea with a squadron of four ships only, viz. the *Pedro Primiero*, Captain Crosbie, *Piranga*, Captain Jowett, *Maria de Gloria*, Captain Beaurepaire, and *Liberal*, Captain Garcaõ—two others which accompanied us, viz. the *Guarani*, Captain de Coito, and *Real*, Captain de Castro, were intended as fireships. Two vessels of war, the *Paraguassu* and the *Nitherohy*, being incomplete in their equipment, were of necessity left behind.

The *Nitherohy*, Captain Taylor, joined on the 29th of April, and on the 1st of May we made the coast of Bahia. On the 4th, we made the unexpected discovery of thirteen sail to leeward, which proved to be the enemy's fleet leaving port with a view of preventing or raising the blockade. Shortly

afterwards the Portuguese Admiral formed line of battle to receive us, his force consisting of one ship of the line, five frigates, five corvettes, a brig, and schooner.

Regularly to attack a more numerous and better trained squadron with our small force, manned by undisciplined and—as had been ascertained on the Voyage—disaffected crews, was out of the question. On board the flagship there were only a hundred and sixty English and American seamen, the remainder consisting of the vagabondage of the capital, with a hundred and thirty black marines, just emancipated from slavery. Nevertheless, observing an opening in the enemy's line, which would enable us to cut off their four rearmost ships, I made signals accordingly, and with the flagship alone gave the practical example of breaking the line, firing into their frigates as we passed. The Portuguese Admiral promptly sent vessels to the aid of the four cut off, when, hauling our wind on the larboard tack, we avoided singly a collision with the whole squadron, but endeavoured to draw the enemy's ships assisting into a position where they might be separately attacked to advantage.

Had the rest of the Brazilian squadron come down in obedience to signals, the ships cut off might have been taken or dismantled, as, with the flagship I could have kept the others at bay, and no doubt have crippled all in a position to render them assistance. To my astonishment the signals were disregarded, and—for reasons which will presently be adduced—no efforts were made to second my operations.

For some time the action was continued by the *Pedro Primiero* alone, but to my mortification the fire of the flagship was exceedingly ill-directed. A still more untoward circumstance occurred in the discovery that two Portuguese seamen who had been stationed to hand up powder, were not only withholding it, but had made prisoners of the powder boys who came

to obtain it! This would have been serious but for the promptitude of Captain Grenfell, who, rushing upon the men, dragged them on deck; but to continue the action under such circumstances was not to be thought of; and as the enemy had more than double our numerical force, I did not consider myself warranted in further attempting, with greater hazard, what on a future opportunity might be accomplished with less. Quitting the enemy's ships cut off, we therefore hauled our wind, to join the vessels which had kept aloof, and to proceed to the station previously appointed as the rendezvous of the squadron, whither the fireships were to follow. In this affair no lives were lost.

Extremely annoyed at this failure, arising from non-fulfilment of orders, and finding, from experience on the voyage, that we had been hurried to sea, without consideration as to the materials of which the squadron was composed, a rigid inquiry was instituted, which gave me such cogent reasons for losing all confidence in it, that on the day following I considered it expedient to address the following letter to the Prime Minister, Andrada, pointing out that if prompt steps were not taken to add to our strength, by providing more efficient crews, the result might be to compromise the interests of the empire, no less than the character of the officers commanding.

(Secret) H.I.M.S. *Pedro Primiero*, at Sea,

May 5, 1823.

MOST ILLUSTRIOUS SIR,

Availing myself of your permission to address you upon points of a particular nature, and referring you to my public despatches to the Minister of Marine, I beg leave to add that it was not only unfavourable winds which retarded our progress, but the extreme bad sailing of the *Piranga* and *Liberal*. Neither these ships nor the

Nitherohy, which sails equally ill, are adapted to the purposes to be effected, as from their slowness, the enemy has an opportunity to force an action under any circumstances, however disadvantageous to this undisciplined squadron. The *Real* is no better, and her total uselessness as a ship of war, has determined me to prepare her as a fireship, there appearing no probability of the others joining.

From the defective sailing and manning of the squadron it seems, indeed, to me, that the *Pedro Primiero* is the only one that can assail an enemy's ship of war, or act in the face of a superior force, so as not to compromise the interests of the empire and the character of the officers commanding. Even this ship—in common-with the rest—is so ill-equipped as to be much less efficient than she otherwise would be.

This letter, you will observe, is not intended to meet the public eye, but merely to put the Government in possession of facts necessary for its information.

Our cartridges are all unfit for service, and I have been obliged to cut up every flag and ensign that could be spared, to render them serviceable, so as to prevent the men's arms being blown off whilst working the guns, and also to prevent the constant necessity of sponging, &c. which, from the time it consumes, diminishes the effective force of the ships fully one half.

The guns are without locks—which they ought to have had in order to their being efficient.

The sails of this ship are all rotten—the light and baffling airs on our way hither, having beaten one set to pieces, and the others are hourly giving way to the slightest breeze of wind.

The bed of the mortar which I received on board this ship was crushed on the first fire—being entirety rotten; the fuzes for the shells are formed of such wretched composition that it will not take fire with the discharge of the mortar, and are consequently unfit for use on board a ship where it is extremely dangerous to kindle the fuze otherwise than by the explosion; even the powder with which this ship is supplied is so bad, that six pounds will not throw our shells more than a thousand yards, instead of double that distance.

The marines neither understand gun exercise, the use of small arms, nor the sword, and yet have so high an opinion of themselves that they will not assist to wash the decks, or even to clean out their own berths, but sit and look on whilst these operations are being performed by seamen; being thus useless as marines, they are a hinderance to the seamen, who ought to be learning their duty in the tops, instead of being converted into sweepers and scavengers. I have not yet interfered in this injurious practice, because I think that reforms of the ancient practice of the service, ought to form the subject of instruction from the Government —and also, because at this moment, any alterations of mine might create dissatisfactions and dissensions even more prejudicial to the service in which we are engaged, than the evils in question.

With respect to the seamen, I would observe, that, in order to create an effective marine, young active lads of from fourteen to twenty should be selected. Almost the whole of those who constitute the crews of these vessels—with the exception of the foreign seamen, are not only totally unpractised in naval profession, but are too old to learn.

I warned the Minister of Marine, that every native of Portugal put on board the squadron—with the exception of officers of known character—would prove prejudicial to the expedition, and yesterday we had a clear proof of the fact. The Portuguese stationed in the magazine, actually withheld the powder whilst this ship was in the midst of the enemy, and I have since learned that they did so from feelings of attachment to their own countrymen. I now inclose you two letters on this subject—one just received from the officer commanding the *Real*, whose crew were on the point of *carrying that vessel into the enemy's squadron for the purpose of delivering her up!* I have also reason to believe, that the conduct of the *Liberal* yesterday in not bearing down upon the enemy and not complying with the signal which I had made to break the line—was owing to her being manned with Portuguese. The *Maria de Gloria* has also a great number of Portuguese, which is the more to be regretted, as otherwise her superior sailing, with the zeal and activity of her captain, would render her an effective vessel. To disclose to you the truth, it appears to me that one half of the squadron is necessary to watch over the other half: and, assuredly, this is a system which ought to be put an end to without delay.

A greater evil is, that this ship is one hundred and twenty seamen short of her complement and three hundred short of what I should consider an efficient crew, whilst the bad quality and ignorance of the landsmen, makes the task of managing her in action no easy matter, the incessant bawling going on rendering the voices of the officers inaudible. Had this ship yesterday been manned and equipped as she ought to have been, and free from the disadvantages stated, there is no doubt whatever in my mind, but, that singly, we could have dismantled half the ships of the enemy.

On the whole, Sir, you must perceive that I have not been supplied with any of those facilities which I requested to be placed in my hands. I am, however, aware of the difficulties under which a new Government labours, and am ready to do all in my power under any circumstances. What I have to request of you is, that you will do me the justice to feel that the predicament in which I am now placed, is somewhat analogous to your own, and that if I cannot accomplish all I wish, the deficiency arises from causes beyond my control; but I entreat you to let me have—at least this ship— *well manned*, and I will answer for her rendering more efficient service than the whole squadron besides—constituted as it now is.

You will perceive by my public despatch addressed to the Minister of Marine, that although we passed through the enemy's line, and, I may add, actually brushed the nearest vessel, which we cut off—yet nothing really useful was effected, notwithstanding that the vessel we touched ought to have been sunk, and those separated to have been dismantled or destroyed. I am quite vexed at the result—which was such, however, as might have been expected from the bad manning of the squadron.

I have determined to proceed forthwith to the Moro San Paulo, and to leave there the ill-sailing vessels. I intend to remove all the effective officers and seamen from the *Piranga* and *Nitherohy*, into this ship, and with her alone, or attended only by the *Maria de Gloria*, to proceed to Bahia, to reconnoitre the situation of the enemy at their anchorage, and obtain the information requisite to enable me to enter on more effectual operations.

I have the honour, &c.

COCHRANE.

Ill. Exmo. Senor JOSÉ BONIFACIO D'ANDRADE Y SILVA,
Ministro e Secretario d'Estado.

A rigorous blockade was nevertheless established, in spite of our deficiencies or the efforts made to raise or evade it—though the enemy were bold in reliance upon their numbers, and none the less so, perhaps, from considering our recent failure a defeat. They did not, however, venture to attack us, nor were we yet in a condition to meddle further with them.

The blockade of the port was not calculated to effect anything decisive, beyond paralysing the naval operations of the enemy's squadron. Even this would not prevent the Portuguese from strengthening themselves in positions on shore, and thus, by intimidating all other districts within reach, —enable them to bar the progress of independence. I therefore determined, as a force in our condition was not safe to hazard in any combination requiring prompt and implicit obedience, to adopt the step of which I had apprised the Prime Minister, and took the squadron to Moro San Paulo, where, transferring from the bad sailing frigates to the flagship, the captains, officers, and best petty officers and seamen, the *Pedro Primiero* was rendered more efficient than the whole together; and with her and the *Maria de Gloria*, I resolved to conduct further operations against the enemy —leaving the *Piranga*, and *Nitherohy*, together with all the other vessels, in charge of Captain Pio—the two senior captains having been transferred to the flagship, in charge of their officers and men.

There was, however, another reason for leaving the remainder of the squadron at Moro San Paulo. Before quitting Rio de Janeiro, I had urged on the Government the necessity of immediately forwarding fireships, as the most reliable means for destroying a superior force. These had not been supplied; but in their place a quantity of inflammable and explosive materials had been sent. As several prizes had been taken, I determined to

convert them into fireships, as well as the *Real* schooner—a useless vessel, the crew of which had shewn that they were not to be depended upon; so that the remaining ships of the squadron, though unreliable in other respects, were well employed in carrying these objects into execution.

In order to protect the ships and men thus engaged, I directed a body of marines to be landed, for the purpose of making a show by forming and manning batteries to repel any attack, though, had such been made, neither the batteries nor their defenders would have been of much service.

The flagship, together with the *Maria de Gloria*, now proceeded to cruize off Bahia, with such success that all supplies were cut off by sea, notwithstanding repeated attempts to introduce vessels from San Mattheos with farinha—a dozen of which fell into our hands, in spite of the enemy's superiority.

As the *Carolina* had now joined us, I directed her to take under convoy the captured transports with provisions, whilst the *Guarani* was sent to scour the coast, with orders to avoid approaching the enemy's fleet, and to bring me information as to the progress of the fireships, upon which I now saw that I must mainly rely.

On the 21st, I considered it expedient to address the following private letter to the Minister of Marine:—

Off Bahia, N.W. 12 miles,
May 21, 1833.

Most Illustrious Sir,

In addition to my official letters of the 3rd and 4th inst. I beg to acquaint you that, being convinced—not only from the conduct of the

crew of this ship during the attack on the 4th, but from what I observed in regard to the other vessels—that nothing beneficial to His Imperial Majesty's service could be effected by any attempts to combine the whole squadron in an attack against the enemy—but, on the contrary, from the imperfect and incongruous manner in which the vessels are manned— consequences of the most serious nature would ensue from any further attempt of the kind. I have therefore determined to take the squadron to Moro San Paulo, for the adoption of other measures essential under such circumstances, viz. to take on board such officers and men from the bad sailing vessels as will render the *Pedro Primiero* more effective than the whole squadron as now constituted.

In the first conversation I had with you, I gave you my opinion as to the superior benefit of equipping one or two vessels *well*— rather than many imperfectly, and I again beg to press on your consideration the necessity of such efficient equipment of all vessels, whether many or few. I must also remind you of the great danger that arises from the employment of Portuguese of the inferior class in active operations against their own countrymen, because they neither do nor can consider that the dispute between Brazil and the Portuguese Government, bears any similarity to warfare as ordinarily understood. I have had sufficient proof since leaving Rio de Janeiro, that there is no more trust to be placed in Portuguese, when employed to fight against their countrymen, than there was in the Spaniards, who, on the opposite side of this continent, betrayed the patriot Governments, by whom they were employed. I shall press this point no further than to say, that so long as His Imperial Majesty's ships are so manned, I shall consider them as not only wholly inefficient, but requiring to be vigilantly watched in order to prevent the most dangerous consequences.

Since making my arrangements at the Moro, where I left all the squadron except this ship and the *Maria de Gloria*, I have been constantly off the port of Bahia, but could see nothing of the enemy's squadron, till the 20th, when I learned from an English vessel that they had been as far down as the Abrolhos shoals, for what purpose I know not. They consist of thirteen vessels, being the number which we encountered on the 4th. I am watching an opportunity to attack them in the night, in the hope not only of being able to damage them materially by the fire of this ship, but also in the expectation that, if they are not better disciplined than the crews of this squadron, they will occasion as much damage amongst themselves, as they would sustain if they had an equal force to contend with. In the meantime we are as effectually blockading Bahia, as if the enemy did not dare to remove from his anchorage—for both this ship and the *Maria de Gloria* outsail them all. We have captured three Portuguese vessels, and from the letters found therein, many more are expected from Maranham and other ports to leeward, as well as from San Mattheos.

Should the enemy's squadron return to port before I can obtain a favourable opportunity of assailing them at sea, I shall endeavour to attack them at their anchorage, and the Government may be assured that no exertion shall be wanting on my part, or on that of the officers now in this ship, to effect their destruction.

I may fairly ascribe the prepared state of the enemy, and the great force in which they appeared on the 4th, and still exhibit—to the information carried by the British ship of war Tartar, which was permitted to sail from Rio so early after our departure for Bahia, and thus served them as effectually as though she had been expressly hired for the purpose.

I have the honour, &c.

COCHRANE.

To the Minister of Marine.

On the 22nd we captured another vessel, and reconnoitred the port of Bahia, the Portuguese squadron being there at anchor. Finding this to be the case, I returned to the Moro to expedite the fireships—leaving the *Maria de Gloria* to watch the enemy's movements.

On the 26th the Portuguese Admiral again appeared in full force, and approached towards us at the Moro San Paulo, when we prepared for action, but the hostile squadron withdrew. The same demonstration was made for several days, the enemy not venturing on an attack, whilst, from the causes previously alleged, we were in no condition to take the initiative.

On the 26th I apprised the Minister of Marine that, when the enemy returned to port, I should make an attempt on them on the first dark night with the flagship alone, pending the equipment of the fireships. At the same time I addressed the following letter to the Prime Minister, De Andrada:—

Moro San Paulo, 26th May, 1823.

MOST ILLUSTRIOUS SIR,

> With regard to the transactions of the squadron, I beg to refer you to my despatches to the Minister of Marine, but solicit your attention to a few particulars which appear to me of importance.
>
> In the first place, you will observe from the enclosed Bahia newspaper, that the maritime force of the enemy is contrasted with that of the squadron under my command. I should be well content

were the real disparity of the respective forces no greater than the statement has set forth, but unfortunately, the Brazilians, who have never before been at sea, are of little or no use, from their total want of discipline, and of any kind of nautical knowledge; whilst the Portuguese seamen in the squadron, are not only useless—but a great deal worse, for the reasons stated in my former letters.

The enemy in Bahia are in want of all kinds of fresh provisions—though they have been using every means to procure them. Some supplies they have lately had from Buenos Ayres, and even from the Cape de Verds; but the most surprising fact is that the Brazilian Governor of San Mattheos, near the Abrolhos, and the chiefs of other small Brazilian ports in that quarter have been loading vessels for the enemy's use—under the simulated destination of Rio de Janeiro. Permit me to suggest that an investigation into this matter is highly essential.

From all the information which I can collect, the enemy at Bahia are considerably distracted in their councils, which dissensions cannot fail to be increased by seeing their vessels taken in the very mouth of the harbour, and their look-out ships driven under the guns of the batteries by those of His Imperial Majesty, I may, indeed, say by two ships alone, because in the state of the other vessels and crews I have not deemed it prudent to trust them in the neighbourhood of a port occupied by the enemy.

I have no doubt of succeeding—by some means or other—in effecting our object, and that in as short a time as can reasonably be expected—for it is not to be supposed that I should all at once accomplish objects of such magnitude with a force so inferior, and in great part so inexperienced and heterogeneously composed. On

this subject I beg to call your attention to the low opinion entertained of our squadron by the enemy, as expressed in the enclosed Bahia Gazette (No 65), which, on that point, is in conformity with my own opinion as previously expressed.

I have the honour, &c. COCHRANE.

To the Prime Minister.

The following proclamation from the *Bahia Gazette* will shew the nature of these vapourings deliberately inserted by the Bahia authorities:—

Last week the wind was Southerly, with rain, which has rendered it impossible for our squadron to get at the Rio squadron, to decide whether Brazil shall remain in the fetters of the usurper of Rio— or enjoy constitutional liberty. Had they credited me more, we should not have seen on our bar, an enterprising man who ruined the commerce of the Pacific, and now thinks to regain the glory he lost. The conduct of Lord Cochrane verberates in our ears— examine his conduct in the Pacific, and observe that he lost all, and was obliged to abandon everything to the Spaniards in Peru, afterwards losing his little force in attacks and tempests. The Ministry of Rio sent for him, giving him the pompous title of "Admiral of the Brazils," and great promises—thinking that he would bring with him a squadron to help the Imperial fraudulence. This is the great wonder, who has come to carry fire and blood to the trusty Bahia, bringing with him vessels manned, for the most part, with Portuguese sailors—and not leaving in Rio a single vessel, from which he did not take even the negro sailors.

It is only the *Pedro Primiero* that is manned with the adventurous foreigners, so that we shall fall upon the 74, and by beating her,

decide the business of Brazil. Our squadron is superior in physical force, having at their head brave officers, with plenty of troops. It is commanded in chief by an Admiral who has success before him, and who wishes to regain the opinion of the public, so that we may all wait a happy result.

Commerce—the strong pillar which upholds the Constitutional edifice—has promised great recompense to the victorious fleet and their chief, and has precious gifts for those who will shew their gratitude to Bahia, and defend their liberty. Officers who distinguish themselves, will have a medal representing their victory, which will make them known to the citizens of Bahia, who will not be ungrateful.

Citizens of all classes are ready at a moment's warning to decide the great cause of our liberty, and will measure the greatness of our triumph by the sacrifices made. Constance, courage, and union, and we shall see the despotic monster raging and tearing himself to pieces.

All we look to, at this moment, is to destroy the Rio squadron. The usurper who rules in that Capital thinks that, reaching the bar with the squadron of his imaginary Empire, we should be attacked on all sides, and compelled to make a shameful capitulation. How much you are mistaken—new-born monster! We have abundant force at our disposal; but in the meantime we must overthrow the plans of the enterprising Cochrane, and wait the result of maritime prowess.

Notwithstanding that the Portuguese opinion of the Brazilian squadron, as expressed in the official gazette, is couched in terms of contempt, as compared with the efficiency of their own squadron—yet most inconsistently, they did not venture to attack us. The fact was, however,

most painful to me, being aware of its truthfulness, and I wrote to the Minister of Marine, begging him to enable us to intercept the numerous vessels expected at Bahia, by procuring three fast-sailing American clippers, armed with 18 or 24-pounders, in lieu of the useless schooners with which we were encumbered. In addition to the professed contempt of the Portuguese authorities for the ships blockading Bahia—the proclamation in which these expressions were contained, termed His Imperial Majesty a "Turkish despot,"—his Prime Minister a "tyrannical vizier," and myself "a coward;" so that I had at least the satisfaction of being maligned in good company.

On the 2nd of June, to my great satisfaction, the Portuguese returned to port, and I felt certain that so soon as the fireships in preparation at the Moro San Paulo were ready, the destruction of the whole was inevitable—the Portuguese naval officers being of the same opinion, whatever might be the official boasts of the military Commandant. According to the secret correspondence which I had established with Brazilian patriots resident within the city, the Admiral's consternation on learning that fireships were nearly equipped was excessive—and being in nightly expectation of a repetition of the scene in Basque Roads; or at least of that which little more than a year previous had been enacted before Callao—every precaution was taken against surprise. He was quite right in the conjecture as to what was intended; but did not calculate—as I was obliged to do—on the general want of experience of such matters in the Brazilian service.

Our preparations being, on the 8th of June, reported to be favourably progressing, I determined to put the attack in execution so soon as the tide flowed late enough in the evening to prevent the enemy from perceiving us in time to disturb or defeat our operations. The difficulty was to find competent persons to take charge of the fireships, so as to kindle them at the proper moment—the want of which had rendered most of the fireships

ineffective—as such—in the affair of Basque Roads in 1809, and had formed one of the principal obstacles when attacking Callao in 1821. Of the explosion vessel I intended myself to take charge, as I had formerly done in Basque Roads.

On the 9th of June information arrived that the enemy had resolved on an attempt to destroy the fireships in the Moro San Paulo, and that the second division of their army was being embarked in transports for that purpose. Preparations were at once made to receive them by ordering in the vessels scouring the coast, and by such other precautionary measures as were necessary for the defence of that important station.

It was, however, difficult to make a proper defence, for, with the exception of Portuguese—who could not be trusted—there were no Artillerymen in the Brazilian squadron who had any practical knowledge of their duty, even if the guns on the Moro could be made to contribute to its defence, for the place was open, and commanded by heights, of which, as we had no troops, the enemy could possess themselves by night or by day. In case they did so, before adequate preparations could be made, I directed the guns to be spiked, that they might not be turned against the ships. No attack was, however, made, the enemy being doubtless deterred by the apparent promptitude in anticipating their movements.

On the 11th of June further information was received that the contemplated attack on the Moro had been abandoned, and that the enemy were seriously deliberating on evacuating the port before the fireships were completed, I therefore ordered the *Maria de Gloria* to water and re-victual for three months, so as to be in readiness for anything which might occur, as, in case the rumour proved correct, our operations might take a different turn to those previously intended. The *Piranga* was also directed to have everything in readiness for weighing immediately, on the flagship appearing

off the Moro and making signals to that effect. The whole squadron was at the same time ordered to re-victual, and to place its surplus articles in a large shed constructed of trees and branches felled in the neighbourhood of the Moro.

Whilst the other ships were thus engaged, I determined to increase the panic of the enemy with the flagship alone. The position of their fleet was about nine miles up the bay, under shelter of fortifications, so that an attack by day would have been more perilous than prudent. Nevertheless, it appeared practicable to pay them a hostile visit on the first dark night, when, if unable to effect any serious mischief, it would at least be possible to ascertain their exact position, and to judge what could be accomplished when the fireships were brought to bear upon them.

Accordingly, having during the day carefully taken bearings of the high lands at the mouth of the river—on the night of the 12th June, I decided on making the attempt, which might possibly result in the destruction of part of the enemy's fleet, in consequence of the confused manner in which the ships were anchored, and from information received that the chief officers were invited ashore to a public ball.

As soon as it became dark, we proceeded up the river, but unfortunately, when within hail of the outermost ship, the wind failed, and the tide soon after turning, our plan of attack was rendered abortive; determined, however, to complete the reconnaissance, we threaded our way amongst the outermost vessels, but dark as was the night—the presence of a strange ship under sail was discovered—and some beat to quarters, hailing to know what ship that was? The reply being "an English vessel," satisfied them, so that our investigation was made unmolested. The chief object thus accomplished, we succeeded in dropping out with the ebb tide, now rapidly running, and were enabled to steady our course stern-foremost with the

stream anchor adrag, whereby we reached our former position off the mouth of the river.

Finding from the reconnaissance, that it would not be difficult to destroy the enemy's vessels, huddled together as they were amongst a crowd of merchantmen, I hastened to Moro San Paulo, to expedite the completion of the fireships. Returning immediately to Bahia, and again anchoring off the entrance of the harbour, I now learned that the alarm created by our nocturnal visit was excessive; indeed, my informants stated that the exploit had the effect of determining the Portuguese admiral to remove as quickly as possible from a locality in which he could no longer consider himself safe.

On the 29th of June, information was again forwarded to me, by persons favourable to the Imperial cause, that a council of war had been held, at which it had been resolved to withdraw the fleet to St. Catherine's or Maranham, and not the fleet alone but the troops also—thus abandoning the city and province of Bahia to the Imperial squadron; the council judging that I should be well content to permit them to pass to another part of the coast, as their departure would result in the Imperial occupation of Bahia.

The subjoined proclamation issued by General Madeira will shew the straits to which the blockading squadron had reduced the city and garrison:—

INHABITANTS OF BAHIA,

> The crisis in which we find ourselves is perilous, because the means of subsistence fail us, and we cannot secure the entrance of any provisions. My duty as a soldier, and as Governor, is to make any sacrifice in order to save the city; but it is equally my duty to prevent, in an extreme case, the sacrifice of the troops I command—of the

squadron—and of yourselves. I shall employ every means to fulfil both duties. Do not suffer yourselves to be persuaded that measures of foresight are always followed by disasters. You have already seen me take such once before. They alarmed you, but you were afterwards convinced that they portended nothing extraordinary. Even in the midst of formidable armies measures of precaution are daily used, because victory is not constant, and reverses should be provided against. You may assure yourselves, that the measures I am now taking, are purely precautionary, but it is necessary to communicate them to you, because if it happens that *we must abandon the, city*, many of you will leave it also; and I should be responsible to the nation and to the King if I had not forewarned you.

(Signed) IGNACIO LUIZ MADEIRA DE MELLA.

Were it dignified to allude to the cowardice imputed to me by the same authority, it would be easy to refer to the above enumeration of distresses caused by our two ships having captured all their provisions in the face of thirteen, in every way better manned and equipped.

The consternation caused by my nocturnal visit, which decided the evacuation of the city, was described as almost ludicrous. As I had been correctly informed, the Portuguese admiral and his officers *were* at a ball, and information of our appearance amongst the fleet was conveyed to him in the midst of the festivities. "What"—exclaimed he—"Lord Cochrane's line-of-battleship in the very midst of our fleet! Impossible —no large ship can have come up in the dark." We, however, did find our way in the dark—and did not retire till our *reconnaissance* was as complete as darkness would permit.

The lamentations caused by General Madeira's proclamation were no doubt faithfully chronicled in the Bahia newspapers, one of these declaring

"in the last few days we have witnessed in this city a most doleful spectacle that must touch the heart even of the most insensible. A panic terror has seized on all men's minds—the city will be left without protectors—and families, whose fathers are obliged to fly, will be left orphans—a prey to the invaders," &c. &c. A prognostication not at all in accordance with my mode of carrying on warfare, which, as Portuguese families afterwards found, both at Bahia and elsewhere, was to protect the defenceless and unoffending.

The before-mentioned resolution of the council was precisely what I wished, as the evacuation of the port and province by the troops as well as the fleet, must prove more favourable to the Imperial cause than if the fleet alone had been destroyed and the military force remained. As I had, however, every reason to believe that it was General Madeira's intention to remove the troops to the Northern provinces, which would only have shifted the scene of war to another locality, I was determined at all hazards to prevent such movement.

On the 1st of July, information was brought, that, as the fireships were now known to be in readiness for the attack, the Portuguese admiral had hastily embarked the whole of the troops in transports, and that a number of merchantmen were also filled with persons who wished to leave Bahia under his protection. As it was clear that the total evacuation of the province by the enemy was preferable to an attack which might only end in destroying the ships and driving both naval and military forces on shore to renew their operations—I determined not to interfere with their retreat, till they were clear out of the harbour, when a vigilant pursuit would prevent them from again taking shelter in Brazil.

The following order was therefore issued to Captain Beaurepaire, of the *Maria de Gloria*, Captain Taylor, of the *Nitherohy*, and Captain. Thompson,

of the *Carolina*, these being the only vessels on which I could in any degree depend:—

> Having received information that the enemies of the independence of Brazil are about to evacuate the city, and quit the port of Bahia—taking under the protection of their ships of war numerous transports in which the military force and stores are embarked, together with all the moveable property, public and private—not excepting even the sacred vases appropriated to religious uses—and as it is highly expedient that the progress of the enemy should be interrupted and impeded as far as is practicable—you are required to be particularly vigilant in watching their escape, and are to endeavour to cut off such of their vessels as you can assail with safety, and are to continue in the execution of this duty so long as you can keep sight of the enemy.

COCHRANE.

Given on board the *Pedro Primiero* this 1st of July, 1823.

To Captain Taylor, of the *Nitherohy*, I gave further instructions to continue the chase as long as he considered it practicable to capture or destroy the enemy's vessels, using his utmost endeavours to disable all having troops on board; and as it was necessary to occupy Bahia after its evacuation, I directed Captains Beaurepaire and Thompson, after having captured or disabled all they could, to return forthwith to Bahia, and take possession; for which purpose the following order was issued to Captain Beaurepaire:—

> After having executed the previous order, you are to return to the port of Bahia, taking upon yourself the command of the naval department afloat in my absence, and it will be your duty to ascertain the nature of the cargoes of the neutral ships now in the port of Bahia,

or which may afterwards enter, as there are many neutral ships said to have embarked property to a large amount, which has been illegally transferred to such neutrals since the blockade, for the purpose of fraudulent concealment. All such vessels and all such property ought to be detained and subjected to legal investigation in the prize tribunals of His Imperial Majesty. You will have a perfect right to require this investigation, and though the neutrals may clamour, they cannot lawfully oppose your proceedings therein—advisedly taken.

A Portuguese frigate being daily expected at Bahia, as well as other vessels from Portugal and the Portuguese colonies, it will be advisable, for the better opportunity of capturing the same, to arrange with the General and Commander-in-Chief, that the Portuguese flag shall be displayed at least on the outer fort or battery on the appearance of such Portuguese vessels, or of others whose nationality is doubtful.

You are to continue on the service above pointed out until further orders from me, or from the Minister of Marine, with whom you are to communicate, and convey to him a copy of the present order.

COCHRANE.

Having learned that a great number of the more influential inhabitants were about to quit Bahia with the fleet—and not wishing to involve them in the consequences of war—I addressed the following caution to the Junta of Bahia:—

GENTLEMEN,

Understanding that it is in contemplation to abandon the town of Bahia, without any security being given not again to resume

hostilities against the subjects and territories of His Imperial Majesty, and as you may not be aware of the difficulty of retiring—whilst hopes may have been held out to you that this is practicable—I must, for the sake of humanity, caution you against any attempt to remove yourselves by sea, unless I have a perfect understanding as to the future intentions of the naval forces which may accompany you, but to whom I have nothing to suggest.

I tell you however, that it is in my power to take advantages which may be fatal to your escape, and if, after this notice, you shall sail, you must not lay anything to my charge in the destruction of passengers, for in the obscurity of night it is impossible to discriminate ships in which they may be embarked. If, after this notice, you embark, or continue embarked, it will be to me a subject of great regret, because I have ever desired that the dangers of war should be confined to the military and naval profession.

COCHRANE.

To the Junta, Bahia,

To General Madeira, commanding the Portuguese troops, I wrote as follows:—

Understanding that you are about to embark the military forces under your command, with a view to proceed to some of the Northern provinces, humanity compels me to declare to you my duty, however painful, to take all measures within my power to dismantle whatever transports may attempt to sail from Bahia under convoy of the ships of war. That I have the means of performing this duty, in defiance of the ships of war which may endeavour to obstruct my operations, is a fact which no naval officer will doubt—but which to you as a military

man may not be so apparent. If, after this warning, I am compelled to have recourse to the measures alluded to, and if numerous lives should be sacrificed thereby, I shall stand acquitted of those consequences which would otherwise press heavily on my mind.

(Signed) COCHRANE.

Gen. MADEIRA.

To the Portuguese Admiral I addressed the following note:—

Sir,

I have written to the Junta and the General commanding the military force, relative to particulars which I have felt it my duty to submit to their consideration. To you, as a professional man, I have nothing to suggest or request—but merely to express my conviction that, for the sake of humanity, you will give that professional opinion on the subject of my letters—should they be referred to you—which may be expected from a naval officer of your experience.

(Signed) COCHRANE.

The Admiral of the Portuguese Squadron.

On the 2nd of July, the whole Portuguese force, naval and military, got under weigh, and steered out—the troops being embarked in the armed transports and large merchantmen, whilst other vessels were filled with Portuguese families and their property—everything moveable being put on board—with the utmost confidence in the protection of their fleet. As only the flagship and *Maria de Gloria* were present, we made no attempt to attack them whilst issuing from the mouth of the river, they no doubt

ridiculing my warnings as communicated to the Junta and the commanding officers.

In this, however, they were mistaken; as every thing was in readiness, both on board the flagship and the *Maria de Gloria*, for immediate chase, so soon as the whole were clear of the port; though I had no intention—as they no doubt interpreted my letters—of attacking thirteen ships of war and numerous armed transports, with two ships alone, so long as they remained within the harbour; but when once out, the superior sailing qualities of these two ships would safely enable us to harass them with impunity.

As the merchant brig, *Colonel Allen*, which had conveyed us from Chili, was still with us, and as she might be made useful in looking after the prizes, I adopted her into the Brazilian navy under the name of the *Bahia*, appointing her master, Captain Haydon, to the rank of captain-lieutenant.

Whilst the Portuguese were passing out, I wrote and despatched by the *Liberal* schooner, the following letter to the Minister of Marine at Rio de Janeiro:—

Pedro Primiero, off Bahia, July 2nd, 1833.

MOST EXCELLENT SIR,

I have the satisfaction to acquaint your Excellency that the enemy's squadron have this day evacuated Bahia, their resources by sea being no longer available. Their ships of war, consisting of thirteen sail of different sizes, and many large merchantmen filled with troops, are now standing out of the bay. It is my intention to pursue them as long as it shall appear beneficial so to do. This ship and the *Maria de Gloria* are the only two in sight of the enemy, the *Carolina* having been obliged to return to the Moro, in consequence of having lost a

topmast, and the *Nitherohy* not having joined. I hope in my next to be able to give you some account of the ulterior objects the enemy have in view, which, whatever they may be, I shall endeavour to frustrate.

(Signed) COCHRANE.

To the commanders of the other ships, I sent the following order on their joining the pursuit:—

It being improper to weaken the squadron, and impossible to officer and man the vessels which may fall into our hands, you are to adopt the following plan to secure them, viz. to send with the boats crews which board the enemy's vessels a sufficient number of crowbars, for the purpose of breaking up their water casks, leaving only water enough to carry them, on short allowance, into Bahia, to which port you are to order them immediately to return.

Their papers being essential to the justification of this or any other hostile act, the boarding officer will take especial care to secure them.

COCHRANE.

In addition to this, the masts of all troopships which might be boarded, were directed to be so far cut away as to prevent their escape—a written order instructing them to return forthwith to Bahia, on pain of being treated with great severity if found on any other course. Singular as the order may appear, it was in most cases obeyed, and thus the captured vessels navigated themselves into our hands.

The Portuguese squadron consisted of *Don Joaõ*, 74; *Constitucaõ*,50; *Perola*, 44; *Princeza Real*,28; *Calypso*, 22; *Regeneracaõ*, 26; *Activa*, 22; *Dez de Fevereiro*, 26; *Audaz*, 20; *S. Gaulter*, 26; *Principe do Brazil*, 26;

Restauracaõ, 26; *Canceicaõ*, 8; with between sixty and seventy merchant vessels and transports filled with troops.

As soon as they were clear of the port, we fell upon the rearmost ships, disabling their main and mizen masts, so as to render it difficult for them to sail otherwise than before the wind, which would carry them to the Brazilian coast, and ordering them back to Bahia. The flagship and the *Maria de Gloria* then resumed the pursuit, but the latter being employed in looking after the prizes, on the following morning we were alone amongst the enemy's convoy.

The next day, July 3rd, the *Carolina* and *Nitherohy* came up, as did also the *Colonel Allen*. The frigates captured a number of merchantmen mostly filled with Portuguese families—these unfortunate people finding to their cost that my warnings were not empty threats, though they had no doubt been led to ridicule the remonstrance by a misplaced confidence in the protection of their national squadron. Many prizes were taken, and as evening closed the frigates dropped out of sight with the captured vessels.

It would have been easy for the flagship also to have taken prizes, but about this I cared nothing,—my great object being to prevent the enemy from landing troops elsewhere, and with this view I determined on closely following the ships of war and transports—leaving the Brazilian frigates to exercise their own discretion in disabling the convoy. It may be considered an act of temerity for one ship of war thus to chase thirteen; but, encumbered as they were, and, as I knew, short of provisions, I felt assured of accomplishing my object.

The enemy—being greatly annoyed at our perseverance in following, and still more so at the loss of so many of the convoy—on the morning of the 4th, gave chase to the flagship with the whole squadron, endeavouring to hem her in, and at one time we were pursued so closely inshore, that there

was some danger of getting embayed, but the handling and superior sailing qualities of the *Pedro Primiero* enabled her to out-manoeuvre them and get clear. On seeing this, the Portuguese squadron, finding further chase unavailing, gave us a broadside which did no damage, and resumed its position in the van of the convoy, to which we immediately gave chase as before, and as soon as night set in, dashed in amongst them, firing right and left till the nearest ships brought to, when they were boarded—the topmasts cut away—the rigging disabled—the arms thrown overboard—and the officers compelled to give their *parole* not to serve against Brazil until regularly exchanged—an event not likely to happen.

Keeping well up with them on the 5th—as soon as night set in, this mode of attack was repeated, when we took a Russian vessel filled with Portuguese troops, and disabled her in like manner. Of the merchantmen within reach we took no notice, as it was impolitic to weaken the crew of the flagship by manning prizes, whilst, as we saw nothing of the remainder of the Brazilian squadron, there was no other means of preventing their escape.

The prudence of preserving the crew of the flagship entire, was now well exemplified. After taking possession of the Russian transport, at dusk, I observed half-a-dozen large ships detach themselves from the main body of the convoy, and suspecting some valid reason for the movement, immediately gave chase. Though they crowded all sail, we came up with them on the following morning, and singling out a large frigate-built ship, filled with troops, we fired upon her till she brought to. On boarding, we found her to be the *Gran Para*, containing—with the others—a division of several thousand troops, destined to maintain Portuguese authority in the province of Maranham—as, indeed, I had been informed at Bahia. The private signals and instructions of the Portuguese admiral—obtained by

Flag-Lieutenant Grenfell from her captain—put me in possession of the whole arrangement, which was thus luckily frustrated.

As it was of importance not to let any of these troopships escape, Captain Grenfell was ordered to disable the *Gran Para*, cutting away her main and mizen masts, throwing the arms and ammunition overboard, taking possession of the regimental flags, and compelling the officers, as before, to give their *parole* not to serve against Brazil. This done, the other transports were successively boarded and disabled, so far as was consistent with not leaving them positive wrecks on the water; for with my single ship, to have made prisoners of so numerous a body of troops was manifestly impossible.

The brig *Bahia* having opportunely hove in sight, I seized four of the vessels carrying troops, and ordered Captain Haydon to convoy them to Pernambuco, to the President of which province I addressed the following letter:—

Pedro Primiero, July 7th, 1823.

ILLUSTRIOUS AND EXCELLENT SIR,

> The abandonment of Bahia by the enemy, in consequence of the rigours of blockade—and the capture of half of his army, ensigns, artillery, and stores, are events which you will be gratified to learn. Part of the captured officers and troops I send in for your disposal, having engaged that they shall be treated after the manner which may justly be expected from the high character of the Government of His Imperial Majesty, and the customary practice of all European states. I have to request that you will be pleased to order their disembarkation without delay.

We require seamen to finish the war. If you will be pleased to grant the bounty of 24 dollars per man, as at Rio—charging the same to the Government—you will render an essential service to your country. I do not mean Portuguese seamen—who are enemies; but able seamen of any other nation, and I need scarcely say, that from my knowledge of the character of the men, I should prefer British seamen to all others.

I shall probably have the honour of shortly making myself known to you, but that depends on circumstances over which I have no control. If we can come in, permit me to observe, that it would be conducive to the health of my crew to have ready a supply of fresh provisions and fruits, especially lemons and oranges. I hope you will excuse my freedom in mentioning these things, as the health of the men is as conducive to the interests of the empire as are the ships of war themselves.

I have the honour, &c.

COCHRANE.

Sent by the *Balia*, Captain Haydon.

By the same opportunity I despatched the following to the Minister of Marine:—

ILLUSTRIOUS SIR,

I have the honour to inform you that half the enemy's army, their colours, cannon, ammunition, stores, and baggage, have been taken. We are still in pursuit, and shall endeavour to intercept the remainder of the troops, and shall then look after the ships of war, which would

have been my first object, but that, in pursuing this course, the military would have escaped to occasion further hostilities against the Brazilian Empire.

Such of the enemy's colours as we have had time to take away I have the honour to transmit, and to lay them at the feet of His Imperial Majesty, and shall shortly forward the remainder.

The vessels taken are large and beautiful ships, fast sailers, and resemble, in their appearance, ships of war.

The Portuguese squadron, and other vessels armed for war, I have every reason to believe are on their route for Lisbon. I have also fully ascertained that the troopships which separated from their squadron during the night were destined for Maranham.

I have the honour, &c.

COCHRANE.

The Minister of Marine.

The pursuit was now resumed, but the weather becoming hazy, we saw nothing of the enemy till the 11th, when they appeared to have recovered the *Gran Para*. As it became calm, nothing could be done till the 14th, when we crossed the Equator in Long. 33-30, making straight for the ships of war, but finding them well together, considered it prudent to defer an attack till they should become separated.

On the 15th they continued united, giving us no opportunity for mischief, yet not venturing to attack us, though only one ship to thirteen. At 3 A.M. on the 16th, we crowded sail and went in amongst them, firing a broadside within half musket shot at one of the frigates with evident effect, as, from

the damage caused, they did not return our fire. Whilst tacking to give them the other broadside, our mainsail split in two, and night setting in, we relinquished the pursuit in 5 degrees North latitude.

My object in so doing was—that as we had only taken part of the troopships destined for Maranham, it was quite possible—as that port lay to leeward—that the remainder might even yet reach their destination; and as the Portuguese authority still existed in that—as throughout all the Northern provinces—they might again be armed and equipped. The instructions of the Portuguese admiral were, moreover, that, in case of separation, they were to rendezvous at the island of Fernando de Noronha, near which they were fallen in with some days afterwards; so that there were good grounds for anticipating the possibility of their yet reaching their original destination. Instead, therefore, of following the enemy's squadron farther, I thought we should better serve the interests of Brazil by proceeding direct to Maranham, with the double purpose of being beforehand with the enemy's troops, should the attempt be made—and, if practicable, reducing the province to the authority of the Emperor; a proceeding which, though not within my orders, was, as I conceived, nevertheless of great importance. Accordingly, quitting the Portuguese fleet and convoy, during the obscurity of night, we made straight for Maranham.

Thus were the Northern provinces entirely rescued from the designs of this armament, which—luckily for the consolidation of the empire—I had been enabled to frustrate; so that the cause of independence became free to develop itself throughout its whole extent. It is satisfactory to record the fact, that the whole military force was captured or dispersed, and its objects averted—by a single ship—without the loss of a man on our part—or the additional cost of a dollar to the Imperial Government; though, when we left Rio de Janeiro, it was believed that such objects could only be effected by costly naval and military expeditions combined.

During this chase, as I have said, it did not appear a national object to make captures, though many were secured—as officers and seamen must have been detached for the purpose, thereby diminishing our efficiency for the annexation of those provinces where the Portuguese authority was still intact; to accomplish which—though such result was not expected by the Government—I had formed plans during the pursuit. Considering that zeal for Brazilian interests would be better shewn by expelling the enemy which remained, I therefore refrained from taking possession of many valuable ships, otherwise completely at our mercy, *though not having done so—then (previous to my experience of the Court of Admiralty) seemed* a heavy pecuniary loss to myself, the officers, and crew. Such sacrifice should have secured us better treatment than we subsequently endured from the Administration of a country whose entire independence was thus obtained by our personal sacrifices.

The means of intimidation employed for the expulsion of the Portuguese from Bahia—the pursuit of the enemy's fleet—and the disabling of the troopships destined for Maranham—acts altogether in excess of the Imperial instructions—not only freed the Northern provinces from the enemy, but, as before stated, saved the Brazilian Government the delay, expense, and uncertainty of powerful expeditions.

These services—undertaken solely on my own responsibility—were productive of the most beneficial consequences to the future career of the Brazilian Empire, the integrity of which they secured at a blow, or it may rather be said, without a blow, for none of any magnitude was struck; the dread of the fireships and the certainty arising—from the nocturnal visit of the flagship on the 12th of June, that my plans for making use of them were completed—having determined the Portuguese Admiral to save his fleet by evacuating Bahia.

CHAPTER III.

CAPTURE OF THE DON MIGUEL—SUMMONS TO THE AUTHORITIES—REASONS FOR THREATS HELD OUT—PROPOSALS FOR CAPITULATION—PROCLAMATIONS—TERMS GRANTED TO PORTUGUESE GARRISON—DECLARATION OF INDEPENDENCE—PORTUGUESE TROOPS ORDERED TO EMBARK—SYMPTOMS OF DISOBEYING THE ORDER—DELIGHT OF THE PEOPLE ON BECOMING FREE—ELECTION OF A PROVISIONAL GOVERNMENT—LETTERS TO THE MINISTER OF MARINE.

On the 26th of July, the *Pedro Primiero* arrived in the river Maranhaõ, and—knowing from the Portuguese admiral's instructions found in the troopships overhauled in the chase, that reinforcements were expected—we hoisted Portuguese colours, with a view of inducing a belief that the flagship belonged to that nation, and had arrived in support of its cause. The authorities, deceived by this ruse, sent off a brig of war—the *Don Miguel*, Captain Garcaõ—with despatches and congratulations upon our safe arrival! but the commander of the brig was disagreeably undeceived by finding himself upon the deck of a Brazilian ship. The despatches put me in possession of the enemy's plans and intentions, and from them I learned that some reinforcements had already reached, independent of those which had been intercepted in the recent chase; thus shewing the great importance attached by Portugal to the preservation of the wealthy and influential province of Maranham.

To the surprise of Captain Garcaõ—now a prisoner of war—I offered to release him and his vessel on condition of his carrying sealed letters to the

Governor and Junta in the city—a proposition gladly accepted. Previous to his departure—by a fiction held justifiable in war, and, indeed, necessary under our peculiar circumstances, as having only a single ship to reduce a province—he was duly impressed by the relation of an imaginary number of vessels of war in the offing, accompanied by transports filled with troops, which the superior sailing of the flagship had enabled her to outstrip. Captain Garcaõ being a seaman and well able to judge as to the sailing qualities of the *Pedro Primiero*, was easily impressed with this story, and returned to the city with intelligence of an irresistible force about to disembark for its reduction.

My letters to the Governor and Junta were to the same effect; for—as before noticed—having only a single ship, it was necessary to impress on their imagination—that a fleet and army were at hand to add the province to Brazil. As this is the only instance within my knowledge of a military force surrendering itself and the province which it defended, to a stratagem of this nature, I shall append the documents by which a result so desirable was effected.

To Don Agostinho Antonia de Faria, the commandant, I wrote as follows:—

Pedro Primiero, July 26, 1823.

SIR,

> The naval and military forces under my command, leave me no room to doubt the success of the enterprise in which I am about to engage, in order to free the province of Maranham from foreign domination, and to allow the people free choice of government in the same manner as the inhabitants of Portugal have decided with regard to their constitution.

Of the flight of the Portuguese naval and military forces from Bahia you are aware. I have now to inform you of the capture of two-thirds of the transports and troops, with all their stores and ammunition.

I am anxious not to let loose the Imperial troops of Bahia upon Maranham, exasperated as they are at the injuries and cruelties exercised towards themselves and their countrymen, as well as by the plunder of the people and churches of Bahia. It is for you to decide whether the inhabitants of these countries shall be further exasperated by resistance which appears to me unavailing, and alike prejudicial to the best interests of Portugal and Brazil.

Although it is not customary amongst European nations to receive or respect flags of truce, being armed vessels, yet as a proof that we came here with objects far superior to the seizure of the brig of war just released, I have paid respect to the flag, in the hope that forbearance will facilitate that harmony which all must be desirous should exist between the government of the Royal father and that of the Imperial son; and in doing this, I only fulfil the gracious intentions of His Imperial Majesty.

Awaiting your early reply,

I have the honour, &c.

COCHRANE.

Don AGOSTINHO ANTONIA DE FARIA,
Commanding the Portuguese Forces.

The subjoined was at the same time despatched to the Provincial Junta;—

ILLUSTRIOUS AND EXCELLENT SIRS,

The forces of His Imperial Majesty the Emperor of Brazil, having freed the city and province of Bahia from the enemies of independence—in conformity with the will of His Imperial Majesty that the beautiful province of Maranham should be free also—I now hasten to offer to the oppressed inhabitants whatever aid and protection they need against a foreign yoke; desiring to accomplish their liberation and to hail them as brethren and friends.

Should there, however, be any who—from self-interested motives—oppose themselves to the deliverance of their country, let such be assured that the naval and military forces which have driven the Portuguese from the South, are again ready to draw the sword in the like just cause—and having drawn it, the result cannot be long doubtful.

The chief authorities are hereby invited to make known to me their decision, in order that the responsibility of consequences—in case of opposition—may not be imputed to any undue haste in the execution of the duty which I shall have to perform.

I have the honour, &c.

COCHRANE.

To the Illustrious and Excellent
The Provincial Junta of Maranham.

The reader may perhaps conclude, that the threats held out are somewhat inconsistent with my only having a single ship, without a soldier in her; and I must even confess to some compunction at this off-hand sketch of an imaginary fleet and army—but the matter was of the last importance. On

the one hand, if my demands were vigorously pressed, there was a strong probability of obtaining them without bloodshed; but, on the other hand, if any delay took place, the enemy would, in a day or two at most, find out that the only force was the flagship, when the acquisition of Maranham would be impossible. The sensation caused by the evacuation of Bahia gave probability to my representations, and added to the despondency of the Portuguese, so that the *ruse* was completely successful.

Proposals of capitulation were immediately returned; but, as these were only conditional, I refused to accept them. In order to enforce the terms proffered, we entered the river—never before navigated by a line-of-battle ship—and anchored the *Pedro Primiero* abreast of the fort. On the following day, July 27th, the Junta, accompanied by the bishop, came on board, and gave in their adherence to the empire, after which the city, forts, and island, were unconditionally surrendered, though not without subsequent hesitation, which was dispelled by firing a shot over the town, whereupon a flag of truce was sent off, and all demands were complied with. Landing a party of marines for the maintenance of order, the Portuguese ensign was hauled down by Lieutenant Grenfell, who hoisted Brazilian colours in its place.

Thus, without military force or bloodshed, was a second great province secured to the empire, neither result being anticipated, nor even contemplated in the orders communicated to me, which were to blockade the Portuguese in Bahia, and capture or destroy all ships met with—anything beyond this not having entered the imagination of the Government.

As—considering the circumstances in which I was placed—there was no time to be lost in completing the declaration of independence, I addressed the subjoined instructions to the civil authorities:—

Pedro Primiero, July 27, 1823. MOST EXCELLENT SIRS,

It affords me the highest satisfaction that your Excellencies have adopted a course by which all hostilities may be avoided, and the tranquillity and prosperity of this province peaceably established upon a secure and permanent basis. The declaration of the independence of Brazil under His Imperial Majesty will at once tranquillise the public mind, and give opportunity to the worthy and patriotic inhabitants to proceed afterwards with a due formality and deliberation to take the oaths, and elect their provisional government. To-morrow, therefore—being the earliest possible day—it maybe well that the said declaration shall be made taking every necessary precaution that the public peace shall not be disturbed by individuals under any pretence.

(Signed) COCHRANE.

To the inhabitants generally I issued the following proclamation:—

THE FIRST ADMIRAL OF BRAZIL TO THE INHABITANTS OF MARANHAM.

The auspicious day has arrived on which the worthy and public-spirited inhabitants of Maranham have it in their power at once to declare the independence of their country, and their adherence to their patriotic monarch, Pedro Primiero, whose protection has afforded them the glorious privilege of freemen—that of choosing their constitution and enacting their laws by their own representatives assembled to decide upon their own affairs in their own country.

That the glory of this day may not be tarnished by any acts of excess—even proceeding from enthusiasm for the cause in which we have embarked—must be the wish of every honourable and well-

judging citizen. To these it would be superfluous to offer any advice as to their conduct; but should there be any who, from whatever motives, would disturb public tranquillity, they are hereby warned that the strictest orders are given to bring those guilty of disturbance to the punishment their crime shall deserve.

Taking the necessary oaths, and the election of civil government, are acts which must be deliberately performed, and for this, the 1st of August is selected. Citizens! let us proceed gravely and methodically, without tumult, haste, or confusion, and let the act be accomplished in a manner worthy the approbation of His Imperial Majesty, and which shall give no cause for regret, and leave no room for amendment.

Long live the Emperor, and the Independence and Constitution of Brazil.

(Signed) COCHRANE.

To the garrison of Maranham, liberty was granted to remain or depart, as they chose; in the latter case, free egress to Europe being permitted, with ensigns, arms, and military honours. Of the vessels of war we took possession, giving to the officers and men, the option of entering the service of Brazil, or accepting the conditions conceded to the army.

As the Brazilian people will naturally be interested in all that led to the completion of the integrity of the empire, the terms granted to the Portuguese garrison are subjoined.

Pedro Primiero, July 27, 1823.

MOST EXCELLENT SIR,

In reply to your letter of this date, I beg leave to assure you, first, that my utmost endeavours shall be used to protect the persons and property of the citizens of Maranham—with the exception of such species of property as, being proved to belong to a hostile party, shall become, according to the laws of war, subject to the decision of the tribunals of His Imperial Majesty; that the same leniency with respect to all past political opinions shall be used as has been observed under the constitutional government of His Most Faithful Majesty John VI.; and that all persons desiring to remove shall be at liberty to do so, under the usual formalities.

Secondly,—You are at liberty either to depart to any other country, or to remain in this.

Thirdly,—The commanding officers, superior officers, and soldiers of the Portuguese nation, shall be free to retire to their native country, or to any other quarter; and shall be permitted to embark with their ensigns, arms, and military honours.

As independence is to be declared to-morrow, and as the vessels of war now in the port bear the ensigns of Portugal—and as I believe the necessary authority is vested in you, I have to request that you will order that ensign not to be hoisted on board the said vessels, in order that the substitution of that of Brazil may be made in the manner least offensive to the feelings of the officers—all, or any of whom may remain with their men in the service of Brazil, or may consider themselves under the third article relating to the army.

I have to express my regret at your indisposition, which has deprived me of the pleasure of seeing you; but, if circumstances permit, I shall avail myself of an early opportunity of paying you my personal respects.

(Signed) COCHRANE.

To DON AGOSTINHO ANTONIA DE FARIA,
General-at-Arms of Maranhaõ.

On the 28th the declaration of independence was made amidst the acclamation of the inhabitants generally—those who were adverse to the measure not venturing to make any demonstration to the contrary.

Still it was important to get rid of the Portuguese troops before they found out the *ruse* which had been practised upon them; for, three days having now elapsed without any appearance of my reputed forces, there was some fear that they might attempt to recover their former position. Accordingly I addressed the following letter to General de Faria:—

Pedro Primiero, July 29, 1823.

MOST EXCELLENT SIR,

The declaration of independence having been formally made, and His Imperial Majesty being declared constitutional Emperor of Brazil by acclamation of the worthy people of Maranham—which important event has happily taken place, not only without disorder, but, to the honour and credit of the inhabitants, with the greatest harmony and regularity—it now becomes my duty, as military chief under his Imperial Majesty, to take care that no military interference or intimidation shall in any way overawe or influence the choice of the inhabitants in the election of their provisional government. I have, therefore, to request that you will be pleased to direct all the Portuguese troops who intend to avail themselves of the third article of the stipulations entered into with regard to the military to repair to

the place appointed, and there await the preparations which I shall immediately make for their transportation to Lisbon.

I have also to beg that you will he pleased to furnish me with a correct list of those who desire to depart, and also of those who choose to remain and take the oaths as Brazilian citizens.

I have, &c. &c.

COCHRANE.

To Gen. A.A. DE FARIA.

These instructions were promptly complied with by the Ex-Commandant, and no time was lost in providing ships for the reception of the Portuguese troops who wished to avail themselves of permission to sail for Lisbon. This leniency was scarcely deserved, for the Portuguese authorities had filled the gaols with respectable Brazilian citizens, who were treated with great severity; but, for obvious reasons, I was desirous to get rid of the Portuguese on any terms.

The next step was to provide for the proper administration of government, and this—from the factions which were afterwards found to exist—was a work of infinitely greater difficulty than had been the acquisition of the city. Some of the more influential inhabitants, however, offering their services, I formed them into a provisional Junta, until a more popular Government could be provided.

Municipal security being thus attained, the Portuguese troops were embarked, on the 1st of August, though not without some difficulty, for, from the non-arrival of my supposed fleet and army, some amongst them began to suspect that a deception had been practised, and many—backed by

the militia—refused to embark. Upon this, a notice was issued that if the treaty were not instantly complied with, such steps should be taken as would render unnecessary the stipulation of safe conveyance to Europe, as I was determined that a solemn engagement should not be violated with impunity. This, as a great portion of the troops were actually on board, and within reach of the flagship's guns, produced the desired effect on the refractory troops ashore, though not till I was compelled to send Captain Crosbie with a large party to enforce compliance and to disarm the militia, both of which objects he effected without bloodshed.

The embarkation being accomplished, and the foreign portion of the militia disarmed, so as to leave the city in the hands of the civil authorities—on the 2nd of August, I issued a proclamation declaring the commerce of the coast free and uninterrupted; following this, shortly afterwards by another, declaratory of my willingness to accept from consignees and others, two-thirds of the estimated value of Portuguese property liable to confiscation—in place of sending the captured vessels to Rio de Janeiro; which—from the state of the city, as well as from want of seamen to man them—was impossible.

To the inhabitants of the city I had been careful to accord complete liberty, exacting, in return, perfect order, which was preserved, and property of all kinds respected; the delight of the inhabitants being unbounded at having been freed from a terrible system of exaction and imprisonment, which, when I entered the river, was being carried on with unrelenting rigour by the Portuguese authorities towards all suspected of a leaning to the Imperial Government. Instead of retaliating—as would have been gratifying to those so recently labouring under oppression—I directed oaths to the Constitution to be administered, not to Brazilians only, but also to all Portuguese who chose to remain and conform to the new order of things; a

privilege, of which many influential persons of that nation availed themselves.

On the 1st of August the inhabitants of Alcantara made a declaration of adherence to His Imperial Majesty, notwithstanding a report sedulously circulated amongst them that the Portuguese troops at Maranham were about to recover the city. An assurance from me, that the Portuguese troops were embarked, and were under the guns of the flagship, as well as the fire of their own gunboats, which could be turned against them, and that the European militia was disarmed, speedily dispelled all grounds for alarm.

The proceedings of the temporary Provisional Junta being unsatisfactory, especially as regarded their desire for retaliation on the Portuguese, I determined to embody a more popular Government, though, as yet the election would, of necessity, be confined to the inhabitants of the city only. Accordingly on the 8th of August, in less than a fortnight after my first appearance off the port, a Provisional Government was chosen by the population, and the city and province were incorporated with Brazil, with the national advantage of adding nearly a million of dollars to the annual revenue of the empire; and this without the expense of another expedition to the Government, or the loss of time which would have been necessary, and might, had the reinforcements intercepted, gained their destination—have ended in a different result to the integrity of the empire.

The first act of the new Government was to address a congratulatory letter to His Imperial Majesty, explaining that they should long before have espoused the Imperial cause, but from fear of the Portuguese troops. The following is an extract from this letter:—

> What was our joy when unexpectedly we saw the *Pedro Primiero* summoning our port. Oh, 26th of July, 1823! Thrice happy day, thou wilt be as conspicuous in the annals of our province, as the sentiments

> of gratitude and respect inspired by the illustrious admiral sent to our aid by the best and most amiable of monarchs will be deeply engraven on our hearts and on those of our posterity. Yes! august Sire! the wisdom, prudence, and gentle manners of Lord Cochrane have contributed still more to the happy issue of our political difficulties than even the fear of his force. To anchor in our port—to proclaim independence—to administer the oaths of obedience to your Majesty—to suspend hostilities throughout the province—to provide proper government—to bring the troops of the country into the town, but only in sufficient numbers to ensure order and tranquillity—to open the communication between the interior and the capital—to provide it with necessaries—and to restore navigation and commerce to their pristine state—all this, Sire, was the work of a few days. Grant Heaven, that this noble chief may end the glorious career of his political and military labours with the like felicity and success, and that your Imperial Majesty being so well served, nothing more may be necessary to immortalise that admirable commander, not only in the annals of Brazil, but in those of the whole world.

A large amount of government and public property in the several departments was seized, in conformity with the Imperial proclamation, and an addition made to the Brazilian navy of a brig-of-war, the *Don Miguel*, a schooner, and eight gunboats—besides merchant vessels, some of which were appropriated to the conveyance of the late garrison to Lisbon, under engagement to restore their value—a stipulation which was never fulfilled.

Everything being thus satisfactorily settled, my next step was to inform the Minister of Marine at Rio de Janeiro of the extraordinary means by which possession of the city and province of Maranham had been obtained; the subjoined letters were accordingly despatched.

(Secret.) *Pedro Primiero*, August 8, 1823.

MOST ILLUSTRIOUS SIR,

Your Excellency will perceive by the official documents accompanying this, that in order to effect the objects I had in view at Maranham, I judged it expedient to create a belief amongst the people and garrison, that a large force was at my disposal, and therefore I used expressions in my public correspondence that were not borne out by the actual circumstances under which I summoned that city, as I had—in fact—no other force than this ship alone, which from the nature of the anchorage could scarcely approach within gunshot—whilst there was neither a soldier nor effective marine on board; but the fear entertained by the hostile Government of Imperial troops from Bahia, whom they understood to be off the bar with the remainder of the squadron, and the sudden appearance of so large a ship as this, produced the effect which I had anticipated, and it is with the greatest satisfaction that I now communicate the occupation of this important city and province, which has been accomplished without effusion of blood, or material disturbance.

As soon as I have completed the necessary arrangements here, I propose to return to Rio de Janeiro, and to have the honour personally to inform you of all particulars.

I have, &c.

COCHRANE.

Minister of Marine.

With this was transmitted the following official document:—

Pedro Primiero, Aug. 8, 1823.

MOST ILLUSTRIOUS SIR,

I had the honour to inform your Excellency by letter, off Pernambuco, that we had captured transports containing a moiety of the enemy's army—that we were in pursuit of the remainder—and that I hoped for further success. I have now to acquaint your Excellency that, having followed the enemy's squadron to the fifth degree of North latitude beyond the line, until, by capture and dispersion, their convoy was so reduced that only thirteen vessels out of seventy remained with the ships of war, and as the latter were evidently steering for Lisbon, and were too strong to be attacked with success by this ship alone—for the remainder of the Brazilian squadron had separated in the chase—I judged it advantageous for the interests of His Imperial Majesty's service, to discontinue the pursuit, and to proceed, with all possible despatch, to Maranham, where I arrived on the 26th ultimo.

I have the happiness to acquaint you, for the satisfaction of the Imperial government, that Maranham is now united to the Empire, the inhabitants having proclaimed their independence of Portugal on the 28th, and elected their provisional government this day. I have embarked the Portuguese troops for Europe, and the militia are disarmed.

I have the honour to enclose a copy of the correspondence which has taken place on the occasion, with other papers and documents. We have found here a fine brig of war—a schooner—eight gunboats, and about sixteen sail of Portuguese merchant vessels. Amongst the other advantages of this important event may be mentioned, that while the expense of an express expedition has been saved, an addition of

nearly a million of dollars is made to the revenue of His Imperial Majesty.

I have manned and sent the brig of war to Parà, to summon that city—offering to the enemy the same terms as we have granted here. The beautiful new frigate, lately launched at Parà, has not sailed for Portugal, and I am in expectation that the next account which I shall have the honour to send or bring to your Excellency, will communicate the pleasing intelligence that His Imperial Majesty has no enemy, either on shore or afloat, between the extremities of his empire.

I have, &c.

COCHRANE.

The Minister of Marine.

CHAPTER IV.

CAPT. GRENFELL SENT TO SUMMON PARA—THE JUNTA DEMANDS THE PRIZE PROPERTY—MY REFUSAL—IMPERIAL APPROVAL OF MY SERVICES—REALISATION OF PRIZE PROPERTY—TURI ASSU SENDS IN ITS ADHESION—MONEY CAPTURED LENT TO THE JUNTA—ITS RETURN TO THE SQUADRON EXPECTED—POSSESSION TAKEN OF PARA—INSURRECTION AT PARA—MISCONDUCT OF THE MARANHAM JUNTA—THEIR PERSECUTION OF THE PORTUGUESE—STEPS IN CONSEQUENCE—MANIFESTATION OF THE NATIONAL DELIGHT—THE MARQUISATE CONFERRED ON ME—VOTE OF THANKS BY THE ASSEMBLEA GERAL—MY ARRIVAL AT RIO DE JANEIRO—SATISFACTION WITH MY SERVICES—LADY COCHRANE JOINS ME.

As the province of Parà was now the only one which remained under the authority of Portugal, it became of importance to take possession of it, whilst the *prestige* arising from our acquisition of Maranham was in all its freshness; for we had still no other force than the flagship, which was necessary to maintain order there. In the absence of a Brazilian ship-of-war, I manned the captured brig *Don Miguel*—changing her name to the *Maranhaõ*—and placed her under the command of an able and gallant officer, Captain-Lieutenant (now Admiral) Grenfell, upon whose judicious management every reliance was to be placed.

Captain Grenfell was the bearer of a summons from me to the Junta and garrison of Parà, dated off the bar, as though a force were at hand to second his operations. In short, he was instructed to employ the same *ruse* for intimidating the city as had been so successful at Maranham—the summons as well as the terms to be granted to the Portuguese garrison being similar

in both cases. He was further instructed to secure, if possible, the new frigate which had just been launched for the service of Portugal, and if successful, to name her the *Impératrice*, in honour of the Empress—to take command of her—and after the submission of the city to return to Rio de Janeiro with his prize. The nature of Captain Grenfell's mission will be apparent from the following extracts from the orders given to him:—

> The enclosed orders in Portuguese you may show. They purport to be addressed to you at the mouth of the river Parà, and to be there dated on board this ship, she being supposed at anchor there; for it is essential to create a belief in the Government at Parà that you do not come alone, but that the squadron is at hand ready to cooperate. You will therefore fill up the date of the Portuguese orders on the day of your arrival at the mouth of the river. You will also fill in the dates of the official letters to the Junta, at the same time, without regard to the delay which may arise, from proceeding up the river.
>
> You will perceive that my intentions are to effect, by your means, objects *which would otherwise require an expedition*, and therefore the utmost prudence and circumspection are necessary. Next to the liberation of Parà, the great object is to secure the frigate. If you succeed in obtaining possession of her, and find yourself deficient in men, you are at liberty to leave the brig for the purpose of manning the frigate. I expect everything from your exertions and good management in bringing about the surrender of Parà, with all that is important to His Brazilian Majesty.

To return to the state of affairs at Maranham. One of the first acts of the new Junta—despite their professed admiration of the course I had pursued—was to transmit to me a demand that the property taken from the Portuguese should be placed *at their disposal*. My surprise at such a request

from men whom I had unexpectedly released from thraldom, and elevated to power, ceased as I became better acquainted with the factions existing amongst them. Now that they were invested with power, they were evidently bent on turning it to their own private advantage, by representing to me that if I retained the property of Portuguese in Maranham—that of Brazilians in Lisbon, viz. *their own mercantile consignments*—would be confiscated in retaliation, and that, therefore, I ought to restore it!

To this I replied, that the captures made by the flagship were strictly in accordance with the decrees of His Imperial Majesty, no less than with the rights of belligerents as defined by the laws of nations; so that their request was directly opposed to the Imperial decrees against all the subjects of Portugal, as well as against all who should contribute to continue the Brazils under a foreign yoke. The Junta was reminded that it was within my power to have imposed upon the Portuguese authorities whatever terms I thought proper, but having granted those I had judged best for the interests of the empire to which I was bound, I would adhere to the treaty as it stood, and should any attempt be made to evade it, it would be my duty—however painful—to enforce its fulfilment, as being responsible to His Imperial Majesty.

This specimen of patriotism in a body of men who little more than a fortnight before were imprisoned or in expectation of imprisonment, but now—to save their own interests in Lisbon—sought to set His Majesty's decrees and my instructions alike at defiance, inspired me with deep distrust of their fitness for the Government of the province—it being evident that if the flagship quitted the port, they would construe the functions of Government in favour of their own private purposes. I accordingly wrote to the Prime Minister, Andrada, representing the course which had been pursued—concluding with the subjoined advice as to the steps to be taken in order to place the future Government on a right basis:—

I beg, through your Excellency, to suggest most respectfully to His Imperial Majesty my opinion that it would greatly conduce to the peace and prosperity of this province, if some able and honourable person should be sent to take the chief authority; for—with all respect to the individuals composing the new Junta, and to those from whom succeeding Juntas might be chosen—none appear to me to possess either the talents or acquirements necessary for the good government of Maranham. I may also add that family connections, together with private and political friendships, no less than enmities—exist here to a degree which can hardly fail to involve the province in internal dissensions, unless averted by the means which I respectfully suggest.

I had shortly afterwards the pleasure of receiving the following expressions of satisfaction from His Imperial Majesty through the Prime Minister:—

Rio, July 12, 1823.

MOST EXCELLENT SIR,

I have received the secret communications with which you have favoured me, whereby I learn in detail the distinguished conduct which you have pursued since quitting this port, and the various difficulties with which, (to my regret) you have had to contend. These are, however, of such a nature as to be irremediable in our present circumstances; but let us hope they will vanish when the empire is consolidated.

Meanwhile your Excellency—being no less a politician than a warrior, and enjoying to the utmost the confidence of His Imperial Majesty—is fully empowered to adopt whatever means your judgment may suggest to facilitate the important objects of your

commission. On this subject, I also refer to the Imperial authority and other documents addressed to you in reply to your communications.

I beg to add my personal thanks for the interesting communications with which you have favoured me, of which I shall avail myself in order to accomplish the objects desired to be effected.

Be assured of the particular esteem and high consideration
with which I am,

De V. Exa.
Attento venerador e criado,
JOZE BONIFACIO DE ANDRADA E SILVA.

The Junta continuing its unreasonable demand, the moveable property captured was embarked on board the *Pombinho*, and another vessel—both prizes—for the purpose of being sent to Rio de Janeiro for adjudication. I then directed the Provisional Government to furnish me with an account of all money found in the treasury, customs, military chest, and other departments; also of all military stores in the various forts and magazines and of government property of every description, such property having been wholly awarded to the captors by Imperial decree of the 11th of December, 1822, issued to induce foreign seamen to enter the service.

On the 20th of August the Portuguese troops were ordered to depart for Lisbon—Maranham being thus entirely freed from the presence of the armaments upon which the mother country had relied for the maintenance of her Northern provinces; this result, wholly unexpected by the Imperial Government or the nation, having been accomplished within the space of a few months, by measures adopted on my own responsibility.

Still numerous vessels and much perishable property taken from the enemy, remained on hand—with which it was difficult to deal. From having manned the captured brig-of-war, *Don Miguel*—as well as the prize vessel, *Pombinho*, from the crew of the flagship, it was not expedient further to reduce her efficiency; so that there were no means of forwarding the other prizes and property to Rio de Janeiro for adjudication. I therefore apprised the Minister of Marine, that the only course circumstances would permit me to pursue—though not perfectly regular—would be to dispose of them and remit to the Government in specie the amount realised; as, in case of my departure from Maranham, they were certain to be improperly appropriated. Accordingly, an offer was again made to the merchants, to accept two-thirds of their value in specie, and to submit the amount to the further decision of the Court of Admiralty, I little anticipating at the time the anti-Imperial predilections of the members composing the prize tribunal at Rio de Janeiro.

The amount of the seizures effected by the squadron was very considerable, comprising upwards of a hundred and twenty vessels, some of which contained important cargoes. The aggregate amount of these—together with merchandise found in the Custom-house—Government and other public property and stores—was several millions of dollars, and this by His Imperial Majesty's decree of the 11th of December, 1822—promulgated to attract foreign seamen into the Brazilian service—was, as before mentioned, the property of the captors; the Imperial Government, by that decree, disclaiming all share in it,—a stipulation afterwards remorselessly violated.

On the 25th of August, the province of Turi Assu sent in its adhesion to the Empire, this favourable circumstance being however counteracted by the arrival of deputies from the troops of Cearà and Piahuy, reporting their revolutionary tendency, and demanding payment for their previous service;

the Piahuy troops—consisting for the most part of Indians recruited in the interior—even threatened to march upon Maranham and enforce their demand, although they had rendered no assistance. The Junta, alarmed at this demonstration, now forwarded to me a request that I would appropriate some portion of the captured property to satisfy the importunity of the mutinous troops.

Considering that the tranquillity of the province in a great measure depended upon silencing these troops—who were not only clamorous and menacing, but in a state of nakedness and destitution—which rendered it probable that they might help themselves at the expense of the inhabitants—I consented to the application of the Junta, placing at their disposal the monies taken in the Portuguese treasury, amounting in cash to Rs.62.560 $423 (60,560 dollars); that found in the custom-house, to the amount of Rs.54.167 $877 (54,167 dollars); and outstanding bills to the amount of Rs.147.316 $656 (147,316 dollars); making in the whole Rs.264.044 $776 (264,044 dollars): accounts of these sums, and the urgency of their appropriation to the necessities of the public service, being duly forwarded to the Minister of Marine at Rio de Janeiro.

These sums are thus minutely set forth, because it has been erroneously represented that sixty contos of reis alone (60,000 dollars), were given up to the Junta, though reference to the vouchers themselves would have dissipated this error, which will be found to have an important bearing upon a subsequent part of the narrative. It may be also necessary to explain how "outstanding debts" could be owing to the Government. Contrary to the English practice of paying duties to the revenue, before goods are cleared from the custom-house, it was the habit of the Portuguese authorities to permit their clearance on receipt of bills to be paid after the goods were disposed of; hence merchants became indebted to the Government in the amount of such engagements.

It was impossible to avoid assisting the Junta, in the extremity alluded to, as the neglected troops might have caused a dangerous *émeute*, which would have proved injurious to the interests of His Imperial Majesty.

The assistance rendered to the Junta was given at the expense of the officers and seamen, to whom the money of right belonged, and who looked for its repayment as soon as circumstances would permit. On this subject I wrote as follows to the Minister of Marine:—

Maranham, Aug. 26, 1833.

MOST EXCELLENT SIR,

> Since I had the honour of addressing you deputies have arrived from the troops of Cearà and Piahuy soliciting payment for their services. The provisional Junta of Maranham have requested my assistance in this object, and as I consider the tranquillity of this province to depend in a great measure on the speedy payment of these forces, I have placed at the disposal of the Junta various funds arising from the capitulation of this place. This will doubtless be considered by the seamen—who are the captors—as an unwarrantable sacrifice of their rights in favour of mutinous troops, who have effected nothing; but feeling confident of support from the Imperial Government on a matter so essential to the public interest, I have had no hesitation in assuring the seamen that they *will not be losers by their captures being, in the first instance, applied to the relief of the immediate exigencies of the State.*

(Signed) COCHRANE.

On the 30th of August, I had the satisfaction to learn from Captain Grenfell that his mission to Parà had been completely successful, the

frigate, together with another vessel of war, having been secured, the former being, by my previous directions, named the *Imperatrice*, and added to the Imperial navy; several merchantmen were also taken and sent to Rio de Janeiro.

The summons despatched by Captain Grenfell was—as has been said—based upon the same *ruse* as had been so successful at Maranham. In order to produce a more decisive effect, it had been dated off the mouth of the river, as though the squadron was there at anchor to compel submission to the Imperial Government. The plan was so ably conducted by the talented officer to whom it was entrusted, that although his force consisted of less than a hundred men, the inhabitants of Parà, without a dissentient voice—save that of the Portuguese commandant—pronounced their adhesion to the Government of His Imperial Majesty, and thus a province, greater in extent than France and England combined, was added to the empire, and the independence of Brazil effected to its Northern extremity.

The only blood shed in the liberation of Parà, was that of Captain Grenfell, who received a severe wound, treacherously inflicted by a Portuguese who was hired to assassinate him! This cowardly act was resorted to, on the discovery—when too late—that I was not in the river, as the Portuguese authorities had been led to believe.

The subjoined is Captain Grenfell's letter announcing the success of his mission:—

H.I.M.B. Maranham,

August 12, 1833. (Off Parà.)

MY LORD,

> I have the honour to inform your Lordship that your hopes of the union of Parà to the empire of Brazil are verified. Agreeably to your Lordship's instructions, and in virtue of the power conferred on me, I opened the communications with the Junta, and enclose a letter from the General-at-Arms to your Lordship, and am glad to inform you that his is the only dissenting voice. I shall pursue the tenor of your Lordship's instructions until further orders.

I have the honour, &c. &c.

J. PASCOE GRENFELL.

I had directed Captain Grenfell—in case of a declaration of independence by the inhabitants of Parà—to form a Junta, and to adopt generally the same course as had been so instrumental in preserving tranquillity at Maranham; giving him, moreover, power to employ the resources at his command in supplying the exigencies of the Imperial service generally, as might be necessary. A Provisional Government was accordingly formed, though not to the satisfaction of a number of refractory persons, who, on the pretence of adhesion to the Imperial Government, connected themselves with a body of undisciplined troops, and made an attempt to depose the newly constituted Junta, which applied to Captain Grenfell for support. Landing his men, the insurrection was with some difficulty put down; but as an ill feeling still prevailed, he considered it necessary to make an example by ordering the trial of five of the ringleaders, who, being condemned, were shot in the public square.

On the 9th of September, I apprised the Junta of Maranham of my intention to proceed to Parà, though—being without instructions from the Administration, I really purposed to sail for Rio de Janeiro; for as the Provisional authority temporarily established was not, by any means conducting public affairs in a satisfactory manner, I thought it as well to

keep them in ignorance of our real destination, in order that they should believe me within reach, till the Imperial Government might exercise its own discretion as to the future.

The Junta of Maranham, indeed, appeared to have no other object than to shew how liberty suddenly acquired could degenerate into despotism. It was, for the most part, composed of men, who were not only united by family connections and private friendship, but who were nearly allied, as members of one influential family. No sooner had they been invested with power, than they dismissed all civil and military officers, and filled the vacant situations with their own friends, relations, and dependents, without consideration as to their talents or qualifications, thus equally exciting discontent amongst the Brazilians—who were excluded, and the Portuguese—who were dismissed.

Their chief aim was to maintain themselves in power against the will of the people, who, now that tranquillity had been restored, desired a free and general election of a Constitutional Government throughout the province, in place of that which, of necessity, had been confined to the city only. To put down what they considered disaffection—towards themselves—the Junta brought into the city a large body of irregular troops, intending, by means of these, to gratify their resentment against the resident Portuguese, who, having taken the oaths of allegiance to the Imperial Government, were entitled to protection. It appeared, moreover, that the Junta and their friends owed large sums of money to some of the more wealthy and influential Portuguese, and that they intended to get rid of their debts, by the expulsion of their creditors.

As it was sufficiently clear that the Junta was determined not to be advised, it became my duty to avert the evils in contemplation, by expediting the change of administration so much desired by the people.

Therefore, on the 12th of September, I transmitted to the Junta, an order for the election of a more comprehensive Government, as they were only intended to remain in power until a general election throughout the province could conveniently take place. Satisfactory as was this measure to the public, it was anything but agreeable to the despotic body, at whose ill-advised measures it was aimed; their resource being to increase the ferment amongst the soldiery brought into the city to uphold their authority, and who—partly from motives of revenge, but more from the hope of plunder—were eager to execute the hostile intentions of the Junta against the Portuguese.

An attempt to arrest the president of the Camara, Senor Luiz Salgado, by the General-at-arms—who had reason to suspect Salgado of intriguing to remove him from office, gave a pretext for disturbance. On the night of the 14th of September, the troops rose and plundered many Portuguese houses, compelling their owners to fly for safety to neutral and other vessels in the harbour. They then deposed the General-at-arms, and chose Salgado in his stead, a proceeding which was next day confirmed by a decree of the Junta, in conjunction with the Camara.

Addressing a letter to Salgado, I firmly refused to acknowledge him as commandant, telling him, at the same time, that his only means of being recognised as a Brazilian citizen, was by allaying the ferment he had contributed to raise. I wrote also to the Junta and Camara, threatening to act in a decisive manner, if these disgraceful scenes were not instantly put an end to, pointing out to them that, as they were the chief proprietors of houses and stores, so they would be the greatest sufferers from anarchy. This step checked the disturbance, but the Junta granted the riotous military a gratuity, levied on the Portuguese who had been attacked. The more respectable of whom soon after quitted Maranham in disgust.

It must, however, be stated that these disorders admitted of some palliation, from the consideration that hundreds of Brazilians had been transported to Lisbon, by the Portuguese authorities, when in power; whilst hundreds of others were on my arrival imprisoned at Maranham, in the gaols and vessels in the harbour. On my entrance into the city, I released numbers of these, and saved many others from impending incarceration.

By the 18th, though tranquillity was restored, I postponed the election of a general provisional Junta till the 20th of October, hoping that before that period, a reply to my earnest entreaties for instructions, would arrive from the Imperial Government. It was for the sake of preserving order during the interval, that I had announced my intention of taking the *Pedro Primiero* to Parà only, well knowing that a belief in her speedy return to Maranham would have a salutary influence in maintaining public peace.

Intelligence of the reduction of Maranham, and the annexation of that province, together with the province of Parà, to the empire, was received at Rio de Janeiro with surprise and delight;—surprise, that, in less than six months, without military force, and, in truth, with one ship of war only, so much had been effected—and delight that the Empire was cleared of its enemies without the expense and uncertainty of expeditions which had been calculated on. All Brazilians were eager to vie with each other in the expression of entire satisfaction with my exertions.

His Imperial Majesty was pleased to reward the services rendered, by creating me Marquis of Maranhaõ, as the fittest title to commemorate the advantages gained for the empire, at the same time awarding me an estate commensurate with the dignity of the honours conferred; the "Assemblea Geral, Constituente e Legislativa" adding a vote of thanks in the name of the nation. The estate, however, *was never given*, notwithstanding that, at Maranham, and in other of the Northern provinces, numerous fine

properties, appertaining to the Portuguese Crown, were added to the Imperial domain. The inconsistency of this was remarkable, seeing that I had been the means of adding to Brazil a territory larger than half Europe—for which service I was warmly thanked by the Emperor, his Ministers, and also by the General Assembly—the latter body, nevertheless, refusing to confirm the gift of even so minute a portion of the vast territory unexpectedly added to the Empire.

The subjoined is the Imperial order, elevating me to the Marquisate:—

> His Majesty the Emperor, taking into consideration the great services which your Excellency has just rendered to the nation by assisting to liberate the city of Bahia from the unjust Lusitanian yoke, and afterwards wisely aiding the honourable inhabitants of the province of Maranham in throwing off the said foreign domination, so that they were enabled, according to their desire, to acknowledge His Majesty as their constitutional Emperor; and desiring to give your Excellency a public testimonial of gratitude for these great and extraordinary services (*per estse altos e extraordinarios serviços*) on behalf of the generous Brazilian people, who will ever preserve a lively remembrance of such illustrious acts, I deem it right to confer upon your Excellency the title of Marquis of Maranhaõ. My Secretary of State will expedite the necessary patent which I communicate to your Excellency for your information.

God preserve your Excellency many years.

Palace of Rio de Janeiro, 25th of November, 1823.
(Signed) JOAÕ SEVERIANO MACIEL DA COSTA.

The annexed is the vote of thanks awarded by the *"Assemblea Geral"* which, as has been said, refused to recognise His Majesty's gift of an estate in order to support in a dignified manner the title which His Majesty had graciously been pleased to confer. The reason assigned for this extraordinary proceeding, in a lengthy debate on the subject was, that in granting me an estate His Majesty had exercised a feudal prerogative inconsistent with a free country.

> The General Constituent and Legislative Assembly having been officially informed that your Excellency, after having freed the province of Bahia from the oppression of Portuguese troops, and having pursued them beyond the equinoctial line, led the squadron on your own judgment and responsibility to the port of the city of St. Louis of Maranhaõ, where, with your accustomed valour and singular good judgment, you dislodged the Portuguese troops, who had kept down the patriotism of its generous inhabitants, and accomplished their liberation, so that they proclaimed and spontaneously swore with unanimity their independence of Portugal and their decided union with the Brazilian empire. The General Constituent and Legislative Assembly, acknowledging the importance of these great services has decreed in this day's session that there shall be given to your Excellency in the name of the nation which it represents the thanks due.
>
> Charged as organs to transmit this resolution to your Excellency, we fulfil the task with pleasure, and have the honour to lay the same before your Excellency.

God preserve your Excellency.

Palace of the Assembly, Oct. 3, 1823.

MARTIN FRANCISCO EIBEIEO DE ANDEADA, JOAÕ SEVERIANO MACIEL DA COSTA, MIGUEL CALMON DU PIN E ALMEIDA.

This vote of thanks by the Assembly contains a remarkable error, by averring that I "led the squadron" to Maranhaõ, whereas I had only a single ship, and with her singly performed all for which I received the thanks of the nation.

In the interval between this recognition of my services and my return to Rio de Janeiro, an unfortunate change had taken place in the Councils of His Imperial Majesty, introductive of persons more favourable to the interests of Portugal than to furtherance of the judicious measures contemplated by His Majesty for the consolidation of the newly-constituted empire. To the obstructive aspirations of these persons—in ill-concealed concert with the designs of the parent state—my annexation of the Northern provinces necessarily proved fatal; and they ever afterwards regarded me with an animosity which appeared to increase as the empire became, by these, and my subsequent exertions, more firmly established.

Sailing from Maranham on the 20th of September, the *Pedro Primiero* arrived at Rio de Janeiro on the 9th of November—the Emperor doing me the honour to come on board to welcome me. I immediately forwarded to the Minister of Marine a recapitulation of all transactions since my departure seven months before; viz. the evacuation of Bahia by the Portuguese in consequence of our nocturnal visit, connected with the dread of my reputed skill in the use of fireships, as arising from the affair of Basque Roads; the pursuit of their fleet beyond the Equator, and the dispersion of its convoy; the capture and disabling of the transports filled with troops intended to maintain Portuguese domination in Maranham and Parà; the device adopted to obtain the surrender to the *Pedro Primiero* alone of the enemy's naval and military forces at Maranham; the capitulation of

Parà with the ships of war to my summons sent by Captain Grenfell; the deliverance of the Brazilian patriots whom the Portuguese had imprisoned; the declaration of independence by the intermediate provinces thus liberated, and their union with the empire; the appointment of Provisional Governments; the embarkation and final departure of every Portuguese soldier from Brazil; and the enthusiasm with which all my measures—though unauthorised and therefore extra official—- had been received by the people of the Northern provinces, who—thus relieved from the dread of further oppression—had everywhere acknowledged and proclaimed His Imperial Majesty "Constitutional Emperor."

The powers which I had taken upon myself to exercise during this eventful period, were, no doubt; in excess of those conferred by my orders, but, knowing that everything depended upon the annexation and pacification of the Northern provinces by the expulsion of the enemy—setting aside my own interests—I considered it better for the welfare of the empire to exceed my instructions, than to entail the continuance of civil war by confining my operations within their scope. In the exercise of this self-imposed duty it may be said that I had also exercised Imperial functions, but this was only in the unavoidable absence of Imperial instructions, which it was my constant endeavour to anticipate rather than to exceed; that I judged and acted rightly, the elevation to the title of Marquis of Maranhaõ, before reaching Rio de Janeiro—the vote of thanks of the legislature, and the warm acknowledgment of His Imperial Majesty on landing, sufficiently testify. In addition to the gracious reception accorded by His Majesty, I received from his own hands a decoration of the Imperial Order of the Cruizeiro, and, though a foreigner, was subsequently nominated to the high office of Privy Councillor—the greatest honour in the Imperial gift to bestow.

During my absence from Rio de Janeiro, Lady Cochrane—ignorant of my having quitted Chili—was on her way to rejoin me at Valparaiso, but the vessel in which she embarked, having fortunately put into Rio de Janeiro, she was at once made acquainted with my change of service, and remained in the capital till my return. The most hospitable attention was paid to her by the Royal family, the Empress conferring upon her the appointment of Lady of Honour to Her Majesty. The relief to my mind on finding Lady Cochrane at Rio de Janeiro was very great, for, as there had not been opportunity to apprise her of my departure from Chili in time to prevent her return thither, it had been a constant source of regret to me that she would have to endure the discomfort of two tedious voyages round Cape Horn before she could join me in Brazil. The fortunate circumstance of putting into Rio happily terminated the embarrassment.

CHAPTER V.

FIRST EFFORT 10 CURTAIL THE IMPERIAL POWER—PORTUGUESE
INTRIGUE—DISMISSAL Of THE ANDRADAS—THE ASSEMBLY DISSOLVED BY
FORCE—EXILE OF THE ANDRADAS—LETTER TO HIS IMPERIAL MAJESTY—MY ADVICE
PARTLY ADOPTED—AND CAUSES MINISTERIAL ENMITY TOWARDS ME—RATIFICATION
Of MY PATENT—I DEMAND THE ADJUDICATION OF PRIZES—LETTER TO THE
MINISTER OF MARINE—OFFER OF PERSONAL ADVANTAGE TO FOREIGN
CLAIMS—SQUADRON REMAINED UNPAID—I AM APPOINTED A PRIVY COUNCILLOR—THE
PRIZE VESSELS PLUNDERED—SHAMEFUL TREATMENT OF CAPTAIN
GRENFELL—TROUBLES IN PERNAMBUCO—HOSTILITY OF THE PRIZE
TRIBUNAL—CONDEMNS ME TO THE RESTITUTION OF PRIZES—FORBIDS MAKING ANY
CAPTURES AT ALL.

Shortly before returning to Rio de Janeiro, a total change had taken place in the administration of which José Bonifacio de Andrada was the head. As that minister's views were patriotic, he was, in consequence, obnoxious to the Portuguese faction, which had made one or two unsuccessful efforts to supplant him, these only serving to confirm his power amongst the people, who justly appreciated his leadership in the cause of independence. Becoming, thus, more confident in his position, he was accused, whether rightly or wrongly, of intolerance towards persons who were plotting against him, though, even if the accusation were true, he was scarcely to blame for discountenancing those whose chief aim was to paralyse the independence they were unable to prevent.

On the proclamation of the Empire, two influential Portuguese, in the Assembly, endeavoured to impose a condition on the Emperor that, before ascending the throne, he should make oath to a constitution framed by the Constituent Assembly alone, thus reducing His Majesty to a cypher in the hands of the legislature. The proposition was plausible enough to those who were anticipating power, but it gave rise to such dissensions, that Bonifacio de Andrada and his brother sent in their resignations, which, under these difficult circumstances, were accepted by the Emperor.

A violent tumult amongst the people was the immediate consequence, and His Majesty was induced to recall the patriotic Andradas to the cabinet —they however, refusing to resume their functions, unless their Portuguese opponents were banished; to this the Emperor assented, and the Andradas returned to office amidst the plaudits of the populace, who drew the carriage of José de Andrada in triumph into the town.

As might have been expected, less tolerance was manifested by the triumphant ministers than before, this just but perhaps impolitic course being eagerly seized on by the Portuguese faction to excite the

apprehension of the patriots, who were somewhat dissatisfied by the revival of what were considered feudal usages; above all, by the creation of an Imperial Guard of Honour, selected from the youth of the principal families, who were required to take an oath "of implicit obedience to His Majesty"—this act being especially represented by the adverse faction as evincing a tendency to absolutism.

On the 20th of June, 1823, a project of law had been laid before the Assembly, for the expulsion of all Portuguese deemed hostile to the cause of the empire. This measure might have originated with the Andradas, or not; it was certainly defended in the Assembly by Antonio Andrada. The Portuguese party, alarmed by the still impending danger, formed a coalition with the Brazilian party, to eject the Andradas from the ministry, and having, during a severe illness of the Emperor, gained the ascendancy, the now obnoxious ministers were dismissed; and—though the patriots had not calculated thereon—were succeeded by the leaders of the Portuguese faction itself, who, to the regret of all true Brazilians, effected an immediate change of policy in the Government.

The chief object of the new administration, appeared to be to limit the functions of the Emperor to an extent almost subversive of his authority; His Majesty, in the unsettled state of the empire, being comparatively powerless amidst the machinations with which he was surrounded.

No constitution had, as yet, been fixed upon—His Majesty resenting the former attempt to force upon him a constitution framed solely by the will of the Assembly, which was still seeking an opportunity to assert its supremacy. As the city and province abounded with influential Portuguese, desirous of overthrowing the new *régime*, and as many of these were in the Assembly, there was a total want of unity between the Emperor and his legislature, the administration leaning to the side of the latter.

About this time, the Marquis of Palmella had widely circulated a document, appealing to the loyalty of the Portuguese, and declaring the policy desired by the mother country; which policy was—to divide Brazil into a number of petty states, easy to be intimidated and controlled. As this scheme held out large promise of irresponsible power to influential persons in such anticipated states—it could scarcely fail to be agreeable to many expectants of office, whose interest it therefore was to prevent the consolidation of the empire, by promoting disunion. It was scarcely a secret that some in the administration were favourable to these views, though not openly professing them; so that the patriotic efforts of His Majesty were paralysed, and the administration, no less than the legislature, exhibited a policy seriously detrimental to the interests of the Empire.

Indeed, a powerful party in the legislative assembly openly called in question the Emperor's authority—even requiring His Majesty to divest himself of his crown in their presence. They deprived him of his council of state; denied him a voice in the enactment of laws, and the functions of administration; even objecting to His Majesty's exercise of the common prerogative of royalty to confer crown lands as territorial rewards for public services—the latter limitation of the royal prerogative being avowedly directed against the grant of an estate to myself, as spontaneously accorded by His Majesty, in gratitude for my recent services to the nation.

This was the state of affairs on my return to Rio de Janeiro, and as His Majesty did me the honour to consult with me in his difficulties, I unhesitatingly recommended him to support his dignity constitutionally—despite all attempts made for its limitation by the Portuguese faction; which—extraordinary as it may appear—was now said to be countenanced by the Andradas, who, though out of office, were still deputies to the assembly, and who—in consequence of their dismissal from power—were considered to be giving opposition to every measure calculated to promote unity

between the Emperor and the legislature. The Brazilian patriots—and with good reason—were becoming alarmed, lest an attempt might yet be made to place Portugal and Brazil upon their former relative footing, and the Emperor, who was thoroughly Brazilian—from a conviction that Portuguese ascendancy could never be regained—was no less so.

Matters, at length, rose to such a pitch in the assembly, that the intentions of the factious majority became no longer doubtful, when His Majesty somewhat unceremoniously adopted the course pursued in England by Cromwell in a somewhat similar predicament, viz. to dissolve the assembly, and, should it prove refractory, to turn the members out by force. Cutting short all farther altercation with his legislature, the scene of the English protectorate was re-enacted in Brazil; the Emperor entering Rio de Janeiro at the head of a body of cavalry—surrounding the chamber with a military force—planting cannon before it—and ordering its instantaneous dissolution; the members—after in vain remonstrating against this proceeding—being compelled to retire.

The Andradas were soon afterwards arrested, and exiled—a proceeding impolitic and unjust to men who had laid the foundation of Brazilian independence, and who were no less distinguished by their honesty than their ability. By consenting to their exile, His Majesty lost three valuable servants, and at the same time placed himself in the hands of a faction which he never afterwards controlled, and which eventually forced him from his throne.

As the expulsion of the Assembly—whether justifiable or not, it is not my province to inquire—was decisive, it was obviously of the greatest importance to follow it up by some measure which should convince the public that so extreme a course was intended for their good. As yet no permanent constitution had been declared This, therefore, was clearly the

moment for its proclamation, no less to satisfy the people—who were heart and soul with the Emperor—than to prevent retaliation by the faction which had been thus summarily dealt with.

Seeing that nothing was promptly acted upon in an emergency involving the stability of Government, I addressed to His Imperial Majesty the following letter:—

Rio de Janeiro, November 14, 1823.

SIRE,

My sense of the impropriety of intruding myself on the attention of your Imperial Majesty, on any subject unconnected with the official position with which your Majesty has been pleased to honour me, could only have been overcome by an irresistible desire, under existing circumstances, to contribute to the service of your Majesty and the Empire.

The conduct of the late legislative assembly, which sought to derogate from the dignity and prerogatives of Your Majesty—even presuming to require you to divest yourself of your crown in their presence—who deprived you of your Council of State—denied you a voice in the enactment of laws and the formation of the constitution, and who dared to object to your exercising the only remaining function of royalty—that of rewarding services, and conferring honours—could no longer be tolerated; and the justice and wisdom of Your Imperial Majesty in dissolving such an assembly will be duly appreciated by discerning men, and by those whose love of good order and their country supersedes their ambition or personal interests. There are, however, individuals who will wickedly take advantage of the late proceedings to kindle the flames of discord, and

throw the empire into anarchy and confusion, unless timely prevented by the wisdom and energy of Your Imperial Majesty.

The declaration that you will give to your people a practical constitution, more free than even that which the late assembly professed an intention to establish, cannot—considering the spirit which now pervades South America—have the effect of averting impending evils, unless Your Imperial Majesty shall be pleased to dissipate all doubts by *at once declaring*—before news of the recent events can be dispersed throughout the provinces, and before the discontented members of the late congress can return to their constituents—what is the precise nature of that constitution which Your Imperial Majesty intends to bestow.

Permit me, then, humbly and respectfully to suggest to Your Imperial Majesty, as a means of tranquillising the public mind—of averting evils at home, and preventing injurious representations abroad—that, *even before the sailing of the next packet for Europe*, Your Majesty should specifically declare the nature of the government you are graciously pleased should be adopted. As no monarch is more happy, or more truly powerful than the limited monarch of England, surrounded by a free people, enriched by that industry which the security of property by means of just laws never fails to create—if Your Majesty were to decree that the English constitution, in its most perfect practical form (which, with slight alteration, and, chiefly in name, is also the constitution of the United States of North America), shall be the model for the Government of Brazil under Your Imperial Majesty, with power to the constituent assembly so to alter particular parts as local circumstances may render advisable—it would excite the sympathy of powerful states

abroad, and the firm allegiance of the Brazilian people to Your Majesty's throne.

Were Your Majesty, by a few brief lines in the Gazette, to announce your intention so to do, and were you to banish all distrust from the public mind by removing from your person for a time, and finding employment on honourable missions abroad, for those Portuguese individuals of whom the Brazilians are jealous—the purity of Your Majesty's motives would be secured from the possibility of misrepresentation—the factions which disturb the country would be silenced or converted—and the feelings of the world, especially those of England and North America, would be interested in promoting the glory, happiness, and prosperity of Your Imperial Majesty.

These thoughts, hastily expressed, but most respectfully submitted to your gracious consideration will, I hope, be candidly appreciated by Your Imperial Majesty, proceeding, as they do, from the heart of

Your Majesty's most faithful and dutiful Servant,

COCHRANE AND MARANHAÕ.

His Majesty saw good to adopt this advice in part, but in offering it—though instrumental in establishing the political liberties of Brazil—I had unconsciously placed myself in the position of a partisan against the powerful faction which influenced the administration, and through them every part of the empire. My unauthorised services after the pursuit of the Portuguese fleet and army—resulting in the annexation of the Northern provinces—had drawn upon me the resentment of those now in power whose ultimate intentions were thus defeated. That I—a foreigner, having nothing to do with national politics—should have counselled His Majesty to banish those who opposed him, was not to be borne, and the resentment

caused by my recent services was increased to bitter enmity for meddling in affairs which it was considered did not concern me; though I could have had no other object than the good of the Empire by the establishment of a constitution which should give it stability in the estimation of European states.

The effect of this enmity towards me personally, was not long in manifesting itself, and fearing the extent to which this might be carried, I lost no time in demanding that the patent under which I had been invested with the grade of "First Admiral," should be formally engrossed and registered, according to the engagement of the late Prime Minister, previous to my departure for Bahia. On the 25th of November, this was accordingly done, and a commission conferring the same pay and emolument as before —without limitation as to time, received the sign manual—was counter-signed by the Ministers—sealed with the great seal—and registered in the archives of the empire; His Majesty further testifying his approbation of my conduct and services, by directing the transmission of the completed patent without payment of the usual fees.

The following are the stipulations of the commission so solemnly conferred—but afterwards shamefully violated without cause, as though fidelity to its engagements formed no part of national honour and good faith:—

> I, Don Pedro, by the grace of God, and the unanimous voice of the people, Constitutional Emperor and Perpetual Defender of Brazil, hereby make known to those who shall see this my charter patent, that the valour, intelligence, and activity united in Admiral Lord Cochrane, now Marquis of Maranhaõ, who has so distinguished himself in the different services with which he has been entrusted—giving proof of the greatest bravery and talent; and seeing how

advantageous it would be for the interests of this empire to avail itself of the skill of so valuable an officer—consider it beneficial to confer upon him—as by this charter is confirmed—the patent of "First Admiral," with the annual pay of eleven contos five hundred and twenty milreas, as well ashore as afloat; and farther in table money, when embarked, five contos seven hundred and seventy milreas—which are the same emoluments as he received in Chili. No admiral in the service having any right to consider himself entitled to succeed to the post of First Admiral, which I create solely for this occasion for the motives expressed, and from the particular consideration merited by the said admiral.

The pay referred to shall be entered in the books to which it appertains, in order to the payments when due. In attestation of that which I have hereby commanded, I give this charter under the sign manual and sealed with the great seal of the Empire.

Given in the city of Rio de Janeiro on the 25th day of the month of November, in the year of our Lord Jesus Christ, 1823. Second of Independence and of this empire.

(Signed) IMPERADOR P.
Countersigned by all the Ministers.

From the difference of expression used in this commission, as compared with the temporary commission given previous to my departure for Bahia, it is clear that my late services were fully recognised; and from the fact that the new commission was conferred after the war was ended by the annexation of Bahia, Maranham, Parà, and all the intermediate provinces, it is equally clear that my rank and pay—as originally stipulated were

conferred without limitation of time—a circumstance which will have to be borne to mind.

This being complied with, I requested an order for the speedy adjudication of the prize property surrendered at Maranham, the flagship's portion being Rs. 607.315 $000, or £.121,463 sterling, in addition to the captures made by the squadron generally—no less than one hundred and twenty enemy's ships, with Portuguese registers and crews, having been taken, the value, at a very moderate computation, amounting to upwards of 2,000,000 dollars. As officers and men were anxiously awaiting their prize money, it became my duty to the squadron to urge its stipulated distribution upon the consideration of the Government.

His Majesty directed this to be done, but the prize tribunal appointed—consisting of thirteen members, nine of whom were natives of Portugal—was directly interested in defeating the claims of the captors, being inimical to any confiscation of Portuguese vessels and property taken in the late campaign. Not venturing, as yet, openly to act in this spirit, they adopted the alternative of doing nothing towards adjudicating the prizes.

Finding this to be the case, and fearing that the Portuguese tendencies of the new administration might interfere with the repayment of the sums temporarily supplied to the Maranham Junta—I addressed the following letter to the new Minister of Marine, Francisco Villela Barbosa:—

(Secret.) Rio de Janeiro, November 18, 1823.

MOST EXCELLENT SIR,

In my letter, No. 38, I communicated to your predecessor my intention of aiding the Provisional Junta of Maranham, in the payment of the auxiliary troops of Cearà and Piahuy, who being in a

naked and destitute condition had become clamorous for their arrears; and I now beg to state that in prosecution of such intention, I placed at the disposal of the Junta the monies taken in the Portuguese treasury, amounting in cash and good bills to Rs. 62,560 $243, together with outstanding debts amounting to Rs. 147,316 $656, and I have also left in their hands the balance which we found in the Portuguese custom-house, amounting to Rs. 54,167 $877. All these accounts I have the honour to convey to you for the information of the Imperial Government.

In addition to these large sums, I left at the disposal of the Junta much moveable property which belonged to Portuguese individuals in Europe, desiring the authorities to render an account of the same for the information of the Imperial Government.

Your Excellency will perceive that in leaving at Maranham these monies, and other property captured from the enemy, instead of bringing them to Rio for adjudication, we could be influenced by no other motive than zeal for the interests of His Imperial Majesty and the good of his people; as by so doing, we enabled the Provisional Government to meet the present exigencies of the moment, and to quiet the Cearà and Piahuy troops; whilst the revenue of the province thus remains clear and unanticipated— being applicable to such purposes as His Imperial Majesty shall command. All which I trust His Imperial Majesty will take into his gracious consideration, and be pleased to award such compensation to the officers and seamen as he, in his princely justice, shall deem fit.

(Signed) COCHRANE.

For some days no notice was taken of this letter, but on the 24th I received a visit from the Minister of Marine, bringing what professed to be

a verbal message from His Majesty, that he "would do every thing in his power for me *personally*." The way in which this intimation was conveyed led me to infer that these personal favours implied a sacrifice on my part of the rights of the squadron, by shutting my eyes to the restoration of the captured Portuguese ships and property to the friends and adherents of the ministry, for the purpose of conciliating the Portuguese party. Taking the message, however, literally—I told the Minister that His Majesty had "already conferred honours upon me quite equal to my merits—and that the greatest personal favour he could bestow, was, to urge on the speedy adjudication of the prizes, so that the officers and seamen might reap the reward decreed by the Emperor's own authority."

The policy of the Portuguese faction in power, was—now that the squadron had expelled the fleet and army of the mother country—to conciliate their countrymen who remained, and thus to create and maintain an influence which should reduce the Imperial authority to the smallest possible dimensions. The first object—if I could be brought to acquiesce—was to restore Portuguese property, captured by Imperial order, and now the right of the captors—my connivance being supposed to be procurable by offers of personal enrichment! I scarcely need say that the offer failed in its purpose.

As the squadron had received no pay during the performance of all its services, it became my duty to urge attention to the subject, and this was apparently complied with, the 27th of November being appointed for the payment of the men. On that day *three months' pay only* was offered to them, notwithstanding all they had achieved. This paltry pittance was refused.

About this time the extraordinary news was received, that great rejoicings and a general illumination had taken place in Lisbon in consequence of the

destruction of the Brazilian squadron by the Portuguese fleet at Bahia! this version having, no doubt, been transmitted home subsequently to the affair of the 4th of May. Singularly enough, these ill-founded rejoicings were going on in Lisbon at the time the flagship was chasing the Portuguese fleet across the Equator! It is difficult to say how the Portuguese admiral contrived to reconcile this premature vaunt, and the unwelcome fact of his arrival in the Tagus, with the loss of half his troops and more than half his convoy.

On the 2nd of December despatches arrived from Captain Grenfell at Parà, stating that he had possession of the new Portuguese frigate, which according to my directions, had been named the *Imperatrice*. He had also captured another vessel of war, and several merchantmen; thus fulfilling his difficult mission in a way which justified my confidence in his ability, and should have merited the warmest thanks from the government, instead of the treatment he subsequently experienced.

On the 19th of December, His Majesty appointed me a member of the Privy Council, the highest honour in his power to bestow. It was a singular circumstance that whilst His Imperial Majesty consulted me on matters of importance, and manifested his appreciation both of my opinions and services by the honours conferred—his anti-Brazilian ministers were practising every species of annoyance towards myself and the squadron—more especially in the matter of the prizes, the condemnation of which they obstinately opposed.

It would be wearisome to enter into details of the annoyance and injury now systematised by the Portuguese faction in the administration; nevertheless, in order to appreciate subsequent occurrences, it is necessary briefly to advert to these matters. The personal feeling against myself was easily accounted for from my adherence to the Emperor in opposition to

interested councils, which imperilled the existence of the Empire. These councils His Majesty was unable to disregard or to counteract the injury inflicted on the officers and seamen, by the conduct of the Court of Admiralty towards the squadron; a policy persevered in with the object of annihilating the naval force, for no other reason than that its achievements had rendered itself obnoxious to the Portuguese faction—the leaders of which no doubt calculated, that if the officers and crews could be worried out of the service, the dismemberment of the Northern provinces might yet be effected by disunion.

On the 13th of December, I wrote to the Minister of Marine that, as the prize vessels were daily being plundered, an immediate investigation was necessary—they having, by order of the administration, been delivered over to the charge of the inspector of the arsenal, the naval officers in charge being withdrawn. One officer was put in prison for obeying my orders to remain on board his prize till I received an answer from the Minister of Marine. The ship he had in charge (*the Pombinho*) was immediately afterwards given up to a Portuguese claim ant, together with all its contents, promiscuously taken from the custom house at Maranham, none of which ever belonged to him.

A number of additional prizes had been sent in by Captain Taylor, of the *Nitherohy*, who had pursued the scattered ships of the enemy to the Tagus, and there burned four vessels under the guns of the line-of-battle ship *Don John VI*. For this he was sentenced by the prize council to six months imprisonment, and to forfeit double the amount of his prize money, on behalf of the owners of the property destroyed; it being thus decided by the *quasi* Portuguese prize tribunal that, to destroy enemy's property, in pursuance of His Majesty's orders, was a crime!

Captain Grenfell having arrived in the frigate *Imperatrice*—captured at Parà—bringing with him some forty thousand dollars—the ransom for prizes there taken, as had been done at Maranham—the *Imperatrice* was boarded in his absence, and the money carried to the treasury, though by His Majesty guaranteed to the captors. Captain Grenfell was afterwards charged with acting in opposition to the Junta at Parà, though only carrying out my instructions. Upon this charge he was tried and acquitted.

In consequence of these and other arbitrary acts, I represented to His Majesty the necessity of forming some definite maritime code, which should put an end to proceedings so arbitrary, and proposed the adoption of the naval laws of England as the most experienced and complete. His Majesty approving the suggestion, directed me to transmit a memorial on the subject to the Privy Council, which was accordingly done.

By this, and similar suggestions to His Majesty, with view to render the navy more efficient, I was widening the breach between myself and the Portuguese party in the administration, whose object it was to frustrate any attempt of the kind. It was not long before an overt blow was struck at my authority as Commander-in-Chief by the preparation of the *Atalanta* for sea without my intervention. Imagining that she might be on some secret service, I disregarded the circumstance, till, on the 27th of December, a notice appeared in the Gazette announcing her destination to be for the blockade of Monte Video, whilst I was mentioned in the Gazette, under the limited title of "Commander of the naval forces in the port of Rio de Janeiro." Thus, by a stroke of the Minister's pen, was I, despite the patents of His Imperial Majesty, reduced to the rank of Port Admiral.

Convinced that this had been done without the sanction or even knowledge of the Emperor, I protested against the despatch of the *Atalanta*, except through my orders, as well as against the limitation indicated by my

new title—contrary to the agreement under which I entered the service, as twice confirmed by Imperial commissions—further informing the Minister of Marine that, although no one could be less ambitious of power than myself, I could not allow an agreement solemnly entered into to be thus violated.

The remonstrance as regarded the *Atalanta* was effectual, and she was not despatched; but—as regarded the limitation of my rank—no notice was taken.

Intelligence now arrived from Pernambuco that a strong party was there endeavouring to establish a Republic, and that preparatory steps were being taken to throw off allegiance to the Empire.

The expedition sent by the ministry to put down this rising at Pernambuco was a premeditated insult to me, as not having been at all consulted in the matter; and the reason why an inexperienced officer had been sent, doubtless was, that the ministry did not wish the insurrection to be put down. In this respect the expedition fulfilled the wishes of those who despatched it, by having failed. On its return I personally received *His Majesty's orders* that the *Pedro Primiero*, *Piranga*, *Nitherohy*, and *Atalanta*, should be immediately equipped for important service. It was easy thus to give orders to equip a squadron, but after the treatment received, not so easy to effect it. All the foreign seamen had abandoned the ships in disgust, and to have shipped Portuguese would have been worse than useless. I wrote to the Minister of Marine that the squadron could not be manned unless confidence was restored amongst the men, the shameful proceedings of the prize court having disinclined them to re-enter the service,—even if they did, I could not be responsible for order and discipline, or for the safety of the ships, unless some definite adjustment as to pay and prize money took place before putting to sea.

In the face of these remonstrances the prize tribunal adopted an openly hostile course, by altogether denying the right of the squadron to the prizes taken at Maranham, or the property there seized in the custom house, and shipped by me on board the *Pombinho* and another vessel. The *Pombinho*, as has been said, was declared an illegal prize, and given up to her Portuguese owner, together with all public property contained in her, though to this he had not the shadow of a claim, as the whole cargo belonged originally to others, and had been put on board this particular ship by my orders for transmission to Rio de Janeiro. Numbers of similar decisions were made, on the false plea that Maranham previously formed part of the Brazilian empire, and consequently that all the seizures effected were invalid!

I remonstrated that, on our arrival at Maranham, the city and province were, and ever had been, in possession of Portugal—that the Portuguese had by the ordinary capitulations of war delivered up both to an armed Brazilian force without question—and that, by a previous decree of the Emperor, no less than by the customary usages of war, all enemy's property fell to the captors. The prize court not only overruled the objection, but condemned me to make restitution of all sums received in ransom for property taken at Maranham. In one instance the tribunal declared me deserving of corporal punishment (*pena corporal!*) and would, had they dared, doubtless have enforced this, and the restitution to which I was condemned.

As the plunder of prize property was becoming notorious, the tribunal directed it to be unloaded, in order to prevent the cargoes from being *damaged!* but, on the execution of the order it was found that all the valuable portion had already disappeared! How, of course could not be ascertained; but no one doubted. The ships themselves were neglected till they became useless to the original owners, the Government, or the captors.

Thus, of this vast amount of property taken in the campaign, not a *milrea* was suffered to find its way into the pockets of the officers and men, and the squadron would have been wholly defrauded of its reward, had I not refused to give up to the prize tribunal the comparatively trifling sums received in redemption of the seizures at Maranham; these being retained on board the flagship in consequence of the unjustifiable course which the tribunal was pursuing. A plot was, however, formed to seize it by force, but this was met by such measures as were calculated to prevent a renewal of the attempt.

The prize tribunal being thus determined to deprive the squadron of the whole of its emoluments, proceeded to condemn the ships of war taken as being *droits* to the crown, without compensation of any kind, notwithstanding that the before-mentioned Imperial decree of the 11th of December, 1822, awarded all prizes wholly to the captors. The tribunal then issued a decree, that vessels taken within a certain distance from the shore —where alone a blockade could be effective—were not lawful seizures; the effect being that, as the squadron was about to blockade Pernambuco it could have no opportunity of falling in with enemy's vessels at sea, and therefore *could not make captures at all!* Thus enemy's ships would be permitted to carry on their revolutionary occupations unmolested; which was, no doubt, the intention of those who framed the resolution, as wishing to defeat the blockade for their own purposes.

CHAPTER VI.

REMONSTRANCE AGAINST DECREE OF PRIZE TRIBUNAL—SETTLEMENT OF PRIZE QUESTION BY THE EMPEROR—HIS MINISTERS REFUSE TO CONFORM TO IT—OBSTACLES THROWN IN THE WAY OF EQUIPMENT—MY SERVICES LIMITED TO THE DURATION OF WAR—MY REMONSTRANCE ON THIS BREACH OF FAITH—MINISTERS REFUSE TO PAY THE SQUADRON ANYTHING—A FRESH INSULT OFFERED TO ME—OFFER TO RESIGN THE COMMAND—MY RESIGNATION EVADED—LETTER TO THE PRIME MINISTER—LETTER TO THE MINISTER OF MARINE.

On the 1st of January, 1824, I communicated to the Minister of Marine the contents of a despatch received from Captain Haydon at Pernambuco, in which he apprised me of a plot on the part of the revolutionary Government to seize his person and take possession of the Imperial brig of war which he commanded; the latter intention having been openly advocated in the Assembly.

On the 6th, I addressed to the Minister of Marine the following remonstrance against the before-mentioned regulation of the Admiralty Court, that vessels captured within a certain distance of the shore should not be prize to the captor; this regulation being evidently intended as retrospective, with a view of nullifying the captures which had already been made:—

> As I have before endeavoured, by anticipating evils, to prevent their occurrence, so in the present instance, I feel it my duty to His

Imperial Majesty to place you, as Minister of Marine, on your guard against countenancing any such measure in regard either to the vessels captured in the blockade of Bahia, or to those taken in the colonial possessions, and under the forts and batteries of the enemy—and also in the case—if such there should be—of vessels captured on the shores of Portugal.

It is quite clear that these cases of capture are distinct from those in which protection is afforded by independent states to belligerents approaching within a certain distance of neutral shores. But you must be perfectly aware that, if enemy's ships are not to be prize—if captured navigating near the shore no blockade can be effective, as there will be no right to disturb them; besides which the mass of the people engaged in a naval service will certainly not encounter toil and hazard without remuneration of any kind beyond their ordinary pay.

Should such a decree be really in contemplation, there is nothing to hope from the naval service useful or creditable to the state; and this opinion is founded on more than thirty years' unremitting experience of seamen—that where there is no premium there is no permanent zeal or exertion.

(Signed) COCHRANE & MARANHAÕ.

On the 10th of January, I communicated to the Government the contents of another despatch from Captain Haydon, at Pernambuco, reporting that the new Junta there had seized the Imperial ship of war, *Independencia ou morte*, and had removed the officer in command, at the same time threatening to treat Captain Haydon as a pirate.

The revolt was now becoming serious, and His Majesty—anxious to expedite the equipment of the squadron—on the 12th of February, 1824,

sent for me to consult on the subject. Having told His Majesty the course which had been pursued by the prize tribunal, he said he would see justice done in spite of faction, and asked me to make a moderate valuation of the prize property taken in the late campaign, ascertaining, at the same time, if the seamen were willing to accept a specific sum in compensation of their claims? On asking His Majesty what assurance could be given that the administration would carry out such an arrangement, he replied that he would give me his own assurance, and ordering me to sit down beside him, wrote *with his own hand* the following proposal—now in my possession:—

> "*The Government is ready to pay to the squadron, the value of the prizes which have been, or may be judged bad, the value thereof being settled by arbitrators jointly chosen, and to pay the proprietors their losses and damages; that in the number of the said prizes, the frigate Imperatrice is not included, but the Government, as a remuneration for her capture, will immediately give from the public treasury the sum of 40,000 milreis to the captors; that the value of the prizes already declared bad, shall be immediately paid, this stipulation relating to all captures up to the present date, February 12th, and that henceforth captures shall be adjudged with more dispatch, the Government being about to decree a provisional arrangement, remedying all errors and omissions that may have occurred.*"

Nothing can be more clear than the above stipulations in His Majesty's own handwriting, to pay the squadron immediately the value of their prizes despite the Court of Admiralty, to pay 40,000 milreis for the *Imperatrice*, and that even the value of the prizes *adjudged bad* should be paid, His Majesty thus rightly estimating the conduct and motives of the Court of Admiralty. *Not one of these conditions was ever complied with!*

On the 1st of March, His Majesty, through his minister, Francisco Villela Barbosa, informed me that he had assigned 40,000 milreis in recompense for the acquisition of the frigate *Imperatrice*; stating that, with regard to the other prizes made at Parà, they must be sentenced by the tribunal, in order that their value might be paid by the public treasury—the said treasury taking upon itself to satisfy all costs and damages on captures judged illegal; but that with regard to my assertion, that there were amongst them no illegal prizes, the Government could not itself decide the question.

That His Majesty gave the order for payment of 40,000 milreis, as compensation for the *Imperatrice*, there is no doubt; *but not a shilling of the amount was ever paid by his ministers, nevertheless even within the past few months the present Brazilian Ministry has charged that sum against me, as having been received and not accounted for!* It is quite possible, that, in ignorance of the practices common amongst their predecessors of 1824, the present ministers of Brazil may imagine that the orders of His Majesty were complied with; but if so, the 40,000 milreis never reached me or the squadron. Had it done so, nothing can be more easy than to find my receipt for the amount, which I defy them to do.

Considering our difficulties in a fair way of now being settled, I willingly undertook to conciliate the seamen, and having made the low calculation of *Rs*. 650.000 milreis—a sum scarcely one-fourth the value of the prize property—reported to the Minister of Marine the willingness of the squadron generally to accept 600,000 dollars (about £.120,000) in compensation of their full rights; agreeing, moreover, to give up all claim on the Imperial Government on payment of one-half, and security for the remainder.

Notwithstanding this easy mode of arrangement, solely brought about by my personal influence with the men, not a milrea was allotted, His

Majesty's ministers deliberately evading the Imperial wishes and promises. On the contrary, the more His Majesty was determined to do the squadron justice the more was the Portuguese faction in the ministry bent on frustrating the Imperial intentions—notwithstanding that, by the revolutionary proceedings in the North, the integrity of the empire was at stake. I may indeed go farther and state with great truth, that whilst His Majesty was most anxious for our speedy departure, in order to suppress the revolution at Pernambuco, his ministers were, day by day, addressing to me letters on the most insignificant subjects, with the apparent object of delaying the squadron by official frivolities, the necessity of replying to which would prevent my attention to the fulfilment of the Imperial wish. The best proof of this is the fact which will be apparent in the course of this chapter, viz.—that although the province of Pernambuco was in open revolt, the Administration contrived to delay the sailing of the squadron for *six months* beyond the events just narrated.

On the 24th of February, the following extraordinary *portaria* was transmitted to me by the Minister of Marine:—

> Desiring to give a further testimony of the high estimation in which the Marquis of Maranhaõ, First Admiral of the National and Imperial Armada, is held, by reason of the distinguished services which he has rendered to the state, and which it is hoped that he will continue to render for the independence of Brazil, I deem it proper to name him Commander-in-Chief of all the naval forces of the empire *during the present war*. The Supreme Military Council is hereby informed thereof, and will cause this decree to be executed.

Palace of Rio Janeiro, the 23rd of February, 1824. Third of the Independence of the Empire, with the Rubrica of His Imperial Majesty.

FRANCISCO VILLELA BARBOSA,

Secretariat of State,

27th February, 1824.

(Signed) ANASTASIO DE BRITO,

Acting Chief Secretary.

The audacity of this *portaria*—setting aside the stipulations of His Majesty and his late ministers in my commission, thus rendering it null and void without my consent—was only equalled by its hypocrisy. As a "*further testimony* of the high estimation in which I was held," &c.—His Majesty's ministers were graciously pleased to annul my commission, in order that they might get rid of me at a moment's warning!

The document transmitted to me *did not* bear the Rubrica of the Emperor, though falsely asserted so to do. If the reader will take the trouble to compare it with my two commissions, he will agree with me in the inference that it was written by Barbosa without the Emperor's knowledge or consent, with the object of terminating my command—the Imperial patents notwithstanding, as will be evident from the expression, "*during the present war;*" the war being *already ended* by my expulsion of the Portuguese fleet and army.

No time was lost in remonstrating against this insidious decree. After pointing out to the Minister of Marine the agreements which had been made with me by the late ministers, and ratified by the Imperial sign manual, I addressed His Excellency as follows:—

The late decree inserted in the Gazette of February 28th, instead of increasing my official rank and authority—as it professes to do—in

effect circumscribes it, because *there was no limitation of time* in the offer which I accepted from His Imperial Majesty. But by this decree, my official rank and authority are limited to the duration of the present war. Now, if I could believe that the idea of this limitation originated with his Imperial Majesty himself, I should respectfully and silently acquiesce; but being satisfied—from the gracious manner in which he has been pleased to act towards me on all occasions—that it did not so originate, I can only consider it an intimation of an opinion prevalent in the councils of the state, that myself and services can very well be done without, as soon as the independence of Brazil shall be decided or peace restored.

As no man can be expected to dedicate his professional services to a foreign country, without having a prospect of some recompence more durable than that which such a limitation as is expressed in the document in question seems to indicate, I am naturally led to inquire whether it is the intention of His Majesty's advisers that, on the termination of the present war, *my pay is to cease with my authority?* or whether I am to receive any permanent reward for services, *the consequences of which will be permanent to Brazil?* Because—if no recompence is to be received for public services —however important and lasting in their effects those services may be—it is a duty to myself and family to consider how far I am justified in farther devoting my time to a service from which so little future benefit is to be expected; a consideration the more interesting to me, in consequence of repeated solicitations from the Chilian Government to resume my rank and command in that state.

In saying thus much, you may consider me of a mercenary disposition; but I have received from Brazil *no recompence whatever*, beyond the honours conferred by His Imperial Majesty. If you will

peruse the accompanying papers, you will find that when I left Chili I had disbursed of my own monies, 66,000 dollars, to keep the Chilian squadron from starving, which sum, in consequence of my leaving Chili, and accepting the offers of His Imperial Majesty, has not been repaid. This amount His Majesty and his ministers agreed to repay on my acceptance of the command; but I declined to seek reimbursement at the expense of Brazil, "unless I should perform greater services to the Empire than I had rendered to Chili; but in the event of such services being rendered to Brazil, and of Chili continuing its refusal to pay me, then—and not otherwise—I should hope for indemnification." To this stipulation the late ministers gave their assent.

It is no proof of an avaricious disposition that I at once acquiesced in the proposition of His Imperial Majesty, that 40,000 dollars only for the *Imperatrice*, which is not one-third of her value, should be apportioned to her captors.

(Signed) COCHRANE AND MARANHAÕ.

I might have added that the squadron had received *no emoluments of any kind whatever*, notwithstanding the spontaneous stipulations of His Imperial Majesty to pay everything, there not being even an indication of handing over to them the 40,000 dollars awarded by His Majesty for the frigate captured at Parà. On the contrary, I had been condemned in costs and damages to a great amount for having captured Portuguese vessels in pursuance of His Majesty's orders; so that had the Court of Admiralty been in a position to enforce these, I should not only be unpaid but be mulcted of a very large sum, as the price of having accepted the command of the Brazilian navy!

So far from the 40,000 dollars awarded by His Majesty for the capture of the frigate *Imperatrice* having been paid according to the Imperial directions, I received from the Minister of Marine a letter dated February 27th, implying that the above sum—one third the value of the vessel—was when paid, to be considered as the *sole* reward of the squadron. This violation of His Majesty's agreement was at once repudiated, and an explanatory letter from the Minister of Marine—almost as ambiguous as the former—assured me that I had misconstrued his intention, which, however, was not the case, for the 40,000 dollars were never paid.

On the 19th of March, a direct insult was offered me by Severiano da Costa, now first minister, by an intimation to attend in the Imperial chapel for the purpose of assisting at the ceremony of swearing to the Constitution, but I was distinctly told that I should not be permitted to swear; the reason no doubt being, that, by a clause therein contained, military officers who swore to it, could not be dismissed without trial, and sentence of court martial; so that the not permitting me to swear—coupled with Barbosa's *portaria* limiting my command to the duration of the war—indirectly gave power to the Administration to dismiss me at their option, whenever they might deem it expedient so to do. That such desire would arise the moment an opportunity might present itself, was certain, nor should I have waited for its expression, but from respectful attachment to His Majesty, and from the expectation of obtaining justice for the squadron, which relied on me for procuring satisfaction of their claims.

To have accepted an invitation of this public nature, under circumstances so insulting, was out of the question. I therefore joined Lady Cochrane at the island of Governador, and sent an excuse to the minister expressive of my regret at being prevented by unavoidable circumstances from sharing in the honour of the august ceremony.

In consequence of the insulting conduct of the Administration, and the impossibility of obtaining compensation for the squadron, notwithstanding His Majesty's orders to that effect, I made up my mind to quit a service in which the authority of the adverse Ministry was superior to that of the Sovereign. Accordingly, on the 20th of March, I addressed to the Minister of Marine a letter, from which the subjoined is an extract:—

> If I thought that the course pursued towards me was dictated by His Imperial Majesty, it would be impossible for me to remain an hour longer in his service, and I should feel it my duty, at the earliest possible moment, to lay my commission at his feet. If I have not done so before—from the treatment which, in common with the navy, I have experienced—it has been solely from an anxious desire to promote His Majesty's real interests. Indeed, to struggle against prejudices, and at the same time against those in power, whose prepossessions are at variance with the interests of His Majesty, and the tranquillity and independence of Brazil, is a task to which I am by no means equal. I am, therefore, perfectly willing to resign the situation I hold, rather than contend against difficulties which appear to me insurmountable. I have only to add, that it will give me extreme satisfaction to find that Your Excellency is enabled to rear an effective marine out of the materials which constituted the fabric of the old marine of Portugal—or any Brazilian marine at all, without beginning on principles totally opposite to those which have been pursued since my return to this port.

(Signed) COCHRANE AND MARANHAÕ.

This proffer of resignation was met by an assurance that I had misconstrued both the acts and intentions of the Administration, and the expression of a hope that I would not think of abandoning Brazil for which

I had done so much. The real fact was, that although the Administration was endeavouring to delay the expedition for the suppression of revolution in the North, they were afraid of its results, dreading that a *republican* Government might be established, as was indeed imminent. It was only from a conviction of not being able to meet such an emergency, otherwise than through my instrumentality—that my resignation was not accepted.

Determined to pursue the course I had now begun, I addressed the following letter to the prime minister:—

Rio de Janeiro, March 30, 1824.

Most Excellent Sir,

> The late Prime Minister, José Bonifacio de Andrada e Silva, was pleased to express a desire that I should communicate directly with him in all extraordinary difficulties with respect to the naval service. If I have not had recourse to your Excellency until the present juncture, it has not been from any doubt of your readiness to accord me similar indulgence, but because the evils of which I had to complain were so palpable, that I conceived a remedy would—of necessity be applied in the ordinary course of things. But now that a system is adopted which must very soon bring the naval service of His Imperial Majesty to utter insignificance and ruin, I can no longer abstain from calling on your Excellency as Minister of State for the internal affairs of the empire, to interfere before it is too late.
>
> Here follow complaints of the wretched state of the squadron—its want of repairs—the neglect of pay—the illegal imprisonment of officers for months without trial and on untenable grounds, &c. &c.

By the promises held out last year of punctuality in payment, and of other rewards, foreign officers and seamen were induced to enter the service—believing in the good faith of the Government. The result—in the short period that has elapsed—has been the complete expulsion of the enemy's forces, naval and military; all of whom would have been still in arms against the independence of Brazil, had it not been for the assistance of the foreign officers and seamen.

In the course of these important services, various captures were made and sent for adjudication to Rio de Janeiro, under the authority of His Imperial Majesty's orders to make war on the subjects and property of Portugal. The captures made in prosecution of the war were—according to the engagements under which the expedition proceeded—to be the reward of the captors in return for the benefits derived by the empire for their exertions.

Judge then, Sir, of the astonishment of the officers and seamen at finding on their return to this port eight months afterwards, that the Court of Admiralty (chiefly composed of natives of Portugal) pretended to be ignorant whether the nation was at war or peace! Under this plea they have avoided the adjudication of the prizes—have thrown every impediment in the way of the captors—by giving sentences equally contrary to law, common sense and justice.

Great quantities of goods in the captured ships have decayed or wholly perished from lapse of time—great quantities more have been stolen—whilst whole cargoes, by the arbitrary authority of an auditor, have been given up without trial, to pretended owners, without even the decency of communication to the captors or their agents. In short, nothing has been done in furtherance of the gracious directions of His

Majesty, given on the 12th ultimo, that the prize affairs should be instantly adjusted.

It is certainly a hardship to the Portuguese gentlemen in the Court of Admiralty, to be under the necessity of condemning property that belonged to their countrymen, friends, and relations; but if they have undertaken the duties of such an office, they ought not to be permitted to weigh their private feelings against their public duty—nor to bring upon the whole Government that character of bad faith, which has been so disgraceful, and has proved so injurious to all the Governments which have hitherto been established in South America.

Even the payment of wages was not made to the *Pedro Primiero* till nearly three months after her return, when the seamen— irritated by the evasion of their dues—had nearly all abandoned the ship; and if the crews of the *Nitherohy* and *Carolina* did not follow their example on their return to port, it was entirely owing to my perseverance before their arrival in procuring this tardy justice.

It was a maxim of the Emperor Napoleon, that "no events are trifling with regard to nations and sovereigns, their destinies being controlled by the most inconsiderable circumstances,"— though circumstances which have the effect of causing the Imperial marine to be abandoned, ought not—in a national point of view—to be regarded as inconsiderable; but whether this be of importance or not, the consequences of such abandonment by men who have so faithfully performed their duty, will be far from beneficial to those short sighted and vain individuals who imagine that the employment of foreign officers is an obstacle to their own advancement. If the present foreign officers are compelled to abandon their situations an explanation must be given of the cause, and public indignation must

inevitably fall on the unreflecting heads of the prejudiced or selfish authors of such impolitic injustice.

I have heard it stated, as a motive for the delay in condemning the prizes, that the Government—in case of a treaty of peace— might be called upon to refund the value to the original owners. But, Sir, let me ask such wretched statesmen, what would have been the situation of Brazil, if foreign officers and seamen had refused to enter the service—as would have been the case, had no prize money been promised? In that case, it is true, the vessels in question would not have been taken—but it is equally true that the enemy's troops would not have been starved into the evacuation of Bahia, nor their squadron have been intimidated to flee from these shores. Military warfare would still have raged in the interior, and the hostile fleet might now have been engaged in the blockade of Rio de Janeiro itself. Would it not be infinitely better that the Government should have to pay the value of these prizes even twice over—than that such calamities should not have been averted?

But how can it be argued that the Government may be required to restore to the enemy prizes lawfully taken in war? Is it possible that the victors can be compelled to make humiliating terms with the vanquished? Certainly not—unless the means by which victory was obtained are insanely sacrificed, by permitting the squadron to go to ruin and decay. The results which have been obtained could not have been accomplished by any other measures than those adopted by the wisdom of His Imperial Majesty. Is it then justifiable, to suffer the engagements which produced such results to be evaded and set at nought? Still more monstrous—decrees have been passed, both by the Auditor of Marine and the Court of Admiralty, to punish the captors

for the execution of their duty, and by means of pains and penalties to deter them from the performance of it in future.

It is even more unjust and inconsistent, that although His Majesty's late ministers held out that ships of war were to be prize to the captors, they are now declared to be the property of the state! Do those narrow-minded persons who prompted such a decree, imagine this to be a saving to the country? or do they expect that seamen—especially foreign seamen—will fight heartily on such terms? The power which the British navy has acquired arises from the wisdom of the government in making the interests of the officers and men identical with the interests of the state, which gives bounties and premiums even in addition to the full value of the prizes; whilst the insignificance and inefficiency of the navies of governments which adopt opposite principles, sufficiently indicate whether such liberality, or the want of it, is the best policy in maritime affairs.

Having said thus much on public matters, I shall very briefly trouble you with respect to myself, by stating that, as regards all which does not depend on the uncontrolled exercise of the Imperial functions—there has been no respect paid to the written stipulations entered into with me on accepting the command of the Brazilian navy, and that since my return from freeing the Northern provinces and uniting them to the Empire, every promise—written and verbal—has been evaded or set at nought, which facts I am prepared to prove beyond the possibility of contradiction.

My nature is not suspicious, nor did I ever become doubtful of promises and professions of friendship till after the third year of my connection with Chili—when, having swept every ship of war belonging to the enemy from the Pacific, the Chilian ministers

imagined that they could dispense with my services. They had not, indeed, the candour which I have experienced here, for, after appointing me to a command without limitation as to time, *they did not publicly restrict the duration of that command to the earliest moment that they could dispense with me*. It was their plan—while openly professing kindness and gratitude—to endeavour, by secret artifices, to render me odious to the public, and to transfer to me the responsibility which they themselves incurred by bringing the navy to ruin, and causing the seamen to abandon it, by withholding their pay, and even the provisions necessary for their subsistence. As for the rest, my remonstrances against such conduct were treated in Chili just as my representations have been treated here. Like causes will ever produce similar effects; but as there was no hostile or Spanish party in the Chilian state, four years elapsed before the mischiefs could be accomplished, which, by the machinations of the Portuguese faction, have been here effected in the short space of four months.

Truths are often disagreeable to those who are not in the habit of hearing them, and doubly offensive after long experience of the homage of blind obedience and subserviency. I have, nevertheless, always felt it my duty to the Governments under which I have served, not to abstain from uttering truths under any dread of offence, because I have ever been impressed with the conviction that speaking truth is not only the most honourable mode of proceeding, but that the time seldom fails to arrive when those who are warned of a wrong line of conduct feel grateful to the man—who at the risk of personal inconvenience, or even punishment—dared to apprise them of their danger.

In England—where mischiefs were heaped upon me for *opposing a ministerial vote of parliamentary thanks to an undeserving officer*—the people at once saw the propriety of my conduct, and the Government has since virtually admitted its justice. In Chili, the ministers who hated me, because they knew me to be aware of their deceitful and dishonest acts, were succeeded by others who have solicited my return. And the worthy and excellent Supreme Director (O'Higgins, whom those ministers, by their wickedness and folly, brought to ruin) found at last, and acknowledged—but too late to attend to my warnings—that I had acted towards him, in all cases, with honour and fidelity.

The error and fate of the excellent and eminent person whom I have just named—affords a proof of the folly and danger of the notion—that ministers who have forfeited the confidence of the public by breach of faith and evil acts, can be upheld by military force against public opinion, especially in Governments recently constituted. The people respected their Supreme Director; but when he marshalled his troops to uphold his evil ministers, he fell with them. Had he adopted the policy of Cromwell, and delivered to justice those who merited punishment, he would have saved himself.

Permit me to say, in conclusion, that the Ministers of His Imperial Majesty are identified with the Court of Admiralty, and with the officers whom they maintain in the different departments. Let them—I repeat—take heed that the operation of similar causes does not produce like effects; for if the conduct of these individuals shall cause the naval service to be abandoned, and shall thereby—as a necessary consequence—occasion great disasters to the Empire, I am convinced that in a short period, all the troops in Rio de Janeiro will not be able

to repress the storm that will be raised against the factious Portuguese.

It is my fervent hope—that His Imperial Majesty, by gloriously adhering to the cause of independence and to Brazil, will save and unite the largest portion of his royal patrimony in defiance of the blind efforts of Portugal, and in spite of the cunning intrigues of the Portuguese faction here, to prolong civil war, and create dismemberment and disunion.

I have the honour to be,

&c. &c.
COCHRANE AND MARANHAÕ.

His Excellency Joao Severiano Maciel de Costa,
Chief Minister of State, &c. &c.

One effect of the preceding letter was—that the Court of Admiralty requested my consent to give up certain prize property, the object being to construe my acquiescence as regarded a small portion—into a precedent for giving up the remainder. This was firmly refused on the ground of its being a fraud on the captors.

CHAPTER VII.

MINISTERIAL MALIGNITY TOWARDS ME—DANGERS IN PERNAMBUCO—PORTUGUESE THREATS—MY ADVICE THEREON—FAILURE IN MANNING THE SQUADRON—PLOT FORMED TO SEARCH THE FLAGSHIP—TIMELY WARNING THEREON—I DEMAND HIS MAJESTY'S INTERFERENCE—WHICH WAS PROMPTLY GRANTED—PROTEST AGAINST PRIZE DECISIONS—MY ADVICE SOUGHT AS REGARDED PERNAMBUCO—LETTER TO HIS IMPERIAL MAJESTY—POINTING OUT THE ANNOYANCE PRACTISED—AND TENDERING MY RESIGNATION—THE EMPEROR'S INTERVENTION—HIS MINISTERS NEGLECT TO FULFIL HIS ENGAGEMENT—CONFIRMATION OF MY PREVIOUS PATENTS—BUT WITH AN UNJUSTIFIABLE RESERVATION—PRIZE MONEY DEVOTED TO ADVANCE OF WAGES—PROOFS THEREOF—BASELESS IMPUTATIONS ON ME—EXTRACTS FROM LOG—FURTHER DISTRIBUTION OF PRIZE MONEY.

Having failed in inducing the Administration to withdraw the *portaria* issued with a view to nullify the commissions conferred upon me by His Imperial Majesty,—I waited upon the Emperor to beg his interference in a matter no less derogatory to his authority, than unjust to myself. His Majesty regretted the circumstance, but having alluded to the difficulties in which he was placed with regard to the Administration, begged me to rely on him for justice, assuring me that he would take care that nothing was done which should practically alter my original compact.

His Majesty was exceedingly anxious that the expedition to Pernambuco should not be delayed, but I could only represent to him that nothing whatever had been done to satisfy the seamen, who, in consequence, would not re-enter—that several of the best officers were either in prison on frivolous accusations, or under arrest—that the necessary repairs to the

ships were not completed—that no steps had been taken to provide for their equipment—and that, in fact, the greater was His Majesty's anxiety to put down the revolution, the more obstructive were the obstacles interposed by the Ministry to the accomplishment of his wishes.

The Ministers now resorted to a clumsy system in order to lower me in popular estimation, by imposing, for my guidance in naval matters, stringent orders about trifles which were absurd or impracticable, non-observance of these being followed by *printed reprimands* such as were never before addressed to a Commander-in-Chief, whilst my refutations and remonstrances against such treatment were refused publication. This course was succeeded by another still more unworthy, the ministers so far forgetting the dignity of their position, as to write or cause to be written against me a series of scurrilous articles in the newspapers under the feigned signature of "Curioso," these containing matters which could only have come from the Minister of Marine's office; but as I was able to reply to *anonymous* attacks through the same channel, I took care that the refutation signally recoiled on the writers, who, finding the course pursued more detrimental to their objects than to mine, relinquished this mode of attack. Pamphlets of an atrocious description were then resorted to, the more noticeable of which, was one purporting to emanate from Chili, and representing that not only had I effected nothing for that country or Peru, but that my very presence in the Peruvian waters had been the greatest obstacle to the speedy attainment of independence!

A circumstance however occurred which alarmed even the Ministers themselves. On the 20th of April, I received a despatch from Captain Taylor, commanding the naval force before Pernambuco, stating that on the 7th, the Camara of that province had unanimously resolved that they would no longer obey the Imperial authority—that the Governor appointed by His

Imperial Majesty had been deposed—and that they had elected a President from amongst their own body.

This was an extremity upon which the Portuguese faction in the Administration had not calculated—their object being to encourage disturbance in remote provinces, in order to further their own purposes at Rio de Janeiro. An attempt to institute a Republican form of Government was, however, another thing, it being well known that this movement was fostered by merchants and influential citizens with republican tendencies.

My advice was now asked as to what was best to be done in the emergency, to which I replied that "no time ought to be lost in sending small vessels to enforce the blockade of Pernambuco, which had already been declared by Captain Taylor; as large vessels would be in imminent danger of being wrecked if anchored upon that open coast at this season of the year."

To add to the dangers threatening the Empire, intelligence was received that the Portuguese had reinforced and refitted their fleet with the intention of returning to Brazil and recovering the Northern provinces. This course, no doubt, having been determined upon on account of information, that, in consequence of the injustice done to the Brazilian squadron, it had been abandoned by the seamen, and was now powerless.

I did not offer to accompany any vessels that might be sent to Pernambuco; for I had made up my mind not to undertake anything unless some satisfaction were accorded to the squadron. On the 3rd of May, I, however, addressed to the Prime Minister a letter stating the plan which, in my opinion, ought to be pursued in the present predicament. The subjoined are extracts:—

Drawing a veil over that which has passed—though had my recommendations, given in writing to His Imperial Majesty on the 14th of November last—two days after the dissolution of the Assembly—been attended to, the rebellion and separation of the Northern provinces might have been prevented. Passing over the errors committed in the non-employment of the greater part of the naval forces; passing over the disgust occasioned by the conduct pursued towards the seamen, the opposition which had been encountered in every step towards amelioration, and the mischief occasioned by these and many other sources of disunion and paralysation, I say—passing over all these—let me call Your Excellency's attention to the only means which appear to me practicable to save the country—if not from again devolving to Portugal as colonial possessions, yet at least from protracted war, and its attendant calamities.

Taking it then for granted that an expedition is actually fitting out at Lisbon, destined to act against Brazil, the question is, how and by what means can that expedition be most successfully opposed? what is the force necessary? and how, under existing circumstances, it can be procured?

(Here follow plans for the reorganization of the navy, and its mode of operation, in order to prevent the anticipated invasion.)

As regards myself, it is my conviction that, though I might be responsible for the discipline and good order of a single ship, I could make nothing of a squadron so manned, as it inevitably must be, and actuated by those feelings which have been excited to the detriment of the Imperial service.

> Since the date of my last letter to Your Excellency, I have received a copy of the laws relative to prizes, and am convinced that these laws differ in no material degree from the maritime code of England, the adoption of which I had solicited; and that the blame of all the disquiet that has been occasioned is entirely owing to the non-execution of the laws by those individuals who have been nominated to dispense justice, but who have perverted it.

(Signed) COCHRANE & MARANHAÕ.

Notwithstanding the threatening aspect of affairs in the North, no steps were taken to satisfy the seamen. In place of this I received orders to use my influence with them *to re-enter without payment!* Determined that the Government should not have to find fault with any want of effort on my part, I obeyed the order, with what result the following letter to the Minister of Marine will shew:—

> In consequence of the directions from His Imperial Majesty, communicated through Your Excellency, to equip the *Pedro Primiero, Carolina*, and *Maria de Gloria*, with all possible despatch, and to hold them in readiness to proceed on service, I ordered a commissioned officer to visit the different rendezvous which the seamen frequent, and endeavour to prevail on them to re-enter —assuring them that the continuance of their services was the best means whereby to obtain their rewards for captures made during the late campaign. It appears, however, that it will be difficult to prevail on them to engage again in the service, without some explicit declaration made public on the part of the Imperial Government, stating what they have to expect for the past, and to anticipate for the future; for the conduct that has been pursued, especially in regard to matters of prize, has led them to draw

conclusions highly prejudicial to the service of His Imperial Majesty.

(Signed) COCHRANE AND MARANHAÕ.

I also protested against the intended arrest of Captain Grenfell, knowing that there were no grounds for such a step, and more especially against the seizure of his papers, which necessarily contained the requisite proofs in justification of his conduct at Parà. The only offence he had committed was his firmness in repressing the seditious acts of the Portuguese faction there; and as those whom he had offended had influence with their countrymen connected with the administration at Rio de Janeiro, a tissue of false representations as to his conduct, was the readiest mode of revenge, so that he shared the enmity of the faction in common with myself, though they did not venture to order my arrest.

One instance of the annoyance still directed against myself, on the 4th of June, is perhaps worth relating. It had been falsely reported to the Emperor by his ministers that—besides the 40,000 dollars which I refused to give up—specie to a large amount was secreted on board the *Pedro Primiero*, and it was suggested to His Majesty, that, as I was living on shore, it would be easy to search the ship in my absence —whereby the Emperor could possess himself of all the money found. This disgraceful insult was on the point of being put in execution, when an accident revealed the whole plot; the object of which was, by implied accusation, to lower me in popular estimation—a dastardly device, which, though contemptible, could hardly fail to be prejudicial to myself, against whom it was directed.

Late one evening I received a visit from Madame Bonpland, the talented wife of the distinguished French naturalist. This lady—who had singular opportunities for becoming acquainted with state secrets—came expressly to inform me that my house was at that moment surrounded by a guard of

soldiers! On asking if she knew the reason of such a proceeding, she informed me that, under the pretence of a review to be held at the opposite side of the harbour early the following morning, preparations had been made by the ministers to board the flagship, which was to be thoroughly overhauled whilst I was detained on shore, and all the money found taken possession of!

Thanking my excellent friend for her timely warning, I clambered over my garden fence, as the only practicable way to the stables, selected a horse, and notwithstanding the lateness of the hour, proceeded to St. Christoval, the country palace of the Emperor, where, on my arrival, I demanded to see His Majesty. The request being refused by the gentleman in waiting, in such a way as to confirm the statement of Madame Bonpland—I dared him to refuse me admission at his peril; adding that "the matter upon which I had come was fraught with grave consequences to His Majesty and the Empire." "But," said he, "His Majesty has retired to bed long ago." "No matter," replied I, "in bed, or not in bed, I demand to see him, in virtue of my privilege of access to him at all times, and if you refuse to concede permission—look to the consequences."

His Majesty was not, however, asleep, and the royal chamber being close at hand, he recognised my voice in the altercation with the attendant. Hastily coming out of his apartments in a *dishabille* which, under ordinary circumstances, would have been inconsistent, he asked—"What could have brought me there at that time of night?" My reply was—that "understanding that the troops ordered for a review were destined to proceed to the flagship in search of supposed treasure, I had come to request His Majesty immediately to appoint confidential persons to accompany me on board, when the key of every chest in the ship should be placed in their hands, and every place thrown open to their inspection; but that if any of his anti-Brazilian Administration ventured to board the ship in perpetration of the

contemplated insult, they would certainly be regarded as pirates, and treated as such." Adding at the same time—"Depend upon it, that they are not more my enemies, than the enemies of your Majesty and the Empire, and an intrusion so unwarrantable, the officers and crew are bound to resist." "Well," replied His Majesty, "you seem to be apprised of everything, but the plot is not mine; being—as far as I am concerned—convinced that no money would be found more than we already know of from yourself."

I then entreated His Majesty to take such steps for my justification as would be satisfactory to the public. "There is no necessity for any," replied he; "but how to dispense with the review is the puzzle.—I will be ill in the morning—so go home, and think no more of the matter. I give you my word your flag shall not be outraged by the contemplated proceeding."

The *denouement* of the farce is worthy of being recorded. The Emperor kept his word, and in the night was taken suddenly ill. As His Majesty was really beloved by his Brazilian subjects, all the native respectability of Rio was early next day on its way to the palace to inquire after the Royal health, and, ordering my carriage, I also proceeded to the palace, lest my absence might appear singular. On entering the room, where—surrounded by many influential persons—the Emperor was in the act of explaining the nature of his disease to the anxious inquirers—a strange incident occurred. On catching my eye, His Majesty burst into a fit of uncontrollable laughter, in which I as heartily joined; the bystanders, from the gravity of their countenances, evidently considering that both had taken leave of their senses. The Ministers looked astounded, but said nothing—His Majesty kept his secret, and I was silent.

Months had now been consumed in endeavours on the part of the Administration to give annoyance to me—and on the part of the prize tribunal to condemn me in costs for making lawful captures, this appearing

to form their only object; save when a prize vessel could be given up to a claimant or pretended claimant, in outrage of justice, as evinced in the case of the *Pombinho's* cargo, and numerous other instances.

To such an extent was this being carried, that I sent protest after protest on the subject. The following will serve as a specimen:—

PROTEST.

> The Marquis of Maranhaõ, First Admiral and Commander-in-Chief of the Naval forces of His Imperial Majesty, does hereby protest, on behalf of himself and those employed under his command in the blockade of Bahia, and other services of the Empire, against the sentence given in the case of the Nova Constitucaõ, *whereby costs and damages to the amount of four times the value are decreed against the captors of the said vessel* (taken in the act of violating the blockade of Bahia), in performance of duties which the law sanctioned and the service of His Imperial Majesty required.
>
> And further, the said Marquis of Maranhaõ, on behalf of himself and the captors, does again most solemnly protest against *all sentences of acquittal* of vessels which violated the said blockade, or which were seized, navigating under Portuguese flags or with Portuguese registers—and against all proceedings to recover damages against the said Marquis and captors *for any capture whatsoever*; His Imperial Majesty having been graciously pleased to signify that all expenses thus incurred in case of vessels pronounced "*malprisa*," shall be placed to the account of the State.

Rio de Janeiro, July 23, 1824.

The anxiety of His Majesty on account of the revolt at Pernambuco was meanwhile utterly set at nought, neither Severiano, nor his colleague Barbosa—though now beginning to be alarmed—shewing the slightest disposition to carry out His Majesty's orders for the compromise with the officers and seamen, in order that the squadron might be manned. At length intelligence arrived from the revolted districts, of such a nature as to appear to His Majesty fraught with immediate danger to the integrity of the Empire, as in truth it was, for the Republican nature of the insurrection had become an established fact, whilst the squadron which, months before, ought to have sailed to quell the revolt, was, from, want of men, lying idle in the port of the capital.

Setting aside all Ministerial interposition, I received His Majesty's orders to repair at once to the palace, to decide on the best plan of meeting these revolutionary manifestations. My advice was—at once to put them down with a strong hand; but I called His Majesty's attention to the ministerial contempt of his orders to satisfy the seamen, and the consequent hopeless condition of the squadron—abandoned because no assurance had been given that past services would be rewarded by the adjudication of the prizes—against which adjudication the tribunal resolutely set their faces, or, what was worse, unwarrantably disposed of the property entrusted to them for adjudication.

His Majesty was greatly annoyed at learning the continuance and extent of the vexatious opposition to his wishes; but, begging me not to be influenced by the injustice committed, strongly urged the necessity of my using every endeavour for immediate action,—I at once pointed out to His Majesty that the only way to accomplish this was, to restore confidence to the men by maintaining public faith with the officers and seamen, giving compensation—at least in part—of their prize money, with recognition of their claims to the remainder.

Still nothing was done, until, becoming tired of the harassing circumstances in which I was placed, I made up my mind to a last effort, which, if unsuccessful, should be followed by my resignation of the command, even though it might involve the loss of all that which was due to me. Accordingly, I addressed to His Majesty a letter from which the following are extracts:—

> The time has at length arrived when it is impossible to doubt that the influence which the Portuguese faction has so long exerted, with the view of depriving the officers and seamen of their stipulated rights, has succeeded in its object, and has even prevailed against the expressed wishes and intentions of Your Majesty in person.
>
> (Here follows a recapitulation of injuries and annoyances with which the reader is familiar):—
>
> The determined perseverance in a course so opposed to justice, by those members and adherents of the Portuguese faction, whose influence prevails in the ministry and council, and more especially the proceedings of those individuals of that faction, who compose the naval tribunals, must come to an end.
>
> The general discontent which prevails in the squadron has rendered the situation in which I am placed one of the most embarrassing description; for though few may be aware that my own cause of complaint is equal to theirs, many cannot perceive the consistency of my patient continuation in the service, with disapprobation of the measures pursued. Even the honours which Your Majesty has been pleased to bestow upon me, are deemed by most of the officers, and by the whole of the men—who know not the assiduity with which I have persevered in earnest but unavailing remonstrance—as a bribe by which I have been induced to abandon their interests. Much,

therefore, as I prize those honours, as the gracious gift of Your Imperial Majesty, yet, holding in still dearer estimation my character as an officer and a man, I cannot hesitate a moment which to sacrifice when the retention of both is evidently incompatible.

I can, therefore, no longer delay to demonstrate to the squadron, and the world, that I am no partner in the deceptions and oppressions which are practised on the naval service; and as the first, and most painful step in the performance of this imperious duty, I crave permission—with all humility and respect—to return those honours, and lay them at the feet of Your Imperial Majesty.

I should, however, fall short of my duty to those who were induced to enter the service by my example or invitation, were I to do nothing more than convince them that I had been deceived. It is incumbent on me to make every effort to obtain for them the fulfilment of engagements for which I made myself responsible.

As far as I am personally concerned, I could be content to quit the service of Your Imperial Majesty, either with or without the expectation of obtaining compensation at a future period, and could submit to the same sacrifices here as I did on the other side of the continent, even to abandoning the ships which I captured from the enemy—without payment or reward—as I did in Chili and Peru. After effectually fighting the battles of freedom and independence on both sides of South America, and clearing the two seas of every vessel of war, I could submit to return to my native country unrewarded; but I cannot submit to adopt any course which shall not redeem my pledge to my brother officers and seamen. Neither can I relinquish the object which I have equally at heart, of depriving the Portuguese faction of the means of undermining the nationality and independence of the

empire, to which—notwithstanding their admission to places of honour and trust—they are notoriously and naturally opposed.

It is impossible to view the prize tribunal—consisting of natives of the hostile nation—in any other light than as a party of the enemy, who, in the disguise of judges, have surprised and recaptured our prizes, after we had lodged them—as we thought—safely in port. And we have not the slightest reason to doubt that, if suffered to proceed unmolested, they will eventually get them clean out of the harbour, and convey them back to their own country. We do not ask for reprisals upon these people, but simply restitution of the fruits of our labours in the service of Your Majesty, of which they have insidiously despoiled us, and that no impediment to this act of justice may arise, or be pretended by the individuals in question, we are willing to wait for a still further period—retaining, however, what remains of the prizes in our own custody—until our claims are settled; when we shall punctually surrender them into Your Imperial hands at whatever moment Your Majesty shall be pleased to cause the said claims to be duly discharged.

We most earnestly beseech Your Imperial Majesty—upon whom alone we depend for justice—to take into your consideration the necessity of withdrawing all control over the naval service and its interests from the hands of individuals with whose country Your Majesty is at war, and against which, under Your Imperial authority, we have been employed in active hostilities. It is only by the removal of Portuguese functionaries—more especially from the naval department, and the appointment of native Brazilians in their stead, that Your Imperial Majesty can reasonably hope to possess the full confidence of your people. Such a proceeding would be far more

effective for the suppression of the rebellion in the North, than the ill-equipped naval detachment employed on that service.

I trust that Your Imperial Majesty will perceive that nothing short of the most thorough conviction in my own mind, with regard to the step now taken, could have led me to adopt it on my own account, or on that of the squadron. To myself, in particular, it must be a source of great anxiety, and in all probability, for a time —before the circumstances are generally understood—it may bring on me a large share of obloquy. My resignation is attended with the surrender of the high honours with which Your Majesty has graciously invested me, in addition to the honourable situation which I hold under Your Imperial authority. Your Majesty may be assured that such sacrifices as these are not made without extreme reluctance, and if there had remained the slightest probability of obtaining by any ordinary means the justice for the squadron, which it is my bounden duty to persevere in demanding, I should have avoided a step so pregnant with disadvantages to myself.

(Signed) COCHRANE AND MARANHAÕ.

His Majesty frankly admitted that the course pursued by his Ministers towards the squadron was no less discreditable than injurious to the vital interests of the state, but begged me to reconsider my determination. To prevent further ministerial interposition, at a moment so pregnant with danger, the Emperor offered to place at my disposal, for the temporary satisfaction of the men, 200,000 milreis in paper currency—not one-tenth of the value of the prizes—if I would endeavour to rally them under the national flag, and merge my own injuries in oblivion, till he should be better able to do us justice.

My reply was that, personally, His Majesty had ever manifested his desire to fulfil his promises to me, and that I would stand by the integrity of the empire, and its consolidation. It was of the ministers I had to complain, by whom all the Imperial promises had been broken, and His Majesty's intentions thwarted; but that this would neither interfere with my duty nor gratitude to His Majesty, personally; and that if the 200,000 milreis were paid, I would endeavour to use the money to the best advantage by inducing the men to return to the ships.

The amount was directed to be placed in my hands, with the request that I would proceed to Pernambuco, and use my discretion in putting down the revolution, unfettered by orders; His Majesty recommending me to withhold payment till the squadron was at sea, in order to prevent delay and desertion. I begged of His Majesty to appoint a commission for the distribution of the money, as the responsibility was foreign to my duties. This, however, was overruled with a gracious compliment as to the manner in which my services had uniformly been conducted; being thus pressed I made no further opposition.

Still the ministers withheld the money, on which I wrote to the Emperor, requesting that His Majesty would perform the gracious compliment of delivering it on board personally. The Emperor at once comprehended the nature of the hint, and insisted on the sum being placed in my hands. On receiving it, I immediately issued a proclamation to the seamen, informing them of His Majesty's concession—inviting them to return to their duty—and promising payment to the extent of the funds supplied. The result was, that all who had not quitted Rio de Janeiro in despair, with one accord rejoined the service, and every effort was made to get the expedition ready for sea.

Before sailing for Pernambuco I was naturally desirous of coming to a definite understanding on the subject of my commission, the patents conferring which had been ruthlessly attempted to be set aside under the signature of Barbosa, on the *assumed pretence of authority* from His Imperial Majesty, whose *rubrica*, however, was not attached to this violation of our original compact. Accordingly, on the 26th of July, I addressed a letter to Barbosa on the subject, and on the 29th received the following reply:—

> His Imperial Majesty commands, through the Secretary of State and Marine, that there shall be transmitted to the First Admiral commanding-in-chief the naval forces of this empire the enclosed copy of a decree of the 27th of this month, by which His Imperial Majesty has judged proper to determine that the said First Admiral shall receive *in full*, so long as he shall continue in the service of this empire, *the full pay of his patent*; and, *in the event of his not choosing to continue therein after the termination of the present war of independence, the one-half of his pay as a pension*—the same being extended to his wife in the event of his decease.
>
> The said First Admiral is hereby certified that the said decree of His Imperial Majesty is not required to be inserted in his patent, as he requests in his letter of the 26th instant, the said decree being as valid as the patent itself.

Palace of Rio de Janeiro,
July 29th, 1824.

(Signed) FRANCISCO VILLELA BARBOSA.

Decree of His Imperial Majesty, inserted in the *Mercurio de Brazil*, Sunday, 31st July, 1824.

In consequence of what has been represented to me by the Marquis of Maranhaõ, First Admiral and Commander-in-Chief of the naval forces of the empire, and in consequence of the great services he has rendered, and which we hope he will continue to render to the sacred cause of Brazil, I hereby—by the advice of my Council of State—determine that the said Marquis of Maranhaõ shall be paid in full, during the period that he shall remain in the service of this empire, the whole amount of salary due to his patent; and in the case of his *not wishing to continue in the service* after the termination of the present war of independence, the one-half of the said pay as a pension, the same, in case of his death, being extended to his wife.

Francisco Villela Barbosa, of my Council of State, Minister and Secretary of Marine, is hereby commanded to promulgate the same, and execute the necessary despatches.

Given in the palace of Rio de Janeiro, the 27th of July, 1824, and the third of independence and the empire.

With the *Rubrica* of His Imperial Majesty.

(Signed) FRANCISCO VILLELA BARBOSA.

This decree nullified the unjustifiable *portaria* issued by Barbosa, limiting my services to the period of the war, which, in reality, had been ended by my expulsion of the Portuguese from Bahia and Maranham. It recognised and established the validity of the Emperor's original patents, of which, by the minister's own explanation, it was a continuation, with an extension to Lady Cochrane; a boon spontaneously granted by the Emperor, as a mark of gratitude for services rendered in the preceding year. It was, moreover, clearly left to my own option to continue in the service or to quit it on half-pay, on the termination of the war of independence.

If there was any faith to be placed in princes or ministers, nothing could be more definite or satisfactory than the preceding document, with the exception of the phrase, "*in the event of his not choosing to continue therein*," which evidently contained an *arrière pensée*, implying, as was afterwards proved, that when I could be got rid of it would be easy to *compel me* to retire from the service; but even this alternative was subsequently disregarded—though His Imperial Majesty, on my thanking him for having so far done me justice against the attempts of his Ministers—remarked, "*never mind their injustice—they can't deprive you of that*"—alluding to the stipulations contained in the Imperial patents, and this renewed confirmation thereof.

The concession of 200,000 dollars, as a portion of the prize money so long due to the officers and crews, was actually made to suffice, in place of an advance of wages usually given on the departure of a naval expedition; so that, in fact, the squadron was manned at its own expense! no other payment being accorded by the *Government*. As His Majesty had requested that the men should not receive their money before going to sea, *the squadron*, with the exception of the flagship, was despatched on its voyage, the crews being satisfied—now that the money was on board—with my promise of payment when they should assemble at the rendezvous appointed.

It is requisite to enter into some detail relative to the distribution of prize money thus of necessity substituted as an advance of wages: it being impossible to get the requisite numbers of foreign seamen for the *Pedro Primiero* without such advance; and although the frigates which had sailed, manned for the most part with Portuguese or Brazilian crews, relied upon *me* for payment of their prize money, the foreign seamen refused even to remain on board the flagship without the usual advance; the officers also

were in want of everything, and the men—indebted to tavern keepers—clamorous for payment.

As the necessity was urgent, I did not choose that the flagship, under my immediate command, should leave port in a discreditable manner, I therefore took upon myself—notwithstanding His Majesty's suggestion to withhold payment till we were at sea—to accommodate the officers and satisfy the crew by the advance demanded; a step, in my judgment, the more necessary, since, as had been the case in the former campaign, I should mainly have to depend upon the foreign officers and seamen of my own ship, for the execution of plans which might become requisite—the best way, therefore, to ensure their zealous co-operation throughout the voyage, was to establish harmony at its commencement by complying with their just demand.

The following were the principal sums disbursed on this occasion, as appears from my private memoranda, the vouchers themselves being afterwards transmitted to the Minister of Marine through Captain Shepherd, as will subsequently appear:—

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Advanced to Squadron generally 23,000

Ditto to Captain Crosbie 5,000

Ditto, to other Officers 3,750

Disbursed at Rio, 70,750

This sum, about £.14,000, may appear trivial to the English reader, accustomed to lavish expenditure in all naval expeditions as the most economical way of securing their future efficiency—and hence the mention of such an amount may be deemed superfluous. That this is not the case will presently appear.

The reader must not however imagine that I am about to inflict on him an account current of the expenditure of the squadron; but circumstances compel me to a precision in this respect on personal grounds: the Brazilian Government—though in possession of the documents and vouchers afterwards transmitted by Captain Shepherd—publicly persisting in the

statement that I never furnished accounts of the expedition to Pernambuco and Maranham—thus leaving the public to infer that the disbursements just narrated, together with subsequent payments, had never in reality been made! In other words, that I induced the crews to go to sea—put down the revolution in the North—spent nine months in pacifying the revolutionary provinces—and yet fraudulently withheld 200,000 dollars, the only sum supplied during the whole of the expedition; the seamen meanwhile not only serving without reward, but being content with my monopolizing the portion of the prize-money known by them to have been awarded for the expulsion of the Portuguese in the preceding year, and notoriously in my possession! Their forbearance being so improbable as to refute itself, being contrary to common sense; even in the absence of the vouchers, which were transmitted to the Brazilian Government, *but never acknowledged*—I am able however to account for the whole from documents no less convincing than the vouchers transmitted.

It is true that nothing but the blind hatred of the old Portuguese faction towards me could have originated such charges, and that hatred was greatly increased by my pacification of the revolutionary provinces—this being the death-blow to the intrigues recommended by Palmella in favour of the mother country. As, however, the Brazilian Government did not acknowledge to me the receipt of my accounts, which must either exist to this day in the office of the Minister of Marine, or must have been destroyed, for the sake of traducing my character in justification of my prospective dismissal—it is incumbent on me to supply, for the information of the Brazilian people, explanations which have been repeatedly given to their Government, but which have not as yet been made public through the medium of the press—and that not for the information of the Brazilian people solely, but of the British public, who, in the absence of official imputations recently promulgated, have never before been put in possession of facts.

The Brazilian people may rest assured that whenever I received, for the use of the squadron, sums which itself had captured, I could neither then conceal the circumstance nor can I now disavow the fact—giving, however, the reasons which, for the interests of the Empire, justified my proceedings. The only instance of this kind which had hitherto occurred was my retention of 40,000 dollars captured at Maranham, and they who have perused the preceding narrative will be at no loss for the ground of my refusal to surrender to the Court of Admiralty a sum which would have been returned by that tribunal to their Portuguese brethren—nor for my resistance to the plot which the ministers had formed to take it by force from on board the flagship.

To return to the advances made to the officers and seamen of the flagship. The following extracts from the original log kept by my secretary will shew the fact of the distribution previously narrated:—

> *July 12th*, 1824. Received the 200,000 dollars at the treasury, and gave receipt, with Captain Crosbie and the Commissary. Deposited the notes in the iron chest on board the *Pedro Primiero*.
>
> *July 19th*. Went on board the *Pedro Primiero* to pay advance. (Paid May and Lukin 15,000 dollars.) Engaged all day in paying the men.
>
> *July 26th*. Went to the *Pedro*, with the Admiral and Lieutenant Blake, to pay advance from the prize-money. In the evening the Emperor called and announced to the Admiral that he was to sail on Sunday next.
>
> *July 31st*. On board the *Pedro* paying seamen as before. Soldiers came on board.

> *August 2nd.* Emperor came alongside. Admiral embarked. Got under way, and set sail in company with the *Maranhaõ* brig and three transports.

The preceding extracts shew that not only was an advance made for the good of the service, but this was done with such publicity, that both the Emperor and his ministers could not fail to be aware of the circumstance. The further distribution as prize-money, according to His Majesty's direction, took place at Bahia and Pernambuco, as will be shewn in the next chapter.

CHAPTER VIII.

REPUBLICAN GOVERNMENT PROCLAIMED AT PERNAMBUCO—ITS CONCORDAT——THE PRESIDENT CARVALHO—THREAT OF BOMBARDMENT—A BRIBE OFFERED TO ME AND REFUSED—THE REVOLT ADMITTED OF PALLIATION—IT WAS FAST BECOMING GENERAL—INTIMIDATION INEFFECTUAL—THE REVOLUTIONISTS EXPECT FOREIGN AID—PERNAMBUCO TAKEN POSSESSION OF—PAYMENT OF PRIZE MONEY—THE ACCOUNTS RENDERED IN DUE COURSE—ORDERS TO PUT DOWN REVOLT AT PARA—CHARACTER OF THE REVOLUTION—DIFFICULTY IN FINDING PROPER GOVERNORS—REVOLT AT CEARA—STEPS TAKEN TO SUPPRESS IT—THEY PROVE SUCCESSFUL—THE INSURGENT LEADER KILLED—MEASURES FOR PRESERVING TRANQUILLITY.

On the 2nd of August, 1824, the Imperial squadron again quitted Rio de Janeiro, the rendezvous being appointed at Jurugua, where we arrived on the 13th, and on the 16th landed a body of twelve hundred troops under General Lima, at Alagoas, seventy or eighty miles from the seat of revolt! this notable step being taken in pursuance of strict orders from the Administration at Rio de Janeiro.

On the 18th, the squadron reached Pernambuco, falling in, near the entrance of the port, with a number of Portuguese vessels quitting the city with passengers; but in consequence of the prize tribunal having *decreed damages* for the seizure of enemy's ships within a certain distance of the coast, they were permitted to pass unmolested.

We did not reach Pernambuco too soon, for proclamations had been issued by Manuel Carvalho Paes de Andrade, the revolutionary President—

denouncing Don Pedro as a traitor, whose aim it was to abandon Brazil to the Portuguese; which denunciation, though right in one sense, was wrong as regarded the Emperor, whose views were thoroughly national—though the object of his ministers was as thoroughly Portuguese. Had the Pernambucans been aware of the want of concord between the Emperor's intentions and those of his ministers, who had forced themselves upon him—the probability is that they would have supported, instead of denouncing his government.

The revolution had, however, now taken vigorous root, and the democratic spirit of the Pernambucans was not to be trifled with. A republican form of Government had been proclaimed, the views of which were on a more extensive scale than was commensurate with the abilities of those propounding them; it being their vain hope to constitute all the equatorial provinces into a federation, on the model of the United States, a project fostered—if not originated—by Americans resident in the city. To further this object, an appeal was made to the other Northern provinces to repudiate the Imperial authority, and to form with Pernambuco an alliance, under the title of "Confederation of the Equator;" the consequence being, that a large proportion of the inhabitants of Parahyba, Piahuy, Rio Grande do Norte, and Cearà, declared in favour of the measure.

The annexed is the Concordat of the revolutionary provinces:—

> In the year of Our Lord 1824, third year of the Independence of Brazil, and the 3rd of August in that year, in the Hall of Session of the Government of the Province of Pernambuco, there being present, the Brazilian citizen, Quaresma Torreaõ, on behalf of His Excellency the President, Carvalho Paes de Andrade, and the Illustrious and Reverend Francisco da Costa Leixas; José Joaquim Fernandez Barros, and the Citizen José Joaquim Germiniano de Moraes Navarro, on

behalf of the province of Rio Grande del Norte, by diploma dated August 16, 1824, and also the Illustrious deputies commissioned by His Excellency the Governor of the Province of Pernambuco to treat on behalf of his Government, with a view to extinguish dissension in political opinions, which has so greatly retarded the progress of Brazil, and of independence and liberty; and, at the same time, to do their endeavour to banish a servile spirit which tends to enthral Brazil by a pretended Constitution, domineering over the Brazilian nation like that of the Grand Seignior of the Ottoman Porte.

The Commission of the Government of this province, and the illustrious deputations before-mentioned, having maturely considered these subjects, agree—

First,—That these provinces of Pernambuco and Rio Grande unite in a fraternal league, offensive and defensive, to assemble all their forces against any aggression of the Portuguese Government, or that of the Government of Rio de Janeiro, to reduce these provinces to a state of thraldom.

Secondly,—That the said league shall extend to the establishing constitutional liberty throughout the said provinces, and to supplant the servile spirit with which they are infected, and thus avert civil war, engendered by the intrigues at Rio de Janeiro, the influence of which now pervades the whole of Brazil.

Thirdly,—That to insure the effect of this compact, the Government of Rio Grande must form a body of troops, and place them on the borders of the province of Parahyba, to be employed as necessity requires.

Fourthly,—That this body of troops shall be supported by the province of Pernambuco, but shall be afterwards supported by the "Confederation of the Equador." And that the same may be carried into immediate effect, this Concordat shall have full force, after being signed and ratified by their Excellencies the Presidents of the said provinces of Pernambuco and Rio del Norte.

(Signed)
P. FRANCISCO DA COSTA LEIXAS.
JOSÉ JOAQUIM FERNANDEZ BARROS.
JOSÉ JOAQUIM GERMINIANO DE MORAES NAVARRO.
BASILIO QUARESMA TORREAÓ.
MANOEL DE CARVALHO PAES D'ANDRADE, President.

Printed at the National Press.

Carvalho, however, was not the man to carry out such a scheme, his enthusiasm being without prudence or daring; hence, on our arrival—in place of union, the contending factions were engaged in destroying each other's sugar-mills and plantations, whilst Carvalho himself had taken the precaution to station a vessel at the island of Tamarica, for the purpose of escaping, if necessary, from the turbulence which he had raised, but could not control. On learning this, I felt it my duty to despatch a corvette to seize her, *though at the risk of four-fold damages, according to the regulations of the Admiralty Court!*

Knowing that it would take some time for the troops to come up, I determined to try the effect of a threat of bombardment, and issued a proclamation remonstrating with the inhabitants on the folly of permitting themselves to be deceived by men who lacked the ability to execute their schemes; pointing out, moreover, that persistence in revolt would involve both the town and its rulers in one common ruin; for, if forced to the

necessity of bombardment,—I would reduce the port and city to insignificance. On the other hand, I assured them that if they retraced their steps, and rallied round the Imperial throne, thus aiding to protect it from foreign influence—it would be more gratifying to me to act the part of a mediator, and to restore Pernambuco to peace, prosperity and happiness—than to carry out the work of destruction which would be my only remaining alternative.

In another proclamation I called the attention of the inhabitants to the distracted state of the Spanish republics on the other side of the Continent, asking whether it would be wise to risk the benefits of orderly government for social and political confusion; entreating them not to compel me to proceed to extremities, as it would become my duty to destroy their shipping and block up their port, unless within eight days the integrity of the empire were acknowledged.

These threats were held out in the hope that by intimidation a struggle might be prevented, but they failed to produce the desired effect. One result was, however, not a little curious, as originating an offer to myself from the revolutionary President, of a bribe of 400,000 milreis, to be shipped immediately on board the English packet anchored off the port, if I would abandon the Imperial cause, and come over to the Republicans; this offer alluding, in strong terms, to the "infamous treatment with which my services had been met by the administration at Rio de Janeiro, and warning me that, by adhering to it, I should meet with nothing but continued ill-treatment and ingratitude."

The subjoined is the revolutionary President's letter:

MY LORD,

Frankness is the distinguishing character of free men, but Your Excellency has not found it in your connection with the Imperial Government. *Your not having been rewarded for the first expedition affords a justifiable inference that you will get nothing for the second.* I therefore use the freedom to assure Your Excellency the amount of 400 contos of Reis, as an indemnification for your losses.

The services required from Your Excellency are to take up the cause of the "Confederation of the Equator," as adopted by the majority of the Northern provinces, whose limits will be the river of Francisco da Norte.

I have the honour to be
Your Excellency's most humble servant,

MANUEL DE CARVALHO PAES D'ANDEADE.

The letter contained, in addition, an argumentative justification of the revolt, but as it abounds in abuse of the Emperor, couched in the most indecorous language, I will not sully these pages by printing it entire.

The result predicted by Carvalho—as I had learned by experience—was not improbable, but it did not follow that, because the Brazilian ministers were unjust and hostile to me, I should accept a bribe from a traitor to follow his example. I therefore transmitted the following reply to his impudent proposal:—

Pedro Primiero, Off Pernambuco, Aug. 26, 1824.

SIR,

If I shall have an opportunity of becoming personally known to Your Excellency, I can afford you proof to conviction, that the

opinion you have formed of me has had its origin in the misrepresentations of those in power, whose purposes I was incapable, on principle, to serve.

I have, &c. &c. COCHRANE AND MARANHAÕ.

His Excellency M. DE C. PAES D'ANDEADE.

On the 19th, the Junta requested the interposition of the English and French consuls to induce me to give further time for consideration. This I refused, from the dangerous nature of the anchorage, by which the safety of the ships was imperilled.

Unwilling, however, to injure this fine city, I sent in proposals for capitulation, giving permission to the revolutionary leaders to depart unpunished, together with their property, provided they quitted the Brazilian territory—demanding in return the surrender of the forts, ships of war, gunboats, &c. as well as of all public property. In order to prevent waste of time in correspondence, I proposed to Carvalho to meet me on board any neutral ship of war, pledging my honour as to his being permitted to return in safety; he nevertheless declined the interview, proposing in return to meet me on shore on an island near the town but—as after his insulting proposal, I could have no confidence in his honour, this was of course declined.

Still anxious to avoid extremities—from which, after the threats made, I could not consistently refrain—I again wrote to Carvalho, that, had he possessed the means of distinguishing between the intentions of the Emperor, and the proceedings of a foreign faction, he would not have been in arms against His Imperial Majesty, by adherence to whom Brazil could alone be saved from that anarchy and confusion into which Mexico and other South American States had fallen through individual rivalry and the

ignorance of their popular assemblies. I further pointed out to him, that if, by procrastination I was compelled to bombard the city, the popular clamour against the insurgent authorities might be followed by melancholy proof to himself how quickly political adventurers may be abandoned or betrayed in the hour of danger, and that he had better yield to reason, what he could not prevent my effecting by force.

By writers who could not have known anything of the circumstances—which exist only in my own documents—I have been blamed for this tone of moderation towards the revolutionary President. There were two valid reasons for this course; first, that the conduct of the Pernambucans admitted of great palliation, seeing that the distractions resulting from the Portuguese faction in the administration at Rio de Janeiro had been ignorantly construed into acts of His Imperial Majesty—so that the injured people argued that it would have been better for them to have remained a colony of Portugal, than a colony of the Government at Rio de Janeiro—this mode of reasoning not being very far wrong. Secondly—and this fully accounts for the moderation complained of—I knew, from the most authentic sources that, in case of attack on the city, Carvalho had determined to retire into the interior, there to carry on civil war by enlisting the negro population under his standard; to avert which, I considered that moderation was the best course to induce him and his partisans to quit the empire, which would thus have been well rid of them.

It was folly, therefore, to consider the rebellion local, as had been represented to the Imperial Government, or that its actors and instigators were few and insignificant, for, in truth, as has been said, it had already extended far and wide into the adjacent provinces, I therefore wrote to the Minister of Marine, that "although it might not be difficult to put down the revolution in the city, which, even the land forces could have already accomplished, had they not been landed at a distance—yet that without

great circumspection, the prevention of further revolution in the interior would be a work of time, trouble, and expense; and that even all these would be thrown away, unless the causes which had led to the rebellion, were removed or explained."

The time given having expired without acceptance of the terms, it became necessary to make at least a shew of enforcing them, though the water was too shallow to admit vessels of large burden to approach with safety, and the small vessels were ill adapted to the purpose; still I determined to make a demonstration, and as a preparatory step ordered Captain Welsh, of the *Paraguassu*, to shift into the flagship all the English petty officers and seamen; but a heavy swell set in, and as the anchorage was bad, I considered the risk imprudent.

The schooner *Leopoldina* was therefore ordered to try the effect of a few experimental shells; but the mortar so shook the vessel, that she had to be withdrawn, it being evident that nothing further could be done till the weather would permit the approach of ships, or that rafts could be constructed—for which purpose timber had been ordered from Bahia. Little damage was effected by this experiment, for the wealthiest inhabitants had fled into the interior, taking with them all their valuable property.

Heavy weather having now set in compelled the flagship to run to Bahia for safety, the outer road of Pernambuco being at this season exceedingly dangerous from the coralline nature of the bottom, as was practically proved by the fact that the *Pedro Primiero* lost every anchor but one, so that to remain was certain destruction, and there was no alternative but to make for Bahia to procure anchors.

Nothing had been heard of General Lima's force since its debarkation, I was therefore anxious to know what had become of it, and how far it was in a condition to cooperate, the speedy possession of the place being nautically

an important point—for, whilst blockading we had intercepted a Portuguese vessel, only forty-three days from the Tagus, and learned from her letters that a large force was preparing at Lisbon, consisting of sixteen ships of war and numerous transports, their destination being Pernambuco; this forming sufficient proof that the Portuguese Government counted on the recovery of those disorganised provinces which had alike revolted against the mother country and the Emperor of Brazil.

On the 4th of September, the flagship left for Bahia, first visiting the island of Alexo, where the *Cacique* and *Maranhaõ* were at anchor. From them we learned that General Lima's head-quarters were at Leimham, his advance guard having joined the troops at Mogado, on the banks of a river near Cape St. Augustine, the revolutionary forces occupying the other bank.

On reaching Bahia, we received information that the rebel Government at Pernambuco was in immediate expectation of several fast sailing vessels, ordered by the revolutionary President from North America, and also of two steamers from England. I therefore wrote to the Minister of Marine to send me some superior sailing vessels, as, if the anticipated expedition from Lisbon, or those expected from England and America, made their appearance, four at least of our force would, from their bad sailing, run the risk of being captured on the first appearance of the enemy.

On learning the panic which had been created in Pernambuco, by the show of bombardment, and its anticipated repetition in earnest on my return, General Lima pushed forward towards the capital with no more formidable opposition than a few desultory skirmishes; and on the 11th of September, with the co-operation of the naval officers and seamen there left, took possession of the city, Carvalho retreating into the suburbs, where, breaking down the bridge which united them, he entrenched himself. On the following day, it was said that General Lima found in the treasury 400,000

dollars; perhaps the same which Carvalho had offered to me as a bribe to join the republican party.

The *Piranga* arriving at this juncture with a convoy bringing eight hundred additional troops, preparations were made to attack Carvalho; but the insurgent president, making his escape on a fishing raft, took refuge on board the British corvette *Tweed*, and afterwards got to sea.

During the interval which elapsed between my departure for Bahia and my return to Pernambuco, the distribution of prize money amongst those entitled to it took place, the flagship and the *Maria de Gloria* being paid at Bahia, and the rest at Pernambuco. As His Imperial Majesty had left me altogether unfettered by orders or instructions, and as he had given the 200,000 dollars to be used in furthering the Imperial objects, I determined not to regard the advances which had been made at Rio de Janeiro, as forming any portion of the reward, especially to the flagship, which had, unaided, achieved the more important results of the late campaign, and was therefore entitled to a share commensurate with the arduous exertions of the officers and crew, now again under my flag.

The subjoined extracts from the log of my secretary will shew the periods at which the distribution took place:—

Sept.10th. Made distribution of prize money in silver.

Sept.15th to 16th. Went on board the *Maria de Gloria*, and paid prize money.

Sept. 17th. Paid Capt. Crosbie, 10,400 dollars in specie. Paid other officers 5750 dollars.

Sept. 18th. Paid Admiral 4750 dollars.

Sept. 27th. Paying prize money to the *Paraguassu* and others.

Sept. 28th. Similarly employed.

Sept. 30th. Paying prize money.

Oct. 1st to 5th. Paying prize money.

The following were the amounts disbursed on these occasions, as far as they appear in my private memoranda—some doubtless having been lost:—

Dollars.

Disbursements at Rio de Janeiro 70,750
(Paid Squadron as per account, made up Sept. 23, 1824.)

To petty officers and seamen of flagship, in classes numbered A to Y, as per pay books transmitted by *Piranha* 18,289

Paid Captain Crosbie 10,400

" Captain-Lieutenants Carvalho, Grenfell, and Shepherd, 2250 dollars each 6,750

" Capt. Grenfell, on account of captures at Parà 2,750

" Seven Lieutenants, at 1500 dollars each 10,500

" Two Lieutenants at 1000 dollars each 2,000

" Six Lieutenants at 750 dollars each 4,500

" Lieutenant Ross as prize master 500

" *Maria de Gloria* 2,483

" *Nitherohy, Carolina*, and *Paraguassu*, no account, say the same 7,500

" Brig *Bahia* 274

" Officers and men of the *Piranga* 7,053

" Mr. Dean, purser 600

" Lieutenant Ayre 480

" Florencia José da Costa 140

" Gratifications to artisans 419

" To Admiral 4,750
" Secretary, for distribution 5,000
" May and Lukin, prize agents, as per balance of account, July 15, 1824 5,324

160,462

Original amount 200,000

Balance to be accounted for 39,538

The above were not the whole amounts paid, but they are all that a search amongst my numerous papers at present furnish; and as the original accounts, as has been previously stated, were sent to Rio de Janeiro, a more precise balance cannot here be drawn; but even this is sufficient to carry

conviction to any reasonable mind, that the sums above stated were disbursed in ordinary routine, and should make the Brazilian administration ashamed to say, that "the First Admiral never sent in his accounts of the 200,000 dollars entrusted to him," thus inducing an unworthy inference that they were not disbursed; though any man possessed of common understanding could never believe that a squadron, constituted as the Brazilian Marine was, would obey orders and cheerfully act in unison with me, knowing that their prize money was on board—of which I unwarrantably held possession!

These explanations are more humiliating to the Brazilian administration than to myself—though for so many years the subject of unmerited obloquy from their denial of accounts which must unquestionably have been in the possession of the Administration of 1825. But I must carry these explanations yet farther. With the exception of 4750 dollars for my own necessities, I took none as my share, though entitled to an eighth in all cases, and to a fourth in the absence of other ships whenever important services were performed by the flagship alone. Neither had I received from the Imperial Government a single dollar of the customary emoluments due to me, though, had these been honestly paid according to the usages of nations and the stipulations of the Emperor's decree of December 11, 1822, my share ought to have been more than double the whole amount entrusted to me to man the ships and satisfy the officers and men. Still I did not appropriate the 39,000 dollars which remained, after paying the men, but determined to withhold it till I saw what course the prize tribunal at Rio de Janeiro intended to pursue; and, if that course were not satisfactory, then to appropriate it as a right, although it was wholly inadequate to the services rendered, for which I had been loaded with Imperial honours and national thanks, without a shilling of emolument, notwithstanding the capture of a hundred and twenty *bona fide* enemy's ships—the expulsion of their fleet

and army—and the annexation of more than one half the empire. But more of this in another place.

On my return to Pernambuco, I found General Lima in quiet possession of the city, and as the *Piranga* had brought me instructions from His Imperial Majesty, that, as soon as order was restored, a force should proceed to Parà, and depose the, General-at-Arms there nominated, I applied to General Lima for a small military detachment to effect that object; but he declined—on the ground, that in the present state of affairs in Pernambuco, it was not practicable to diminish his force.

It was not at Parà only that irregularities prevailed: even at Maranham serious disturbances had broken out, with the avowed intention, on the part of the insurgents, of deposing the Governor acting under the authority of His Imperial Majesty—to whom this new attempt at revolution was as yet unknown. In short, the order to depose the General-at-Arms at Parà had unexpectedly resolved itself into the necessity of tranquillizing the whole of the Northern provinces, which were only waiting the result of Carvalho's measures at Pernambuco, openly to declare against the Imperial authority.

The dissatisfaction in the Northern provinces originated solely in the anti-Brazilian system of Government pursued at Rio de Janeiro, which in the estimation of all at a distance was Portuguese rather than Brazilian. As they were either ignorant, or did not believe, that the patriotic intentions of the Emperor were overruled or thwarted by the Portuguese faction in the administration, which, holding in reality the reins of power, left to His Majesty little more than nominal authority.

It was not, then, to be wondered at, that the inhabitants of these distant provinces, who, only a year before, had welcomed me as their liberator from Portuguese oppression, and as the representative of constitutional authority, should now be dissatisfied with what they rightly considered an

unnational system of government—preferring to submit to a bad government of their own choosing rather than to one thus arbitrarily imposed upon them.

To avert revolution required able presidents, well skilled in the management of public affairs; but, in place of these, men of an opposite character had, for the most part, been chosen by the administration.

It was no less essential that the Generals-at-Arms, or military commandants, should be temperate and unprejudiced; but those placed in this responsible position used their authority in the most obnoxious and arbitrary manner. It was, no doubt, difficult to find proper men; or, if they existed amongst the Brazilians, the jealousy of the Portuguese party in the administration prevented their elevation to power; the aim of that faction being disorder, as auxiliary to their anti-imperial views. This had been strikingly evinced by the instructions given to disembark General Lima's force at Alagoas, instead of near the seat of disturbance; thus entailing loss of time and a difficult and tedious march, which might have ended in failure, had it not been for the distraction caused by the threatened bombardment of Pernambuco by water, and the demonstration made to shew how easily it would be effected, when means for a destructive attack were complete; the result was, that—knowing my return from Bahia, with everything in readiness for an attack in earnest, could not be delayed beyond a few days, no serious opposition was offered to the occupation of the city by the force under General Lima.

The reports of increased disaffection in the Northern provinces becoming daily more precise, it was necessary to take advantage of the panic which the recovery of Pernambuco had occasioned; the more so, as serious commotions had arisen, whilst a strong disposition to revolt was almost universally manifested. As General Lima had refused me a military

detachment—and as the *Pedro Primeiro* and *Piranga* could render him no further assistance, I considered it more in conformity with His Majesty's interests to visit the Northern ports with these ships; taking also the *Cacique* and *Atalanta*, for the performance of services to which the larger vessels were not adapted. The mere presence of these off the disaffected ports would, I knew, suffice to restore order, by affording inferential demonstration that, if force were required, it was ready to be applied.

Accordingly, leaving at Pernambuco the remainder of the squadron, we sailed on the 10th of October for Rio Grande do Norte, where great confusion prevailed amongst the inhabitants, threatened by the insurgents in the adjacent province of Cearà, on account of their abandonment of revolutionary designs in consequence of events at Pernambuco.

Arriving off the Rio Grande on the 12th, I requested information from the President, relative to the state of the maritime towns and provinces between Rio Grande and Parà, especially with regard to Cearà. The nature of the reply determined me at once to proceed to the latter place, though regretting the necessity of going farther to leeward, on account of the time which would be occupied in getting back to Rio de Janeiro; yet feeling assured that it would not be satisfactory to His Majesty, were we to return without ascertaining more particularly the condition of the North, and without contributing to the restoration of tranquillity.

Arriving off Cearà on the 18th, I sent a communication to the President, requiring him to make known my arrival for the purpose of restoring order, and promising that all disaffected persons who, within fourteen days, should return to their allegiance, would be permitted to retire quietly to their homes, and would not in any way be molested on account of their previous acts or opinions.

A deputation of the inhabitants came off to the flagship, asking me to land as large a force as I could spare, but as General Lima had declined to supply a military detachment, it was out of my power to comply; for the roadstead being unsafe, and the flagship nearly aground, I could not dispense with the English seamen, whilst the Portuguese portion of the crews was not to be trusted. Besides which, the foreign seamen were not adapted to garrisoning a town.

The application was, therefore, evaded; but with an assurance to the President that, should the insurgents advance, we would render effectual assistance; reminding him, however, that the inhabitants ought to be induced to adopt amongst themselves, measures for their own protection and preservation of tranquillity, which results were perfectly within their power; and would render unnecessary the presence of military.

I however landed a small detachment for the purpose of ascertaining the means of defence, as well as in the hope of exciting the authorities on shore to some degree of activity in their own cause. In case of attack, I promised to disembark for their assistance the whole of the men who could be spared; at the same time giving permission to withdraw to the ships in case of sudden emergency, which might not admit of communication with me in time.

This offer produced the best effect in the city, giving confidence to the well-affected, whilst, as the discontented were ignorant of the extent of aid that could be afforded, they deemed it wisest to keep quiet. On the following day, the inhabitants returned to their allegiance, the officiating President hoisting the Imperial flag on the ramparts with his own hands, amidst every demonstration of general satisfaction.

I next caused despatches to be sent to all quarters of the province, announcing the return of the city to its allegiance, promising oblivion of the

past to all who followed the example, and this was succeeded by a general acknowledgment of the Imperial authority. Confidential agents, entrusted with similar despatches, were likewise sent to the revolutionary forces headed by Bizarra, the rebel General-at-Arms, the whole of whose troops abandoned him; whilst, by similar agency, the *corps*, under the immediate command of the revolutionary president, Araripe, was reduced to a hundred men—even the Indians, without exception, abandoning his standard.

As one of the first steps towards the pacification of the province, I had published not only a general amnesty, but also a particular amnesty, offering to the insurgent leaders themselves especial pardon, from which, in ordinary general amnesty, they might otherwise imagine themselves excluded, I had, in my own mind, determined upon this as a general course to be pursued, as I could not but see that, in the outset of the revolt, both insurgents and leaders had good cause to be dissatisfied with the central Government at Rio de Janeiro. I had even addressed a letter personally to the revolutionary president, Araripe, remonstrating upon the folly of the course he was pursuing, and promising my protection to *himself*, as well as to the other revolutionary leaders, if they would return to their allegiance. He chose rather to withdraw into the interior, with the discontented who adhered to him, intending, no doubt, to wait till the naval force had retired. Foreseeing the danger of this, I issued a proclamation, offering a reward for his capture, sufficient to induce the Indians who had previously been his supporters to proceed in quest of him, the result being that he himself was killed, and the whole of his followers captured. The Indian chiefs, as well as their dependants, were of great service in the restoration of order, combining superior bodily strength and activity, with energy, docility, and unfailing power of endurance —forming, indeed, the best specimens of the native race I had seen in South America.

Previous to this I had succeeded, without much trouble, in restoring tranquillity to the province of Parahyba, which had also been disturbed by the mandates of Araripe; the inhabitants complying with his orders, from the immediate danger to which they were exposed by his violence, and being under the impression that Rio de Janeiro was too far distant to afford them succour. Their delight at finding a squadron at hand was, therefore, immediately followed by a repudiation of the insurgent chief, and a return to unqualified allegiance.

My next endeavour was to organise an effective force at Cearà, and this was accomplished by the embodiment of more than a thousand men, though we had not a soldier in the squadron. Various *corps* were also raised in the towns and villages of the province, and were active in pursuit of the scattered remains of the republican army.

Having thus assured myself of the complete restoration of order in the capital and province of Cearà, and addressed a proclamation to the inhabitants, pointing out to them the folly of being misled by designing persons, who could have no accurate knowledge of matters which formed the ground of complaint against the Imperial Government, we sailed on the 4th of November for Maranham, which province was found in a state of even greater anarchy than had prevailed at Cearà.

CHAPTER IX.

ARRIVAL AT MARANHAM—CHARACTER OF DISTURBANCES THERE—I ASSUME THE MILITARY COMMAND—PROCLAMATION COMMANDING SURRENDER OF ARMS—CONDITION OF THE PEOPLE—CORRUPTION OF THE AUTHORITIES—MURDEROUS PROPENSITIES—DIFFICULTY IN DETECTING ASSASSINS—LETTER TO MINISTER OF MARINE—PACIFICATION OF PARAHYBA—DOUBTS OF THE PRESIDENT'S SINCERITY—HE ESTABLISHES SECRET AGENCIES—EXTRAORDINARY MEMORIALS—PUBLIC COMPLAINTS OF THE PRESIDENT—BRUCE ENDEAVOURS TO INTERCEPT THEM—MY REPLY TO THE MEMORIALISTS—LETTER TO THE MINISTER OF MARINE—ENCLOSING COMPLAINTS OF THE CONSULS—BRUCE PREPARES TO RESIST MY AUTHORITY—COMPLAINTS OF THE BRITISH CONSUL—HE CONSIDERS MY PRESENCE NECESSARY—LETTER OF THE FRENCH CONSUL—DETAILING SHAMEFUL ATROCITIES—DANGER OF COLLISION WITH FOREIGN STATES—SUSPENSION OF THE PRESIDENT—PROVISION FOR FUTURE GOVERNMENT—CONDUCT OF THE FACTION AT RIO DE JANEIRO—NO INSTRUCTIONS SENT FOB MY GUIDANCE—LETTER TO THE MINISTER OF MARINE—THE MINISTRY HAD PREVIOUSLY DEPOSED BRUCE—BUT TURNED ON ME FOR ANTICIPATING THEIR OWN ACT.

We arrived at Maranham on the 9th of November, and ascertained that the city and province—as had been reported—were in a complete state of anarchy, arising from causes almost incomprehensible. The leaders of the army had risen against the authority of the president, Miguel Bruce, and fighting was going on when we entered the river. The strangest part of the affair was, that both parties declared themselves supporters of the Imperial authority, whilst each accused the other of plotting to form a republic. Bruce kept possession of the city by means of negro troops, from amongst whom he had also picked his officers, conferring upon them regular commissions; the result being, that their excesses kept the respectable

inhabitants in a state of constant terror, so that my arrival was hailed with the greatest satisfaction, and addresses of congratulation were sent in from all quarters, even the ladies adopting the unusual course of sending a deputation to welcome me.

I immediately demanded from the president a report of the condition of the province; but before this was presented, memorials from every part put me in possession of the causes of disorder universally prevailing. The general complaint was, that the president had established an autocracy, refusing the co-operation of a council, as required by the constitution, and that under his individual authority, military disorders of all kind prevailed, even to murder, whilst outrages of the most revolting nature were committed amidst cheers of "Long live His Imperial Majesty;" thus using the Imperial name as a sanction to the perpetration of acts the most unlawful and injurious.

The President Bruce was the same individual whom, on the expulsion of the Portuguese in the previous year, I had temporarily appointed President to the first provisional Junta under the Empire, which body was quickly superseded by a Government elected by the people. Possessing influence amongst the Portuguese, of which faction—as afterwards appeared—he was a prominent supporter, he had contrived to get himself reinstated as head of the provincial Government, and was apparently following the policy of the Portuguese faction in power at Rio de Janeiro, viz. that of keeping his province in a state of confusion with a view to disgust the populace with the Imperial rule, and so dispose them, should opportunity offer, to favour the views of the mother country. This policy, as has been said, was marked out by the agents of Portugal; but Bruce, with every disposition to favour the views of the parent state, was not the man to be entrusted with political strategy of this nature. The fact being that, though possessed of a certain amount of cunning, Bruce was unfit to be entrusted with authority at all—

much less to exercise that which recognises no control—so that the disorder which prevailed was rather a natural consequence of his own want of capacity, and arbitrary system of government. Finding every one against him, he was gradually throwing himself on the black population for support, promoting emancipated slaves to the rank of officers; and it was generally acknowledged that had it not been for our opportune arrival, both himself and the whites who remained in the city might speedily have fallen a sacrifice to the force which had been organised for his especial protection.

On the other hand, the opponents of the president were not only in arms against him, but there were two or three family parties fighting each other under the Imperial flag! and carrying their revengeful animosities to an outrageous extent, which threatened the extermination of one, at least, of the contending parties, if not the total ruin of the province. To deal with these parties was, from their mutual recriminations, more difficult than had they declared themselves inimical to the Imperial Government. In one thing, however, they were all agreed, viz. in opposition to the president; but as his was the constituted authority, this was precisely what I did not intend to sanction.

It was clear to me that the first remedy was the appointment of a proper military authority, and as none could be trusted, I apprised the president of my intention to assume the chief military command during my stay, or at least until order was restored, issuing a proclamation to that effect.

As hostilities were still going on, I sent an order to both parties to lay down their arms, with which mandate the anti-president party immediately complied, and dispersed; but as the savage blacks under the authority of the president attacked their now unarmed adversaries, and committed great excesses, I seized and put them on board some vessels, anchoring these

under the guns of the flagship, and retained the whole as prisoners, thus keeping them out of the way of further mischief.

The surrender of the arms was effected by the following proclamation, which also explains my motives for this measure:—

> Whereas, it is essential to the interests of the empire in general and to the province of Maranham in particular, to put an end to all public disturbances, whether arising from the contentions of individuals, or from other causes; and whereas, the Constitution has provided not only for the administration of justice in civil cases, but also for the summary trial of military offences.
>
> Be it henceforth known that—all persons armed, or commanding or acting with men in arms, or aiding and assisting any body of armed men in the support or defence of any persons assuming or pretending to authority as chieftains, or attempting to alter the Constitution by force—are hereby subject to military jurisdiction and shall be tried by military law accordingly. But this regulation is not intended to prohibit individuals from meeting together unarmed, for the purpose of uniting in an application for the redress of grievances, or petitioning His Imperial Majesty on points connected with public or private interests.
>
> And whereas, military arms and ammunition have been obtained, by numerous individuals on the pretext of using them for private defence—it being essential to public tranquillity and general good that people should have recourse to the protection of the laws, and not to violence for their security—notice is hereby given, that all persons in possession of such military arms are to deliver them up to the chief military officers in their respective districts, to be deposited in the public armoury. Whoever shall be found in possession of arms after

the termination of this present month of November, shall be judged according to military law.

Given on board the *Pedro Primiero* this 12th day of November, 1824.

(Signed) COCHRANE AND MARANHAÕ.

This proclamation is adduced in order to shew the condition of the province on my arrival, which it does more fully than would pages of description. To these difficulties were now added the chagrin of Bruce, at having his military authority superseded, though his civil authority was not only uninterfered with, but supported. Still, having the orders of His Imperial Majesty to use my discretion in tranquillizing the disturbed provinces, it was not my intention to permit His Majesty's views to be frustrated by undue deference to a Governor, whose folly and despotism combined, had been the chief cause of the disturbances, though I well knew that the course I was pursuing, even though approved by His Majesty, would bring down upon me the indignation of the Portuguese faction in power at Rio de Janeiro.

The proclamation had the effect of procuring the surrender of arms to a great extent, followed by the disbandment of all irregular forces collected by the contending chieftains, so that apparent tranquillity was everywhere enforced.

The great point was to establish permanent order, which, had we gone away, would soon have been broken. As, since the reduction of Pernambuco, there was no other field for my active services, and as I had no instructions how to dispose of the squadron, I determined to remain at Maranham, and employ myself in consolidating the good already produced, till further commands from His Imperial Majesty; for having in the

preceding year expelled the Portuguese from the province, its welfare was a matter of interest to me, and I felt assured that were His Majesty acquainted with the want of unity existing, authority would be given to carry out my views.

In Maranham, as in the other Northern provinces of the empire, there had been no amelioration whatever in the condition of the people, and without such amelioration, it was absurd to place reliance on the hyperbolical professions of devotion to the Emperor which were now abundantly avowed by those who before my arrival had been foremost in promoting and cherishing disturbance.

The condition of the province—and indeed of all the provinces—was in no way better than they had been under the dominion of Portugal, though they presented one of the finest fields imaginable for improvement. All the old colonial imposts and duties remained without alteration—the manifold hindrances to commerce and agriculture still existed—and arbitrary power was everywhere exercised uncontrolled; so that in place of being benefited by emancipation from the Portuguese yoke, the condition of the great mass of the population was literally worse than before.

To amend this state of things it was necessary to begin with the officers of Government, of whose corruption and arbitrary conduct, complaints—signed by whole communities—were daily arriving from every part of the province; to such an extent, indeed, was this misrule carried, that neither the lives nor property of the inhabitants were safe, where revenge, or baser motives, existed for the exercise of acts of oppression[1].

[Footnote 1: Numerous original, but lengthy, documents are in my possession proving all these facts.]

I therefore addressed a letter to the president, warning him that such things ought not to be tolerated; that reports of excesses committed by those under his authority were reaching me from all quarters, the perpetrators deserving the most severe and exemplary chastisement; that I had determined to investigate these matters; and under the reservation made—of personally acting under extraordinary circumstances—would visit these cases with severe punishment, should the reality come up to the representations made.

The recklessness of human life was amongst the more remarkable features of these excesses. Only a short time before this, I had granted a passport to Captain Pedro Martins, as the bearer of an offer from an insurgent party to lay down their arms, but he was murdered on his return. This atrocious act, perpetrated, as I had reason to believe, by some factious adherents to the president's party, from motives of revenge, was unfortunate, as affording a pretext for others who were ready to submit, to continue in arms for their mutual protection. I therefore directed that all troops under the authority of the president should remain where they were until further orders from me; and demanded of His Excellency to use every endeavour to apprehend the parties guilty of an act so disgraceful to the Imperial cause, that they might meet with due punishment.

Finding no effort made to apprehend the murderers, I addressed to Bruce the following letter:—

> It is with great regret that I have learned the atrocious act committed by your soldiers against an officer having my passport for the purpose of endeavouring to tranquillize the province, by inducing the dissentient party to lay down their arms. This is a matter so disgraceful to the cause of those by whom it has been perpetrated, that I must enforce on your attention the necessity of exertion to

apprehend all persons who may be suspected of having committed this crime, and send them immediately, prisoners, to this city.

I have further to direct, in the name of His Imperial Majesty, that the troops under your command shall remain where they are until further orders from me, as Commander-in-chief of the military and naval forces of this province, notwithstanding any authority or order which you may heretofore have received, or which you may hereafter receive—except from me—to the contrary.

(Signed) COCHRANE AND MARANHAÕ

It is almost needless to say that the guilty parties—though doubtless well known—were permitted to escape with impunity; the president alleging as his excuse, "the insufficiency of the regular troops to preserve the tranquillity of the city;" this remark being intended to throw upon me the responsibility of having secured on board the black savages whom he had organized. My reply was, that—"for what I had done, I was responsible to the supreme Government and the public, and if he could not find means to preserve the public tranquillity, I must do so; as he must be sensible that I had acted with propriety in relieving him from a portion of the labour and responsibility which he had hitherto sustained."

On the 28th of November, I forwarded to the Minister of Marine, at Rio de Janeiro, a full report of these transactions, from which the subjoined are extracts:—

The completion of the task of tranquillizing Cearà in a manner I trust satisfactory to His Imperial Majesty, was, in a great measure, effected by the pardon promulgated in the name of His Majesty—consigning to oblivion those occurrences which would otherwise have agitated the public mind. The only exception made was the

intrusive President Araripe, and this, because, instead of availing himself of the first proclamation of amnesty, in which he was included, he retired into the interior with a band of robbers, in order to excite further disturbance. The consequence of this obstinate perseverance in disobedience on the part of Araripe, has been his death, and the capture of all his followers.

The restoration of Cearà to its allegiance and tranquillity having been thus accomplished, we proceeded to Parahyba, where all was tranquil, the inhabitants having unanimously declared His Imperial Majesty Constitutional Emperor, the moment that they became free from the terror of their more powerful and military neighbours at Cearà. Some dissensions, however, remained in the province. With respect to Maranham, things are different: no republican flag has been displayed—nor, as far as I can learn, did any intention exist on the part of the inhabitants of raising the standard of rebellion; the state of civil war in which we found the presidency arising from personal animosities amongst some of the principal families, especially between those families and that of His Excellency the President. Certain it is, that all were united against the President, who, to protect himself, had recourse to the assistance of the lowest classes of the community, even to emancipated slaves. The result has been, military disorders of all kinds—and there is no outrage which has not been perpetrated.

The general complaint against the President is, that the constitution has in no way been put in practice; that he has not established any lawful council; and that he has been guilty of arbitrary acts. The original documents relating to these matters are enclosed for the judgment of His Imperial Majesty.

I humbly hope that His Imperial Majesty will perceive that, although I had no express authority to interfere in internal disputes, yet it became my duty—on finding the province in a state of civil war—without any General-at-Arms, or other military officer of sufficient authority or capacity, to restore public peace—to take upon myself powers which I trust have been used for the benefit of His Imperial service. In order that the Imperial Government may judge of my proceedings, I have the honour to enclose copies of proclamations, and other documents relative to my transactions.

(Signed) COCHRANE AND MARANHAÕ.

On the 4th of December I was not a little surprised at receiving from President Bruce a letter requiring me to banish certain persons obnoxious to himself, amongst others Francisco de Moraes, who had been the first to set the example of submission to the proclamation issued on my arrival. This most unreasonable request I refused—writing to Bruce that dissensions were not likely to be healed by punishing those who had laid down their arms on the faith of a proclamation issued in the name of His Imperial Majesty; further assuring him that, if he did his duty, he would not find me remiss in endeavours to relieve the province and himself from the miseries and difficulties with which he had been surrounded.

On the 5th of December I had the satisfaction of receiving a deputy from Parahyba, assuring me of the perfect pacification of the town and province. On receipt of this gratifying intelligence I transmitted to Parahyba a general amnesty, coupled with advice as to the folly "of rebelling under erroneous impressions of circumstances with regard to His Imperial Majesty, which could not come within the sphere of their personal knowledge, and hoping that, for the future, they would duly appreciate the beneficence of a sovereign who desired that his authority —limited by the Constitution—

should be felt by his people only through the exercise of justice and benevolence."

It was a vexatious task to be thus constantly exhorting the disaffected in the Northern provinces to confidence in the Imperial Government, because I knew that they had but too good reason to be dissatisfied—not with the Emperor—but with his administration, whose hopes were founded on anarchy and intrigue. It was therefore my practice to exhort them to rely on His Imperial Majesty—it not being within the scope of my duty to draw the distinction between the Imperial wishes and the sinister practices of those by whom His Majesty was surrounded.

During the period of my absence I had been pressing upon the Department of Marine at Rio de Janeiro the necessity of a speedy adjudication of the prizes belonging to the squadron, according to the written order of His Imperial Majesty. On the 5th of December I received an evasive reply from the Auditor of Marine, stating that "he did not consider himself in possession of all the laws and regulations whereon his judgment should be founded in regard to seizures made or vessels captured by the naval forces of Brazil." A miserable subterfuge!—as though it were any part of my duty to supply an official with "laws and regulations" on such a subject. It was quite evident to me that, despite His Majesty's orders, no adjudication was intended, nor was any afterwards made; but in order to prevent complaint of neglect on my part. I transmitted, on the same date, to the auditor the whole of my documents, with a request that they might be returned.

From the state of the province on my first arrival, I had entertained suspicions as to the President's sincerity; and as outbreaks were again of frequent occurrence, notwithstanding the general desire for pacification, an investigation into the causes of these elicited the fact that he was secretly

sending agents to promote disturbance, for the purpose of revenging himself upon those now disarmed, who, before my arrival, had opposed his arbitrary authority.

To such an extent was this carried, that memorials reached me begging my interference, as the memorialists could not now defend themselves. Two of these memorials, signed by upwards of three hundred of the respectable inhabitants of the province, were of such a nature as to render hopeless the perfect restoration of order so long as the President was permitted to exercise the autocracy, which, contrary to all the principles of the constitution, he had irresponsibly assumed.

In order to account for a step which I subsequently considered it my duty to adopt, it is necessary to give some extracts from one of these memorials, signed by a hundred and fifty-two of the most respectable inhabitants in a distant part of the province:—

> "That the most demoralizing excesses are permitted amongst the soldiery, and, in order to preserve his influence with the troops, the President permits them to murder with impunity—even Europeans; the perpetrators of these acts being not only unpunished, but rewarded, whilst military commandants and others attempting to repress these disorders are dismissed; so that absolute authority is established—the public money being squandered on the soldiery, in order to support a criminal despotism.
>
> "Your Excellency must have witnessed the state to which the province was reduced on your arrival, the people being compelled to have recourse to arms in order to ward off a multitude of vexations. Your Excellency must also have observed how quickly they laid down their arms at your summons, of which circumstance the party of the President availed themselves to sack and plunder the towns and

villages everywhere in the country; the tears, desolation, and misery of so many villages and estates, accompanied by the blood of the murdered and wounded, remaining eternal monuments of these crimes.

"The President and his followers, convinced of the abhorrence with which such atrocities were viewed, availed themselves of the false pretext that such acts were necessary for the Imperial service, the people being in rebellion against him.

"At the present moment he has given out that he has three thousand men ready to support him in the Presidency against the measures of your Excellency, and it is a fact that, in various parts of the province, he has troops, militia, and arms; whilst the commandants, appointed by himself, are all ready to execute his measures.

"If your Excellency should unhappily quit the province, whilst matters are in this state, it will be totally desolated—its commerce annihilated—and its agriculture abandoned; confiscation and terror will be everywhere established, accompanied by rebellion towards the Emperor. If you will remain, we, the undersigned, undertake to support the squadron, in the absence of funds from the Imperial treasury.

"To terminate these evils, we beg to represent to your Excellency that there is only one remedy. President Bruce must be deposed and sent to Rio de Janeiro, with his coadjutors, who are well known, in order that his acts may be lawfully investigated, and punished as justice demands; and that, in the interim, there should be elected by your Excellency, from amongst the more respectable inhabitants of this province, a person to represent to His Imperial Majesty the horrible state of things here existing, and to implore His Imperial

Majesty's interposition for its salvation—your Excellency, in the meantime, assuming the civil and military government of the province, until His Imperial Majesty's pleasure can become known. And we further beg of your Excellency that you will name able magistrates, of known probity, to the respective districts, and cause oaths to be taken, in order that the respective Camaras may proceed to the work of saving the province from tumult and anarchy, by observing faithful obedience to His Imperial Majesty and by the administration of laws for the government of the people.

"Maranhaõ, Dec. 11, 1824."

Signed by one hundred and fifty-two of the principal inhabitants of the province.

A similar document, signed by upwards of a hundred and fifty of the respectable inhabitants of Alcantara—upon whom excesses had been committed in no way less reprehensible than at Maranham—had been forwarded to me on the 6th of December; but, as the complaints were of the same nature, it is unnecessary to do more than advert to the circumstance. In addition to these, I received a statistic list of the murders and robberies perpetrated throughout the province, under the agency of those placed in authority by the President. The whole of these documents were retained by me as a justification of any contingency that might arise, and are still in my possession.

The Maranham memorial reached me on the 14th of December, and had scarcely been placed in my hands, when a letter arrived from President Bruce, deprecating its reception, thus shewing that he had previously been made aware of the contents, and—as I had afterwards reason to believe—had attempted to intercept the memorial, but had failed in so doing. After glancing at the contents, I made him the following reply:—

SIR,

I have this moment been honoured with the receipt of your Excellency's letter, and have to state that the document to which you allude had not been delivered to me five minutes previous to your Excellency's communication, and that I have not yet had time to read it.

Your Excellency may, however, rest assured that if the said paper contains any thing injurious to the interests or dignity of his Imperial Majesty, I shall not fail to take such steps as the occasion may require. All papers that have been presented to me, it is my intention to transmit to Rio de Janeiro, where the Imperial government will judge of the motives of the writers, and of the contents of their communications.

(Signed) COCHRANE AND MARANHAÕ.

Dec. 14, 1824.

My reply to the memorialists was as follows:—

Maranham, Dec. 18,1834.

GENTLEMEN,

I have read your memorial with attention, and regret that you should have occasion to detail complaints of so painful a nature, the more so as I do not know whether I am authorised to remedy the evils otherwise than by such measures as have been already adopted.

According to the Constitution, you ought to find a remedy in the laws; but if any authority, commissioned by His Imperial Majesty, has

improperly placed obstacles in the way of law, to His Majesty only can an appeal against such conduct be made, for they who attempt to redress evils arising from a breach of the Constitution, by violating that very Constitution place themselves in an equally disadvantageous position with the object of their accusation.

As regards the deposition of the President, which you request, I frankly confess to you, Gentlemen, that whatever may be my private opinion as to the course most advantageous to you and the province in general—and even to the President himself—I should feel extremely reluctant, except in a case of manifest and extreme necessity, to take upon myself a responsibility which might possibly subject me to the displeasure of His Imperial Majesty, and would most certainly expose me to be continually harassed by prejudicial reports and false accusations, supported by artful intrigues, against which neither prudence nor rectitude could effectually avail.

To mention an instance of this, within your own knowledge, you all know that, last year, when this province was annexed to the empire, the property of Brazilians under the flag of Portugal, and of all resident Portuguese, was by me respected and unmolested. You know, too, that all the public property of the Portuguese Government in the arsenals and magazines was left untouched, and it is equally true that upwards of sixty contos of reis (60,000 dollars) in specie, and one hundred and forty contos (140,000 dollars) in bills taken in the Portuguese treasury and custom house, were left by me in the hands of the Government of Maranham, for the payment of the army. Yet, notwithstanding these notorious facts, it has been audaciously declared by the Portuguese authorities composing the prize tribunal at Rio de Janeiro, that that very army—which I had thus left the means to pay—*had served disinterestedly at their own expense, and that I*

was a mercenary and a robber! I may add, too, that the Junta of Maranham contributed in no small degree to this calumny, for, after they had secured the money, they refused to give me a receipt, though the sum I had so lent for the use of the army was, and still is, the indisputable property of the officers and men of the ships of war who were instrumental in freeing this province from a colonial yoke.

In short, great as is my desire to render you every service in my power, I am not willing to interfere in matters over which I have no express authority—because I do not like to risk the displeasure of His Imperial Majesty, attended, as it might be, not only with sudden dismissal from my official situation, but even with heavy fines and imprisonment; not to mention the sacrifice of all those pecuniary interests which I possess at Rio de Janeiro, where I have enemies *eagerly watching for a pretence to deprive me of all to which I have a claim*. Neither am I disposed to afford to those persons any opportunity of giving plausibility to those calumnies which they are ever so ready to utter, nor to be under the necessity of placing myself on my defence before the world against their false accusations.

I have the honour, GENTLEMEN, &c. &c.

(Signed) COCHRANE AND MARANHAÕ.

The memorial of the inhabitants of Maranham was, together with other complaints, forwarded by me to the Imperial Government, accompanied by the following letter to the Minister of Marine:—

December 16th, 1824.

MOST EXCELLENT SIR,

My letters 278-279, will have acquainted your Excellency of our proceedings here up to their respective dates, and will also have afforded the Imperial Government such information as I could collect regarding the origin and progress of the disputes which have so unhappily prevailed.

It was my hope that—by taking their implements of war from the hands of the contending parties, and removing the most disorderly portion of the military—the public mind would have subsided into tranquillity. It appears, however, that—from the constant alarm occasioned by the "*Pedestres*," and other irregular troops lately maintained by the President—the public still continue in dread of being exposed to outrages, similar to those lately committed on their persons and property. The terror excited is universal, and as the people must be well acquainted with the character and conduct of persons with whom they have been bred up, I cannot bring myself to believe—however desirous to support a President nominated by His Imperial Majesty—that all the respectable portion of the population, without exception, entertain fears that are groundless. Indeed, from all that I have seen or heard, there is but little reason to hope that his Excellency the President has any intention to govern this province on any other system than that of the Captains-General, under the old Portuguese government; that is to say, rather according to his own will than in conformity with the dictates of justice or equity.

Certain it is, that, up to the present moment, the Constitution has never been put in practice, and even military law has not been adhered to. Numerous persons have been banished without accuser or declared crime—others have been thrown into gaol—and the greater portion of the principal people who remained had—previous to our

arrival—fled to the woods, to avoid being the objects of the like arbitrary proceedings.

The representations which I now enclose to your Excellency as a sample of the numerous documents of a similar nature addressed to me, will, at least, lead His Imperial Majesty to the conclusion that such complaints could not have arisen, and continued under the government of a person calculated to preside over the interests of so important a province.

Your Excellency will find a memorial from the French Consul, marked No. 7, and the other Consuls have only been restrained from sending similar representations from the consideration that, on the squadron quitting this port, the consequences might be highly prejudicial to their interests and those whom they represent.

I would further state to your Excellency the remarkable fact that the President—after having continued a *high pay* to the soldiery during the existence of those disorders of which they were the instrument—did, at the moment of my taking the command, send me an old order respecting the diminution of the pay of the troops, which order he himself had never put in execution. And it is still more extraordinary, that he since refused *any pay whatever*, to the small number of troops of the line, who are continued in service for the preservation of the tranquillity of the city.

Since my last letters, I have been using all possible diligence to get the remainder of the firearms out of the hands of the lower classes of the population. Many, however, have been withheld—a circumstance which gives additional importance to the extraordinary fact, which I have only by accident learned—that the Junta of Fazenda, acting under the President, issued an order on the 6th of December (an

attested copy of which is enclosed), *authorising the sale of powder, and that too, under the false pretence that "all motives for suspending the sale of powder had ceased."* I have not words in which to express the astonishment I felt at this extraordinary proceeding. I shall only add that, as soon as it came to my knowledge, I gave orders that such sale should not be permitted, and I have since directed the whole of the powder in the magazines at Maranham to be embarked and deposited in a vessel near the anchorage of the ships-of-war; by which precaution I consider the security of the white population to be in a great measure secured, till His Imperial Majesty shall be enabled to take such steps as in his judgment may appear necessary.

Were I to detail to your Excellency all the facts that lead my mind to a conclusion that this province will be entirely lost to the empire unless a speedy remedy be applied to the evils which here exist—it would be necessary to trespass upon you at very great length; but as the brother of the Secretary of Government proceeds to Rio de Janeiro by the same conveyance as this, your Excellency and colleagues will be able to obtain from him such further information as may satisfy your minds regarding the state of this province.

(Signed) COCHRANE AND MARANHAÕ.

It was not long before I learned that in many parts troops were being secretly organised to support the President's authority against me, but this was met by removing from command those officers who had either permitted or encouraged military insubordination; supplying their places with others upon whom I could better rely.

An occurrence, however, now took place which threatened to involve Brazil in serious difficulties. From the indiscrimination of Bruce's troops in their career of injury and plunder, some renewed outrages had been

committed on French subjects; for which the French consul required reparation from me, as having assumed the chief authority; at the same time again demanding passports for himself and the whole of the French residents, in case of my intention to quit the city and leave Bruce again in power. The British consul also forwarded additional complaints of similar outrages against his countrymen; but, in place of requiring reparation at my hands, he forwarded representations to his own government, requesting protection against the acts of Bruce, at the same time communicating the fact of these representations to me, but declining to furnish me with a copy of his despatch, as I had no direct appointment from the Imperial Government for the authority I was exercising. The demands of the French consul were, however, pressing; but I could only reply with regard to the outrages committed against French subjects by the adherents of the President:—"I was sorry that it was not in my power to remedy past evils; but that such steps had been taken as would prevent their recurrence for the future."

The subjoined is one of the letters of the British Consul:—

British Consul's Office,

Maranhaõ, Dec. 17, 1824.

My Lord,

Understanding that your Lordship has an intention of soon withdrawing your presence from this province, I am forced, as the official and responsible protector of British interests in this quarter, to make the following statement, leaving it to be proved by the facts therein set forth that I am, by this course, adopting the only means within my reach, of providing for the interests confided to my attention, a satisfactory security! and that I am, by so doing, not

departing from that line of conduct which, as a neutral officer, I am bound to observe.

By this time your Lordship must be fully aware of the violent character and desolating effects of the late civil commotions throughout this province. These commotions unhappily existed during a protracted period, and whilst they were raging, the regular pursuits of the community were either interrupted by violent party intrigues—suspended by a barbarous warfare—or totally stopped by merciless outrages.

Notwithstanding this disjointed state of society, and the consequent inefficiency of all constituted authority, the resident British, by general and firm perseverance in a strictly neutral line of conduct, and by calm endurance of not a few unavoidable ills—succeeded in averting from themselves the chief weight of those evils to which all the remaining population were exposed.

But though they now feel grateful at having escaped outrage and have passed unhurt amidst general anarchy, still, they recollect, that while by their conduct they were entitled to protection, they nevertheless continued in a painful anxiety for their safety.

In this state of uncertain security the resident British continued for several months, and when at last intrigue attempted to force them into the general scene of distress—some being openly threatened—your Lordship's providential arrival averted the destruction of many inhabitants, and the dangerous condition of all.

Into this critical situation were British interests at this place thrown by violent party spirit. That spirit, though at present smothered, cannot be totally extinguished without time. It has unsettled the

community at large, and disorganised all the military establishments of the province.

After this exposition of facts, I may be allowed to assert, without thereby offering the least disrespect to any constituted authority, that your Lordship's presence in this province for the time being is indispensable for the tranquillity and security of all its inhabitants—because the only means by which legal control can be revived, and consequently an occurrence which must be as desirable and needful to all public functionaries, as I frankly avow it to be to one, who has the honour to declare himself

Your Lordship's
Most obedient and humble servant,

ROBERT HESKETH,
His Britannic Majesty's Consul.

To the Right Hon. Lord Cochrane,
Marquis of Maranhaõ, Admiral, &c. &c.

The letter of the French Consul is even more precise, and therefore I subjoin that also:—

Vice Consulate of France at S. Louis de Maragnon,

Monsieur le Marquis, Dec. 4, 1821.

La position difficile dans laquelle je me suis trouvé depuis trois mois—la délicatesse de celle dans laquelle je suis placé maintenant vis-à-vis M. le Président de la province de Maragnon, m'imposant le devoir de porter à la connoissance de votre Excellence les justes motifs de plainte que j'ai à lui exposer centre la conduite de M. le

Président Bruce envers un Agent de Sa Majesté le Roi de France, et venir à ce titre reclâmer un appui que je ne puis plus dorénavant attendre de sa part. La confiance que m'inspire le caractère dont votre Excellence est revêtue, et la certitude qu'elle n'ignore pas les intimes relations qui lient la France à l'Empire du Brésil, me font qu'elle saura apprécier les conséquences graves que doivent entraîner l'avance faite ici aux sujets de mon Souverain, et le silence méprisant que garde à cet égard le Président depuis un mois que je lui ai demandé la participation du résultat d'une enquête qu'il m'assura avoir été ordonnée par lui. Sans m'entendre sur les évènements facheux qui ont désolé cette province depuis cinq mois, pour être hors du but que je me propose je me bornerai à parler de ceux dont je puis garantir l'authenticité et de l'influence du Gouvernement de M. Bruce pendant cet intervalle sur le bien-être de mes nationaux.

Lors des premières armamens faits dans la province, pour opposer des forces à une expédition supposée de la part du Portugal, un François établi à Caixas, compris dans une mesure générale fut obligé d'autorité de délivrer une partie d'armes dont il ne recût jamais la valeur, malgré un sejour prolongé de plusieurs mois dans le même endroit. Quelque modique que soit la somme qu'il s'est vu dans la nécessité de venir reclâmer ici, elle est proportionnée à ses moyens. C'est un tort évident fait à cet homme qui ne put continuer à exercer son industrie dans le lieu qu'il avoit choisi, et fut contraint à un déplacement coûteux qui doit lui retirer toute confiance à l'avenir.

L'arrivée des troupes envoyées par le Président pour réprimer un mouvement dans l'intérieur immédiatement après le départ de M. José Felix Burgos, ne fut signalée dans la ville d'Alcantara que par

des désordres, les Etrangers même n'y furent pas respectés dans cet endroit, qui n'étoit pas encore le théâtre des hostilités. Un homme de ma Nation y exerçant paisiblement son commerce fut attaqué chez lui, eut les portes de sa maison enfoncées par les soldats, fut temoin deux fois du pillage de sa boutique et forcé pour sauver ses jours d'aller séjourner dans le bois; ce malheureux n'a d'autre ressource maintenant que le travail de ses mains, ce fait contre lequel il eut été de mon devoir de reclâmer vient seulement de parvenir à ma connoissance.

Les François établis en cette ville avoient joui jusqu'à l'arrivée dans l'île des troupes armées contre le Président d'une trop grande sécurité, pour ne pas révailler contre eux toute la haine dont avoit eut fait preuve déjà les Portugais avant l'adhésion de cette province a l'Empire du Brésil. Un acte émané *de leur despotique Junte* avoit malgré les traités fait fermer les loges Françoises jusqu'à la reception des ordres précis de leur gouvernement, qui désapprouvait hautement cette mesure. Ces mêmes Portugais oubliant la générositie avec laquelle les commandants de trois bâtimens de Sa Majesté le Roi de France venoient de sauver un grand nombre de leurs compatriotes lors des derniers troubles du Parà, n'écoutant que leur jalousie ne s'efforcèrent qu'à nous perdre dans l'opinion publique *par le plus noires inculpations.* Je les considère comme ayant influé puissament sur le malhereux évènement que j'ai eu à dèplorer. Malgré l'avertissement que j'avois donné huit jours auparavant au Président de la menace qui étoit faite aux François de leur faire subir le genre d'assassinat usité ici, le 21 Septembre, quatre François été surpris par des assassins, deux furent très maltraités, l'un atteint de plusieurs blessures à la tête et au bras fut reconduit chez lui baigné dans son sang; ses blessures au bras, fracturé en deux endroits laissent encore douter après 70 jours de

douleurs aigues s'il ne devra par subir l'amputation. Le même jour à la même heure, un François fut attaqué chez lui malgré le signe de reconnaisance qui distingue depuis les troubles les maisons des François; des pierres lancées dans sa porte et ses fenêtres pendant un long espace de temps, l'obligèrent à venir lui-même dissiper par des menaces une troupe d'hommes qu'il espéroit ne pas voir échapper à la surveillance d'un porte militaire à proximité de sa maison.

M'étant rendu chez le Président, lui demander d'abord la punition de ce crime atroce, il eut l'inconvenance de m'objecter que la conduite des François étoit très repréhensible, je remarquoi ces paroles et le lui fis observer; elles ne pouvoient s'appliquer d'ailleurs qu'à deux individus passés au service du parti opposé, que j'étois venu desavouer lui en demandant expulsion. Le Président repondant se rendit à ma demande, et me donna l'espoir d'avoir une satisfaction, tant pour l'attentat à la vie des quatre individus de ma Nation, que pour l'attaque du domicile d'un François.

Néanmoins les jours suivants les désordres continuerant, les François étoient outragés publiquement; un soldat eut l'audace de poursuivre mon negre dans la maison Consulaire et de l'y frapper en se repondant en invectives contre les François; un enfant de neuf ans fut horriblement maltraité par des soldats, jusqu'aux négres osoient lever la tête, et nous insulter. Mr. Bruce avoit-il pris du mesures de repression? Est-ce la protection que devoit en attendre l'Agent d'une puissance amie du Brésil? En butte à l'animositie d'une soldatesque indisciplinée, nous courûmes pendant quinze jours le danger le plus imminent, nous attendant à tout instant à voir se réaliser ses menaces de venir nous massacre dans nos maisons.

J'ai eu depuis à reclamer contre le violation d'un batimen du commerce François. Malgré trois gardes de la Douane, cinq soldats armés furent envoyés à son bord à neuf heures du soir; je les fis retirer le lendemain; ce dernier acte du Président qui des lors commença à ne plus garder aucuns ménagemens avec moi, faisant incarcerer un des mes nationaux sans m'en donner avis ainsi que des motifs qui l'y portoient; le pavilion du Roi placé au dessus de l'Écusson de France, que je trouvai lacéré, me firent prévoir que je n'avois plus rien à attendre de la protection de l'autorité.

Monsieur le Marquis, je me suis maintenu à mon poste malgré les dangers tant que j'ai eu l'espoir que l'arrivée de Votre Excellence si desirée de la population entière de la province, viendroit nous délivrer de ce déplorable état de choses. Sans connaître les intentions de Votre Excellence, je vois Mr. Bruce encore président, non-seulement il ne m'a donné aucune satisfaction, mais encore apporte dans sa conduite, le mépris le plus marqué par un fileure qui ne pent s'interprêter autrement.

C'est donc contre lui, Monsieur le Marquis, que je vieus en solliciter une aujourd'hui pour ce total oubli de ses devoirs envers un Agent de Sa Majesté très Chrétienne; cette conduite emporte le refus d'aucun appui de sa part pour l'avenir; d'ailleurs mon caractère publique m'impose de ne pas m'exposer à un outrage, et l'intérêt que je dois à mes nationaux de les soustraire à son implacable vengeance. Si Votre Excellence ne jugeoit pas convenable d'user de ses pleins pouvoirs pour m'accorder la seule garantie qui puisse me permettre de séjourner plus longtemps ici, je viens lui demander de protéger mon embarquement et celui des François qui restant encore à Maragnon.

Je suis, avec respect, Monsieur le Marquis, de Votre Excellence le très humble et très obéissant serviteur,

(Signé) PL. DES SALLIERES.

À son Excellence LORD COCHRANE, Marquis de Maragnon, Premier Amiral du Brésil, &c. &c.

The steps alluded to were such as I considered most essential for the safety of the as yet unacknowledged empire; which, through the folly of a provincial Governor, was in danger of being jeopardised by collision with powerful European states. As stated to the Maranham memorialists, I did not adopt the extreme measure of deposing Bruce from the presidential authority, but resolved to suspend him therefrom till the pleasure of His Imperial Majesty as regarded his conduct should be made known. Accordingly, on Christmas day, 1824, I addressed to him the following letter;—

Maranham, Dec. 25,1824.

SIR,

It is with extreme regret that I feel myself under the necessity of acquainting your Excellency that it is impossible for me to withdraw the squadron from Maranham, so long as your Excellency continues to exercise the functions of President of this province; because it is evident that if your Excellency is left in authority, without the aid of the squadron, you must again have recourse to the assistance of the lowest order of the people, whom, on my arrival here, I found in arms in support of your Excellency, against nine-tenths of the upper classes

of society, who continue to entertain the greatest terror of being left under the authority of your Excellency.

To prevent the recurrence of so lamentable a state of things—the loss of lives—and the calamities of every kind which would inevitably ensue, I would respectfully suggest to your Excellency the necessity of your withdrawing from office, until the determination of His Imperial Majesty can be obtained.

I can, with great truth, assure your Excellency that my intentions are not in any degree dictated by any feelings of personal ill-will towards your Excellency. On the contrary, I have a wish to rescue you from a situation of great jeopardy, and it is chiefly with a view of avoiding to do anything that might appear derogatory to your Excellency, that I am desirous the change so necessary to be effected should proceed from your Excellency's voluntary resignation. But I regret to add that so pressing is that necessity, that it is quite essential that your Excellency's determination should be immediate, and therefore I hope to be favoured with your Excellency's reply in the course of the present forenoon.

Permit me to assure you that if it should be your desire to continue in this city in the character of a private gentleman until the determination of His Imperial Majesty, with respect to your resumption of office, or otherwise, shall be known, no impediment to your Excellency's wishes will originate with me; or, if you should think proper to proceed at once to the Court of Rio de Janeiro, a commodious conveyance shall be provided for the accommodation of your Excellency, and of those whom you may deem it convenient to accompany you.

(Signed) COCHRANE AND MARANHAÕ.

Bruce did not resign, preferring to accept my offer of conveyance to Rio de Janeiro, there to await His Majesty's decision. Complete tranquillity being thus restored to the province of Maranham, and not to that only, but also to the adjoining provinces, which had more or less entered into the existing disorders, either as adherents of the insurgent chiefs, or of the President, it became requisite to organize a government. Not deeming it politic to elevate to power any member of those families of distinction whose feuds were only dormant on compulsion, I appointed Manuel Telles de Silva Lobo, the Secretary of Government, as interim President; he being entirely unconnected with family factions, well acquainted with the details of government, and of unimpeachable integrity. At the same time I caused the Camaras to be re-assembled, so that the administration of law and public affairs might be carried on according to the forms and intentions of the constitution.

This suspension of the President was afterwards fully approved of by His Majesty, and the more patriotic of his advisers, as only anticipating their intentions, it being a remarkable fact that, at the very time I was suspending him, *an order from His Majesty was on its way to supersede him*; information of his proceedings having previously reached Rio de Janeiro, so that in what had been done, I had only carried out the intentions of His Majesty.

Nevertheless, the occasion—as affording a good opportunity to traduce me—was afterwards eagerly seized by the Portuguese faction in the administration. All attempts to injure me in the estimation of the population at Rio de Janeiro—which was firmly attached to the Emperor, and grateful to me for my services—had signally failed; but on his arrival at Rio de Janeiro the representations of the ex-president whose mal-administration I had summarily checked, were published in every possible shape, whilst the Minister of Marine unwarrantably withheld my despatches from the public,

as well as from His Majesty, the consequence of which was that the prejudicial representations of what were termed my arbitrary acts had full effect. It was represented that I, a foreigner, had dared, unauthorised, and on false pretences, to seize on the person of a gentleman occupying the highest position in one of the most important provinces, and had sent him to Rio de Janeiro as a prisoner, whilst it was I who deserved to be brought to condign punishment for the outrage; and had I at the moment been within reach of the Portuguese faction at the capital, which was embittered against me for establishing order, when to further their own anti-Imperial designs disorder was alone wished—a summary end might have been put to my efforts for preserving and consolidating the integrity of the Brazilian empire.

That this vituperation and hostility would be the result I well knew; but as the Portuguese party in the administration could scarcely treat me worse than they had done, I had made up my mind to encounter their displeasure. Of His Majesty's approval I felt certain; and, in return for the uninterrupted favour and reliance, which, notwithstanding the self-interested hostility of his anti-Brazilian Ministers, I had uniformly experienced at his hands, I had all along resolved to secure that which I knew to be His Majesty's earnest wish—the unity of the empire by the pacification of the Northern provinces. All attempts to thwart this on the part of the Portuguese faction were futile, and even unconsciously favourable to the course I was perseveringly pursuing, though all my despatches to the minister remained unanswered, and no instructions were sent for my guidance.

Notwithstanding the neglect of the administration to supply the squadron with necessaries, and myself with instructions, in a position foreign to my duties as naval Commander-in-Chief, and which I had only accepted at the earnest wish of His Imperial Majesty—I carefully kept the Government advised of all that took place. The same ship which conveyed the ex-

president to Rio de Janeiro, carried also the following despatch to the Minister of Marine:—

Maranham, December 31st, 1824.

MOST EXCELLENT SIR,

I have to acquaint your Excellency that a belief that the squadron was about to withdraw and leave the abandoned and disorderly military of this place under the feeble control of his Excellency the President, excited a degree of dread in the public mind amounting almost to a state of frenzy—and convinced me that I had no alternative, but either to abandon the principal inhabitants, and, indeed, the whole white population, to the fury of mercenary troops and blacks—or to remain with the squadron until another President should be nominated by His Imperial Majesty.

This last measure, however, upon mature consideration, appeared to be wholly incompatible with the interests of His Imperial Majesty, not only on account of the violent animosities subsisting between President and people, which, notwithstanding the utmost vigilance on my part, daily disturbed the public tranquillity—but because the presence on shore of nearly the whole of the seamen in the ships of war is requisite to counterbalance the influence and power which the President has obtained over the soldiery and irregular bands, by the impunity with which he has suffered them to act, and by rewards bestowed on persons in the ranks, or of the lowest orders of society. The continued absence of seamen from the ships would, it is evident, endanger the safety of the latter; besides which, the season is now approaching when diseases incident to the climate become prevalent, and would not fail considerably to thin the small force at my disposal.

The necessity of adopting some decided measure became every day more urgent. Representations continued to pour in from all quarters against the conduct of the President. The Consul of His Britannic Majesty, moreover, having heard that the squadron is about to depart, has written me a letter, of which I enclose to your Excellency a copy.

I am aware that it is difficult to follow a course, under the circumstances in which I am placed, that when judged of at a distance, and merely on such evidence as can be conveyed by writing, will leave no room for persons to contend that a different line might have been followed with greater advantage; and I am perfectly aware that whether I had left this province, and anarchy had followed, or whether by remaining I had succeeded in preventing that anarchy, *I should equally be exposed to the cavils of those who are always disposed to reprobate the measures actually adopted, whatever they may be*.

Having, therefore, but *a choice of evils with respect to myself*, I have—without further care as to my personal responsibility—pursued that course which, on full consideration, appeared to me to be most conducive to the interests of His Imperial Majesty, and best adapted to secure the tranquillity of this province; and I have *reserved for my own security* such original documents as will satisfy the mind of His Imperial Majesty on the subject of my conduct in suspending the functions of the President of Maranham.

A few of the many reasons which have induced me thus to take upon myself a heavier responsibility than would have attached to the adoption of either of the measures before alluded to, will be found on the printed paper which I enclose. In that paper, however, I did not consider it proper to set forth all the facts which have come to my

knowledge; such as his tampering through various agents with the troops, artillery, and police, and above all with the disbanded "*Pedestres*;" and the sending of emissaries to the distant quarters of the province to excite the people again to rise in arms for his support—though no legal prerogative which the President does, or ought to possess, had been in any way infringed by me or any person acting under my authority. The fact is, that this gentleman, bred up under the despotic Captains-General, accustomed to their arbitrary proceedings, to the mal-administration of colonial law, and the absence of everything like fair trial, cannot brook any limitation to his power, and has demonstrated his desire, if not to establish an independent sway, at least to act solely according to his will and pleasure. I am anxious to ascribe his faults rather to the circumstances under which he has unfortunately been brought up, and to his advanced age, than to premeditated evil intentions.

I have the satisfaction of adding, that, by the course I have adopted, a desolating civil war has been terminated—the treasury saved further expenditure—and the persons and property of the people have been rescued from destruction, and placed under the protection of the laws.

(Signed) COCHRANE AND MARANHAÕ.

Such was the history of an affair, which would not have been thus minutely detailed, but for the obloquy against me to which it subsequently gave rise; the ministry afterwards declaring that, to serve my own purposes, I had *deposed* Bruce, and appointed Lobo in his place—the facts being, that I never deposed him at all, but suspended his functions merely till His Majesty's pleasure should be known—and that, at the very period when this took place, *the Administration, unknown to me, had deposed him for the same causes which led me to suspend him!* as will appear in the next

chapter. Nevertheless, when they found that—acting under the discretion accorded to me by His Imperial Majesty—I had partially only anticipated their own act, and that vituperation against me in my absence might be turned to their own account, they took up the cause of the very man whom they had deposed, and loaded me with abuse for having outraged the feelings and position of a most excellent person nominated by His Majesty to one of the highest offices in the state.

CHAPTER X.

MISREPRESENTATIONS MADE IN ENGLAND—LETTER TO THE EMPEROR—TENDERING MY RESIGNATION—REPAYMENT DEMANDED FROM THE JUNTA—CONDUCT OF THE PRIZE TRIBUNAL—NO ADJUDICATION OF PRIZES INTENDED—LETTER TO THE INTERIM PRESIDENT—DEMANDING THE SUMS OWING TO THE SQUADRON—DISTURBANCE IN PARA—STATEMENT OF ACCOUNT TO THE JUNTA—OFFER OF COMPROMISE—IMPERIAL DECREE—RIGHT OF THE SQUADRON TO THE CLAIM.

Worn down in health by the harassing duties of the naval, military, and civil departments, the conduct of all these wholly devolving upon me, whilst the Ministry at Rio, by withholding instructions, neither incurred trouble nor responsibility—and aware that my character was being traduced by every species of malignity which could be devised by the party whose views were destroyed by the successful manner in which those duties had been performed, I was heartily sick of the ingratitude and misrepresentation with which the service of having twice secured the Northern provinces to Brazil was met on the part of the Administration, in addition to their now apparent determination that neither myself nor the squadron should reap any benefit from the prize property taken in the preceding year, notwithstanding that, under the Andrada ministry, both had been solemnly guaranteed to the captors.

I was, however, even more annoyed on another account, viz. from being apprised that the vilest misrepresentations of my conduct were being sedulously circulated in England by the partisans of the Administration.

Their vituperation in Brazil could, to some extent, be met; but the petty meanness of attacking a man in a distant country, without the possibility of his defending himself, was a matter against which no prudence or foresight could guard.

Determined no longer to contend with an Administration, which could thus conduct itself towards an officer whose exertions had been deemed worthy of the highest honours from the Emperor, and the warmest thanks from the National Assembly, I resolved to request permission from His Imperial Majesty to retire from so unequal a contest, for I did not choose spontaneously to abandon the command, without at least some compensation beyond my ordinary pay. Even setting aside the stipulations under which I had entered and continued in the Imperial service—this was at least due to me from the unquestioned fact that to my twice rendered exertions—first as naval Commander-in-Chief; and, secondly, as a pacificator—the empire owed its unity and stability, *even in the estimation of European governments*, which, now that the provinces were tranquillized and the empire consolidated, exerted themselves to promote peace between Brazil and the mother country.

Accordingly—on New Year's day, 1825—I addressed to the Emperor the following letter:—

SIRE,

> The condescension with which your Imperial Majesty has been pleased to permit me to approach your royal person, on matters regarding the public service, and even on those more particularly relating to myself, emboldens me to adopt the only means in my power, at this distance, of craving that your Majesty will be graciously pleased to judge of my conduct in the Imperial service, by the result of my endeavours to promote your Majesty's interests, and

not by the false reports spread by those who—for reasons best known to themselves—desire to alienate your Majesty's mind from me, and thus to bring about my removal from your Majesty's service.

Whilst I have the honour to continue as an officer acting under the authority of your Imperial Majesty, I shall ever perform my duty to your Majesty and to the Brazilian people; and I trust that, up to the present day, your Majesty has not felt any reason to doubt my sincerity and fidelity to your Imperial interests. And if his Excellency the Minister of Marine has failed to lay before the public my despatches, and thereby permitted rumours prejudicial to my character to go forth, I respectfully look up to your Imperial Majesty for justice.

In this hope, I most respectfully entreat permission to refer your Imperial Majesty to my letter No. 271, which I addressed to his Excellency the Minister of Marine, from Pernambuco, early in October, previous to my departure from that port, announcing my intention of proceeding northward, and the necessity of so doing, for the pacification of the northern provinces; also to my letter of the 13th of October (No. 273), written from Rio Grande do Norte; and No. 274, dated October 28th, written from Cearà; all of which letters, explicitly describing my proceedings, intentions, and reasons, were duly transmitted, both in original and duplicate, by different conveyances.

I trust that your Imperial Majesty will please to believe me to be sensible that the honours which you have so graciously bestowed upon me, it is my duty not to tarnish; and that your Majesty will further believe that, highly as I prize those honours, I hold the

maintenance of my reputation in my native country in equal estimation.

I respectfully crave permission to add, that—*perceiving it to be impossible to continue in the service of your Imperial Majesty, without at all times, subjecting my professional character to great risks under the present management of the Marine department—I trust that your Majesty will be graciously pleased to grant me leave to retire from your Imperial service, in which it appears to me that I have now accomplished all that can be expected from me—the authority of your Imperial Majesty being established throughout the whole extent of Brazil.*

I have the honour to be
Your Imperial Majesty's
Dutiful and faithful servant,

COCHRANE AND MARANHAÕ.

The permission to retire was neither granted, nor was the request noticed, yet—notwithstanding that the ministerial organs of the press teemed with matters injurious to my reputation, and displayed the most unfair comments on my proceedings—no complaint was officially made to me, as indeed none could be made; this ungenerous mode of attack being resorted to, whilst the whole of my letters and despatches were withheld from public knowledge.

On the 3rd of January, intelligence was received that an outbreak had occurred at Caixas, promoted by the adherents of Bruce on learning the fact of his suspension from the presidentship. The interim-president, Lobo, was anxious to re-arm the disbanded troops against them, but this I forbade, telling him that, "in my opinion a military mode of governing was neither

suited to the maintenance of tranquillity nor the promotion of obedience to the law, and that it would be better to give the civil law a trial before proceeding to extremities; and that although some outrages had occurred in the heat of party spirit, yet they would probably cease on the intelligence that President Bruce had embarked for Rio de Janeiro." The result was in accordance with these anticipations, for, on learning this fact, the insurgents immediately laid down their arms—being only too glad to escape further notice.

In the expectation that His Imperial Majesty would approve of the act, and that his ministers could offer no opposition, I considered it my duty to the officers and seamen of the squadron, no less than to myself, to obtain repayment from the Junta of Maranham—at least in part—of the sums temporarily left for their use in the preceding year.

It will be remembered that after the expulsion of the Portuguese from Maranham in 1823, considerable sums of money and bonds had been taken in the treasury, custom-house, and other public offices, together with military and other stores—and the value of these, though guaranteed by His Imperial Majesty to the captors, had, with the consent of officers and seamen, been temporarily lent to the then Provisional Government, for the double purpose of satisfying the mutinous troops of Cearà and Piahuy, and carrying on the ordinary functions of Government—there being no other funds available!

At the period of this temporary surrender of the prize property to state exigencies, it was expressly stipulated and fully understood that, as soon as commerce had returned to its usual channels, and with it the customary revenues of the province, the whole should be repaid to the account of the captors. This had not been done, and the officers and men were still losers to the amount, in addition to the non-adjudication of their prizes generally

by the Portuguese tribunal at Rio de Janeiro, which, in unprincipled violation of the express decrees of His Imperial Majesty—asserted that "they knew nothing of prizes, and did not know that Brazil was at war with Portugal!" though, in the Imperial order of March 30th, 1823—given for the vigorous blockade of Bahia, His Majesty had explicitly ordered the Portuguese to be considered as "enemies of the empire."—"Distruindo ou tomando todas as forcas Portuguesas que encontrar e fazendo todas damnos possives a os inimigos deste Imperio."

It was further pretended by the tribunal that Bahia and Maranham were not foreign ports, but parts of the Brazilian empire, though, at the time of my appearance before them, both provinces were then, and ever had been, in possession of Portugal; the tribunal, nevertheless, deciding with equal absurdity and injustice, that captures made in those ports, or within three miles of the shore, were unlawful—this decision including, of necessity, the unaccountable declaration, that His Majesty's orders to me to blockade the enemy's port of Bahia, and to take, burn or destroy all Portuguese vessels and property—were also unjust and unlawful! although this was the very purpose for which I had been invited to quit the Chilian service. Yet, notwithstanding this Imperial decision, the tribunal also most inconsistently condemned all ships of war taken (as *droits*) to the crown, without the slightest compensation to the captors.

But there was still a more flagrant injustice committed, viz. that whilst the officers and seamen were thus deprived of the fruits of their exertions, they became liable to about twenty thousand milreas in the prosecution of their claims; for no other reason than the unwillingness of the prize tribunal to order condemnations injurious to their friends and native country; for as has been said nine out of the thirteen members of the tribunal were Portuguese!

It had, therefore, been long apparent that no adjudication in favour of the squadron was intended, and that its services in having united the empire and saved it from dismemberment, would only be met by continued injustice.

As the property left with the Provisional Government of Maranham had been used for the benefit of that province, and as no part of it had ever been repaid, I determined that those to whom it was due should not, at least, be defrauded of that portion of their claims, or of a reasonable compromise thereof; and therefore I addressed to the interim-president the following letter:—

TO HIS EXCELLENCY MANOEL TELLES DA SILVA LOBO, PRESIDENT INTERINO.

SIR,

> The public duties which I had to perform for the service of His Imperial Majesty, and the pacification of this province, being now happily brought to a termination, it becomes my duty, as Commander-in-chief, to call your Excellency's attention to some facts concerning the interests of the officers and seamen under my command.
>
> On the occasion of my former visit, in 1823, which was so happily instrumental in rescuing this province from the yoke of Portugal and annexing it to the Empire, I was desirous of rendering the service performed still more grateful to the people by voluntarily granting, in the conditions of capitulation, not only my guarantee for the inviolability of all Brazilian property then under the Portuguese flag, but also of all the property belonging to resident Portuguese who should subscribe to the independence of the Empire, and the authority of His Imperial Majesty. These conditions were most scrupulously observed and fulfilled on my part, without the slightest infringement in any one instance.

But—on the other hand—it was expressly set forth in the terms of capitulation, that all property belonging to those who remained in hostility—that is to say, property belonging to the crown or government of Portugal, or to absent Portuguese (though with respect to the latter a commutation was subsequently consented to) being, according to the laws of war, subject to condemnation to the captors—should be delivered to the captors accordingly, to be, by themselves, subjected to the customary investigation in the prize tribunals of His Imperial Majesty.

Amongst other articles of property of this description were, of course, included the money due on the balance of public accounts to the crown of Portugal, and this amount—partly in specie and partly in bills—was held in readiness by the capitulating authorities to be delivered when required. But, as my attention was for some time solely directed to the arrangement of public affairs, I neglected to call for the said balance until the new Junta of Government, chosen under my authority, had taken possession of their office, and obtained the control of the public moneys.

After several applications on my part to the said Junta, and as many evasions on their part, I had, at last, a personal conference with them on the subject—on which occasion they solicited, as a particular favour, that I would permit the amount to remain in their hands, for the purpose of satisfying the claims of the troops of Piahuy and Cearà, whom they represented as being clamorous for their pay. To this request I agreed, under the assurance that I should receive bills from the said Junta for the amount. These, however, they not only evaded granting, but, when afterwards called upon for a receipt, they declined giving any acknowledgment.

To the truth, however, of the main fact, viz., the claims of myself, and the officers and men under my command, your Excellency has now the power of satisfying yourself by a reference to the official documents that passed between the functionaries of government and myself, both previous and subsequent to the surrender of the Portuguese authorities in this province.

The conduct of this Junta has proved to be merely a type of that which we have since experienced on a larger scale at the hands of the supreme tribunal of justice at Rio de Janeiro. But there is a point beyond which forbearance ceases to be a virtue, and I now call upon your Excellency to direct that the Junta of Fazenda, who so unjustly and deceitfully withheld from the officers and men the property above described, shall, with all convenient despatch, proceed to the adjustment of the claim in question.

An attested copy of the accounts, signed by the members of the late Portuguese Junta of Government—being in my possession, I enclose a copy thereof, which your Excellency can cause to be compared with the original treasury and custom-house books. I likewise enclose to your Excellency a copy of a gracious communication which I received from His Imperial Majesty—the original of which, in His Majesty's own handwriting, is now in my possession.

This will enable your Excellency to judge as to what the understanding and intentions of His Imperial Majesty really are, with respect to the claims of the squadron—when influenced by the dictates of honour and his own unbiassed judgment.

Nevertheless—should your Excellency consider it necessary, I have no objection to prosecute the claims of the officers and seamen to the balance before alluded to—in the Court of Admiralty which your

Excellency is about to convene. But I beg it may be distinctly understood that I hold myself bound not to relax in any way from my determination that these accounts shall be settled, so as to enable me to fulfil the duty which I am engaged to perform to those under my command.

(Signed) COCHRANE AND MARANHAÕ.

To my annoyance Parà became the scene of renewed disturbance, and even the life of the President was threatened. This was disheartening, as evincing a desire on the part of the provinces to pursue—each its own separate course; proving the deep hold which the counsels of Palmella had taken to promote anarchy by fostering provincial pride—as a means to promote discord, and thus to reduce the newly-formed empire to insignificance and ruin,—from the same cause which had befallen the liberated provinces of Spanish America.

Not having been furnished with troops, it was difficult to spare a force to meet this new emergency. There was no time, however, for hesitation, so I despatched the *Atalanta* to Parà, with a detachment of the best seamen, under the command of Lieutenants Clarence and Reed, upon whose zeal every reliance was to be placed; at the same time sending a recommendation to the President to use the force for the purpose of remitting to me those who had threatened his life, and of overawing those who had been endeavouring to subvert his authority.

The Junta of Fazenda having now assembled, I transmitted to them the following;

GENERAL STATEMENT

Of the money and other property claimed by the squadron on the surrender of the Portuguese authorities of Maranham; in conformity to the laws relative to matters of prize, and the gracious decrees of His Imperial Majesty:—

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Obligations delivered as Portuguese property under the decree of H.I.M. of Dec. 11th, 1822; by that decree confiscated to the Crown, but by the gracious bounty of H.I.M. awarded to the squadron, in his own handwriting, dated 12th February, 1824 170,196 461 _____ Sum total 424,196 461

Together with this statement of account, I forwarded the following offer of compromise, on the part of the squadron, for the payment of one-fourth only:—

His Imperial Majesty, having—by decree of the 11th of December, 1822—commanded the seizure and confiscation of all merchandise in the custom-houses of Brazil belonging to Portuguese subjects—all merchandise so belonging, or the proceeds thereof, in the hands of merchants—and all vessels or parts of vessels belonging to such subjects—I, therefore, in conformity with the said decree, having, on the occasion of the capitulation of Maranham, directed, that all persons having property in their hands of the nature set forth in the said decree, should deliver in an account of the same; and the bills and papers herewith annexed having been given up by their respective holders as *Portuguese property of the description set forth*, the said bills and papers are now laid before the Court of Vice-

Admiralty, in order to the adjudication thereof in conformity to the said decree.

But, whereas, the said Imperial decree could not be enforced at Maranham in the ordinary manner, by means of civil officers acting under the authority of His Imperial Majesty, by reason of the port and province being under the authority and government of Portugal; And whereas, His Imperial Majesty, in consideration of the annexation of the said port and province to the Empire, by the naval means under my command—and generally of other important services—was graciously pleased, by virtue of a grant in his own handwriting, bearing date the 12th day of February last, to accord the value of the seizures to the officers and men as a reward for their exertions and services; the said officers and men agree to surrender these bills and the property, as set forth in the annexed list, amounting to 484,196,461, together with all other claims, for the sum of one-fourth, or 106,000, to be paid by the Treasury of Maranham by instalments, within the period of thirty days from the date hereof.

(Signed) COCHRANE AND MARANHAÕ.

The following is the Imperial decree alluded to in the preceding letter:—

DECREE.

It being obvious that the scandalous proceedings and hostility manifested by the government of Portugal against the liberty, honour, and interests of this Empire, and by the captious insinuations of the demagogical congress of Lisbon, which—seeing it impracticable to enslave this rich region and its generous inhabitants—endeavours to oppress them with all kinds of evils, and civil war, which has occurred through their barbarous vandalism. It being one of my

principal duties, as Constitutional Emperor and Defender of this vast Empire, to adopt all measures to render effective the security of the country, and its defence efficient against further and desperate attempts which its enemies may adopt; and also to deprive, as far as possible, the inhabitants of that kingdom from continuing to act hostilely against Brazil—tyrannizing over my good and honourable subjects— deem it well to order that there be placed in effective sequestration,

1_st_. All goods and merchandise existing in the custom-houses of this Empire, belonging to subjects of the kingdom of Portugal.

2_nd_. All Portuguese merchandise, or the value thereof, which exists in the hands of subjects of this Empire.

3_rd_. All real and agricultural property, held under the same circumstances.

4_th_. Finally, all vessels or parts of vessels, which belong to merchants of the said kingdom. There being excepted from this sequestration, bills of the national bank, banks of security, and those of the Iron Company of Villa Sorocaba.

Joseph Bonifacio de Andrada e Silva, of my Council of State, Minister of the Interior, and of Foreign Affairs, shall cause the execution of this decree.

Given in the Palace of Rio de Janeiro, December the Eleventh, 1822, first of the Independence of the Empire.

With the Rubrica of His Imperial Majesty,

JOSÉ BONIFACIO DE ANDRADE E SILVA.

These documents—coupled with the decree of Dec. 1822, awarding the above confiscations to the captors—shew so clearly the right of the squadron's claim, and the injustice of the course pursued by the prize tribunal at Rio de Janeiro, in refusing to adjudge Portuguese property to the captors, that further comment is unnecessary. In order, however, to give every possible information relative to a matter which has been, to me, a cause of so much obloquy, I subjoin my letter to the interim President, accompanying the preceding documents:—

SIR,

I have the honour to enclose to your Excellency, two hundred and sixty obligations seized under the orders of His Imperial Majesty—dated the 11th December, 1822—which I request you will be pleased to cause to be laid before the Junta of Fazenda, together with the papers enclosed, in order that the Junta may take the necessary steps to the liquidation of the just and moderate claims of the officers and seamen. I further beg your Excellency will be pleased to intimate to the Junta, that I cannot abstain from taking whatever measures may be necessary to prevent the violation of the laws and regulations of the military service—the infraction of the express engagement of His Imperial Majesty—and the consequent disorganization of the squadron, so essential for the maintenance of tranquillity, and the preservation of the independence of the Empire.

(Signed) COCHRANE AND MARANHAÕ.

20th Jan. 1825.

CHAPTER XI.

IMPERIAL APPROVAL—CONTINUED ENMITY OF THE ADMINISTRATION—JUNTA REFUSES TO PAY THE SQUADRON'S CLAIM—I PERSEVERE IN THE DEMAND—JUNTA AGREES TO PAY THE AMOUNT IN BILLS—THIS REFUSED—ARRIVAL OF A NEW PRESIDENT—BUT WITHOUT AUTHORITY FOR THE ASSUMPTION—INTRIGUES TO ESTABLISH HIM IN OFFICE—I ORDER HIM TO QUIT THE PROVINCE—AND SEND HIM TO PARA—LETTER TO THE PRESIDENT OF CEARA—INTERNATIONAL ANIMOSITIES—THE SQUADRON LEFT TO PROVIDE FOR ITSELF—ABUSE OF AUTHORITY—EXPLANATIONS TO MINISTER OF MARINE—OF TRANSACTIONS AT MARANHAM—LETTER TO CARVALHO E MELLO—ANTICIPATING MINISTERIAL DISPLEASURE—THE JUNTA REIMBURSES PART OF ITS DEBT.

On the 16th of January I had at length the satisfaction to receive, through the Minister of Marine, the Emperor's approval of the course pursued in the pacification of the Northern provinces, and his confirmation of the changes that had been made in their administration. Still not a word of instruction was vouchsafed for my future guidance.

The subjoined is the letter conveying His Imperial Majesty's approval of my acts and judgment:—

> His Imperial Majesty commands the Secretary of State of the Marine to apprise the First Admiral, Commander-in-Chief of the naval forces of this Empire, that His Majesty received his despatches by the schooner *Maria de Gloria*, by which His Majesty was informed of his proceedings, and approves of his determination to proceed to the Northern provinces, where the fire of rebellion has

been lighted, with a view to establish therein the order and obedience due to the said august sovereign, a duty which he has so wisely and judiciously undertaken, and in which course he must continue, notwithstanding the previous instructions sent to him, bearing date the 4th of October last, which instructions are hereby annulled until he shall attain the highly important objects proposed in the before-mentioned provinces, viz., till they submit themselves to the authorities lately appointed, and enjoy the benefits of the paternal Government of His Imperial Majesty.

Palace of Rio Janeiro, Dec. 2, 1824.

(Signed) FRANCISCA VILLELA BARBOSA.

To this letter—annulling my recall after the fall of Pernambuco—I returned the following reply:—

No. 289.

MOST EXCELLENT SIR,

Since I had the honour of addressing your Excellency in my letter, No. 288, I have not had any further intelligence from Parà; I therefore conclude that the officers and seamen whom I detached there, will be sufficient to aid the President in maintaining good order.

Here, nothing particular has happened, beyond the collecting of a few runaway soldiers and vagabonds in the woods. A party detached in pursuit of them, dispersed them all, and brought in several prisoners yesterday.

I have received your Excellency's communication by the schooner *Maria de Gloria*, and *feel highly gratified that His Imperial Majesty*

has been pleased to approve of the course which I have pursued for the termination of dissensions in the Northern provinces. Since the gracious communication of His Imperial Majesty, I feel less weight of responsibility in the course which circumstances have compelled me to follow, with a view to restore order in the province of Maranham.

I hope soon to inform your Excellency that the task which His Imperial Majesty has been further pleased to confide to me, of causing the newly-appointed authorities to be acknowledged, is accomplished; but I beg respectfully again to add my opinion that these Northern provinces will not long continue in a state of tranquillity, unless the provincial forces are shifted to other quarters of the empire. In fact, if attention be not paid to this, I consider that these provinces will shortly be entirely lost, both to the empire of Brazil and to Portugal.

(Signed) COCHRANE AND MARANHAÕ.
Jan. 21, 1834.

The continued absence of even the slightest instructions for my guidance —coupled with the Imperial approval of all I had done upon my own responsibility, naturally implied that it was considered better to leave me entirely unfettered by orders, which, if given at all, must be issued in ignorance of the actual state of things which required renovation. In this light I should have regarded the omission to direct my conduct, but for the warnings privately received, to be careful what I was about, for that, despite any apparent public approval of my proceedings, my enemies in the administration were on the watch for some act which might be construed to my disadvantage, and thus become the pretext for blame which should outweigh the praise accorded. The opportunity I felt had already been afforded by the suspension of Bruce from the presidency, notwithstanding

that this—as has been seen—was fully justified by circumstances, and was not resorted to without deliberate consideration, and the deepest conviction of its necessity. Still, any opposition to the suspension of Bruce could only be factious, for, on the 2nd of December, the Minister of Marine had in anticipation forwarded to me a list of new presidents and generals-at-arms, every person in authority throughout the whole extent of the Northern coast being changed—with the exception of the president of Parà; so that there was every reason to anticipate that even the strong measures which I had been compelled to adopt with regard to Bruce would meet the views of His Imperial Majesty.

On the 31st of January, the interim President apprised me that the Junta refused to liquidate any part of the claim made in behalf of the squadron. Upon this refusal, I wrote to the Junta that, such being their decision, I would hold them personally responsible that no bills, debts, nor claims of any kind beyond the current expenses of government should be paid, till this prior claim—in honour and justice due to the officers and seamen, who had generously advanced their prize money to meet state exigencies—should be liquidated; adding, that the seamen *relied on me for justice*, and if my warning were not attended to, I should be compelled to take such steps as the necessity of upholding the interests of the crown and the efficiency of the naval service appeared to demand.

In taking this step, I frankly admit that it was the only way to obtain from the Government of Maranham even a compromise for the amount owing by the province to the captors. I had every confidence in His Imperial Majesty that as far as lay in *his* power justice would be done, as evinced by the acknowledgments given in his own handwriting in opposition to the measures of his ministers, on whom, or the prize tribunal, no reliance could be placed; the former having done all in *their* power to thwart my efforts in His Majesty's service, whilst the tribunal, acting by the sanction or in

conformity to the known wishes of the ministry, had delayed adjudication, with the evident intention of *evading it altogether*, except in cases which gave a colour for condemning me in damages, in which respect—apparently their only object—they were prompt enough.

I therefore determined that as a specific portion of the prize property taken at Maranham in 1823, had, at its own request, been given up to the provisional Government, upon the express understanding of repayment — without which it could not have been thus surrendered—the Junta should be made to preserve their own good faith, as well as mine, to the squadron, which, relying on my promises, had been influenced temporarily to devote to the exigencies of the State that which by imperial decree, as well as according to the laws of all nations, was their undoubted right.

My orders to the Junta of Fazenda not to pay any claims—with the exception of the ordinary expenses of Government—till those of the squadron had been satisfied, were, however, almost superogatory; for, on a visit of inspection to the arsenal on the 2nd of February, it appeared that they had established a system of not paying any debts, even those incurred for the provisions of the squadron, the contract prices being set down at *treble the market price!* This overcharge was accounted for by the merchants on the ground of dilatory payments, which could only be obtained at all from the Junta by fees to those whose duty it was to pass the accounts! To counteract this, I requested the interim President to forbid any further purchases on the part of the provincial Government, as, in future, I would make them myself, and, what was more to the purpose, pay for them.

By limiting the demand of repayment to one-fourth only of the amount captured from the Portuguese Government, I was not pressing at all severely upon the resources of the province, which is one of the richest in

Brazil; nor should I have put them to any inconvenience had I demanded repayment of the whole, *as I justly might have done*.

On the 8th of February, the Junta of Fazenda sent me a verbal communication to the effect that they would give the sum agreed upon in commutation of prize money due to the captors—*in five bills, payable in five months*. As I knew that, in case of my departure, these would not be worth the paper upon which they were written, I refused the offer, adding that, after the course pursued by the prize tribunal at Rio de Janeiro the seamen had no faith in promises.

Finding that the Junta shewed every disposition to evade the demand, I requested a personal interview with that body, intimating that I expected all the members to be present. At this interview, I told the Junta that all the documents necessary in support of the claim had been laid before them, these being too precise to admit of dispute—that they had no right in law, justice, or precedent, to withhold the portion of the prize property left at Maranham, by the request of the provisional government, no funds of their own being then available to meet the exigencies which had arisen—and therefore they were in honour bound to restore it.

I was induced to adopt this step, not only on account of the evasive conduct experienced at the hands of the administration at Rio de Janeiro, but because I knew that negotiations were actually pending for the restitution of all the Portuguese property captured, as a basis of the projected peace between Portugal and Brazil; in other words, that the squadron—whose exertions had added to the Empire a territory larger than the whole empire as it existed previous to the complete expulsion of the Portuguese—was to be altogether sacrificed to a settlement which its own termination of the war had brought about. So barefaced a proceeding towards those whose services had been engaged on the express stipulation

of a right to all captures is, perhaps, unparalleled in the history of nations; and, as both officers and men looked to me for protection, I determined to persevere in demanding from the Government of Maranham—at least a compromise of the sums which the captors had, in 1823, lent to its pressing exigencies.

No small amount of obloquy has been attached to me with regard to this act of justice, the only one the squadron was ever likely to obtain; but the transaction involved my own good faith with both officers and men, who had lent the money solely on my assurance that the Government at Rio de Janeiro could not do otherwise than refund the amount—so important was it at the time, that the pressing difficulties of the province should be promptly met. A man must have a singularly constituted mind, who, in my position, would have acted otherwise. To this subject it will be necessary to recur.

On the 7th of February, I was surprised by an intimation from Pedro José da Costa Barros, of his intention to assume the presidency of Maranham, founding his pretensions upon a letter addressed to Bruce, whom I had suspended. At first—believing that he possessed the requisite authority—I invited him to take possession of the office, but finding that he had no patent to shew for the appointment, I considered it my duty to His Majesty not to admit such pretensions till their validity was established, and therefore told Barros that he must await the official communications from Rio de Janeiro, before I could acknowledge him as president—for that tranquillity being now restored, I would not have the minds of the people again unsettled on the mere presumption of his appointment.

In this arrangement Barros appeared to acquiesce, but being a well-known partisan of the Portuguese faction, he was soon surrounded by the adherents of that party in Maranham. On the 10th of March, a series of allegations was forwarded to me by the party of Barros against the interim

President, but as they were of the most insignificant nature, and unsupported by proof, I refused to pay attention to them. They were shortly afterwards followed by a letter from Barros to the same purport, but without any specific accusation against Lobo, whom he nevertheless represented as about to fly from Maranham in order to evade the punishment due to his crimes! Upon this I addressed to him the following letter demanding specific charges against the interim President:—

Maranham, 10th March, 1825.

SIR,

I have received your Excellency's letter, in which the interim President, Manuel Pellas da Silva Lobo, is charged with an intention of departing from Maranham in a sudden and clandestine manner, and in which your Excellency calls on me to adopt measures for the prevention of his flight. I must, however, represent to your Excellency that, since I have been in this province, so many reports have been made to me with the greatest confidence, impeaching the character and motives of individuals—all of which have proved unfounded—that I feel it impossible to act with any propriety on your Excellency's intimation—without being furnished with proof of the truth of the allegation.

Your Excellency, I am persuaded, is too honourable to propagate so serious a charge without believing it to be well founded, and I cannot doubt that you will have the candour to admit that I am entitled to be made acquainted with the grounds on which your Excellency's belief rests, before proceeding to any measure of severity against the party accused.

I have further to request that your Excellency will be pleased to say *for what crime, or crimes*, the President interino is supposed to be about to abandon—not only this province—but to flee from his native country?

(Signed) COCHRANE AND MARANHAÕ.

To PEDRO JOSÉ DE COSTA BARROS.

The charges against Lobo, I well knew to have been fabricated for the purpose of getting me to place him in arrest, and instal Barros in the presidency. This plot failing, I learned, on the following day, that arrangements had been made for the forcible seizure of the interim President's person without any specific cause for dissatisfaction with his government, which was in all respects just and excellent. Finding the spirit of intrigue thus again manifested for the neutralisation of all my efforts to restore order and prosperity to the province—to the discomfiture of the intriguants—I again, on the 11th of March, declared martial law. Such was the terror inspired by this act in the minds of those who had fomented renewed disorder, that, anticipating summary retribution from me, they prepared for the flight of which they had accused an innocent man. On learning this, I despatched a vessel with a competent officer to cruise at the mouth of the port, under orders neither to let ships nor passengers leave without passports counter-signed by myself.

Having received a letter from José Feliz de Azevedo e Sa, the President of Cearà, warning me of the intentions of Barros, who had come from that province, I was confirmed in my determination that the good which had been effected at Maranham should not be neutralised by one who had no authority to shew for his interference. Accordingly, I wrote to Barros the following order to quit the province forthwith, until His Majesty's intentions with regard to him should be made known:—

March 11th,1825.

SIR,

Your Excellency having acquainted me that the President interino intended to fly from justice, at the same time calling upon me to take precautionary measures to prevent his escape, without setting forth any crime of which he had been guilty; and further, with regard to my letter requesting that you would make known the nature of the delinquency which impelled the said President interino to fly from the province, you have not considered it necessary to give the slightest explanation.

Now, as I have ample reason to believe the whole allegation to be a fabrication—as I know that your Excellency—instead of waiting, as is your duty, for communications from His Imperial Majesty —has, by your countenance, suffered to be stirred up a spirit of dissension and party, and as I understand the laws which I have been compelled to call into operation to prevent greater evils.

I have to acquaint your Excellency that I have provided a convenient conveyance for your Excellency and suite, in order that you may reside in the neighbouring province of Parà, until the arrival of orders from His Imperial Majesty; and that my barge will be at the service of your Excellency and suite at any hour to-morrow, between sunrise and sunset, in order to proceed to the anchorage of the *Pedro 1'ro*, where you will find the *Cacique* ready for your reception.

(Signed) COCHRANE AND MARANHAÕ.

To PEDRO JOSÉ DE COSTA BARROS.

Barros strongly remonstrated against this proceeding; but knowing that the machinations of his party had been the direct cause of renewed disorders, I resolved not to give way; telling him that he had only himself to blame, by not having abstained from meddling with public affairs till the arrival of competent authority from His Imperial Majesty. Accordingly, I insisted on his immediately embarking on board the *Cacique*, in charge of Captain Manson, for conveyance to Parà, to the President of which province I addressed the following letter:—

Maranham, 13th March,1825.

MOST EXCELLENT SIR,

Since I had the honour of writing to your Excellency, Pedro José de Costa Barros, who arrived from Cearà with the intention to take upon himself the office of President here—has unfortunately been the occasion of stirring up old animosities, which I had hoped experience might have taught him the advantage of leaving dormant. Had Barros been provided with proper authority under the sign manual of His Imperial Majesty, the difficulties that have occurred since his arrival might have been prevented; though I am extremely apprehensive that if ever he shall be invested with such authority, still greater evils will befal the province. The Portuguese party are in favour of Barros, and have expressed their sentiments unequivocally, and this your Excellency knows is sufficient to raise up the native Brazilians against him.

The Portuguese and some others had combined to place Barros in the Presidency by force, which intention I happily frustrated by arriving in Maranham with a considerable reinforcement from the *Pedro Primiero*, at midnight—when the attempt was to have occurred. To put a stop to proceedings so injurious to the interests of

His Imperial Majesty and the public, I have felt it necessary to remove Barros from Maranham until his commission shall arrive, or until His Majesty's pleasure respecting the appointment of Manoel Telles da Silva Lobo, shall be known. Barros therefore proceeds in the *Cacique* (which is the bearer of this) to Parà—where having no pretensions, he will have no partisans, and will be inoffensive.

I have not time, nor would it be of any utility to occupy your Excellency with a minute detail of the affairs of this province, whilst your Excellency has so much to do in that under your immediate superintendence: I am convinced that in all I have done, I have acted in conformity with the true interests of His Majesty and his people, and am in no degree under any apprehension that the malevolent aspersions of self-interested or disappointed individuals will have the least influence on any candid mind, when a real statement of facts shall be laid before the public.

I shall be gratified if your Excellency attains the satisfaction of preserving the province of Parà free from those party dissensions, the danger and inconvenience of which are best known to those who are obliged to be on the watch to counteract them.

(Signed) COCHRANE AND MARANHAÕ.

To José Feliz de Azevedo e Sa, the President of Cearà, I addressed the subjoined letter of thanks for the warning he had given me respecting Barros:—

Maranham, March 16th, 1825.

MOST EXCELLENT SIR,

I have to offer your Excellency many thanks for your kind letter, informing me, by anticipation, of the character of an individual whose principles and plans I was not long in discovering. Scarcely had he placed his foot on the soil of Maranham, when he was surrounded by all the Portuguese of the city, who expressed their joy at his arrival in no equivocal manner. To give you a history of his intrigues would require pages. Suffice it to say, that—after having attempted to thrust himself into the Government within forty-eight hours after his arrival, —without having any lawful commission from His Imperial Majesty —and being defeated in that object—he placed himself at the head of a faction, brought charges against the President interino, and on the night of the 10th formed a plan to seize his person! This, however, I defeated, and as his charges against Lobo were entirely false and malicious, I have sent him off to Parà, there to await the determination of His Imperial Majesty.

The intrigues here are so numerous, and there are so many interests to reconcile, that the harmony now restored will probably cease with the departure of the force under my command. But it is obvious that the squadron cannot remain here for ever to watch over private broils and feuds of so contemptible a nature. The only thing of which I am seriously afraid, is the influence and number of the Portuguese settled here, should they find a president desirous of promoting their views and supposed interests.

(Signed) COCHRANE AND MARANHAÕ.

There was great difficulty to act for the best in this matter: but whether Barros were appointed to the presidency or not, the course taken was the only one even temporarily to ensure public tranquillity. If appointed, it was evident, from his acts, that he had been selected by the administration to put

in execution their anti-Brazilian projects; whilst the Portuguese party in Maranham unequivocally expressed their intention to revive the old animosities between themselves and the native Brazilians; thus causing a renewal of disorder which I was determined not to permit, in favour of one who had no patent to shew for his assumption of authority.

This monstrous state of affairs—fostered by the Imperial administration—was a natural consequence of their Portuguese predilections, and could not have existed, except from want of union amongst the Brazilians themselves, who, unskilled in political organization, were compelled to submit to a foreign faction, unable to carry out its own views, and only powerful in thwarting those of the patriots. Their policy was the more reprehensible, for even the government of the mother country conceded that Brazil was too extensive and powerful to be again reduced to a state of colonial dependence, and therefore confined its aims to the Northern provinces, the Portuguese party in the administration seconding the intentions of the parent state; both, however, shutting their eyes to the fact, that, if these were separated from Brazil, they would become disorganized in a vain attempt to imitate the constitution of the United States—by whose more enlightened citizens they were greatly influenced—and, as a consequence, would be lost both to the parent state and the Empire. As it was, all I had effected for their annexation and tranquillization was regarded with perfect hatred by the Portuguese residents in the provinces as well as by the administration, who did everything in their power to thwart my measures for the union and consolidation of the Empire.

During the whole of this period, I repeat that I had received no communication from Rio de Janeiro, with the exception of the letter before mentioned, with the rubrick of His Imperial Majesty, thanking me for the course I had pursued. Though no instructions were sent for my guidance, nor any fault found with my acts, yet, from private sources, I was advised

that my success in restoring order to the Northern provinces had greatly embittered the administration against me, as having destroyed the hopes of Portugal—expressed through Palmella—of profiting by disorder. I was also left to provide for the pay and maintenance of the squadron, one vessel only with supplies having been forwarded since our departure from Rio de Janeiro, in the preceding August!

Notwithstanding this marked neglect, I took care to keep the administration well advised of all my proceedings, and the causes thereof, the following being extracts from my letters to the Minister of Marine, respecting the events just narrated:—

No. 290.

Maranham, March 16th, 1825.

> I beg to acquaint your Excellency, for the satisfaction of the Imperial government, that I have caused the provinces which required military assistance, to furnish pay and provisions for the ships immediately under my command; and further, that I have required the government of Maranham to pay, as a recompence to the officers and seamen, *one-fourth part* of the amount of money and bills, and *one-fifth part* of the value of the military stores surrendered by the Portuguese authorities on the 28th of July, 1823. Thus the Imperial government at Rio de Janeiro will be relieved from considerable disbursement, and the officers and seamen—notwithstanding the great additional trouble to which they have been put—will be satisfied, so far as regards their claim to the value of their captures in compensation for their services at Maranham.
>
> I cannot refrain from drawing the attention of the Imperial government to the abuses which exist in every department of the

provincial government, where, notwithstanding the great revenue derived from various sources, the Junta of Fazenda possess so little credit, that their bills have actually been sold at 30 per cent. discount, and I am credibly informed that no money can, at any time, be received from the treasury without a heavy per centage being given to the inferior officers; but how such per centages are afterwards disposed of, is to me unknown.

The price at which provisions were being purchased by the Intendente for the use of the squadron being exorbitant, I instituted a minute inquiry, the result of which was the discovery of a fraudulent system which I abolished by purchasing our own provisions. American salt beef, for which the Provincial Government charged 25 milreis the barrel, I have purchased for 12 milreis—pork charged 32 milreis, I buy for 15-1/2 milreis. Bread is charged 10 milreis the quintal, whilst the English sloop-of-war *Jaseur* is purchasing it at 5 milreis, for bills on England. Indeed, the abuses here of all kinds are too numerous to be detailed by letter, and to endeavour to put a stop to them, unless under the express authority and protection of the Imperial Government, would be a thankless task.

* * * * *

No. 291.

Maranham, March 17th, 1825.

The difficulties with which I have had to contend in this province have been greatly increased by the arrival of Pedro José de Costa Barros on the 5th of last month—when intrigue within intrigue was set on foot by different parties, and which—if Barros were placed in power—I clearly foresaw would end in anarchy and bloodshed—and

probably in the destruction of all the Portuguese part of the community, whose unequivocal reception of a partisan President excited at once the jealousy and distrust of the Brazilians.

Under these circumstances, I felt that the only course to be adopted, for the prevention of serious evils, was to defer the introduction of Barros into authority, and to leave Lobo as President interino, until further directions from the Imperial Government. This additional degree of responsibility I took upon myself with the less reluctance, as Barros had no other authority to assume the Government than a letter to Bruce, whom I had previously been compelled to suspend from office and send to Rio—to whom, therefore, such letter could not be delivered. Besides which, having appointed Lobo to be President interino, until His Majesty's pleasure should be known, I could not consistently consent to his removal from office until His Majesty was acquainted with his appointment, and had expressed his pleasure thereon.

* * * * *

No. 292.

Maranham, March 18th, 1825.

As I observe by the Lisbon newspapers that most of the vessels acquitted by the Court of Admiralty have arrived at Lisbon, I beg to call your Excellency's attention to the fact that I have received no reply to my letter addressed to your Excellency on the 1st of August last, requesting to know whether, in addition to the loss of the property, *which ought to have been condemned*, I was personally liable to the enormous costs and damages decreed against me by that tribunal.

* * * * *

No. 293.

Maranham, March 18, 1825.

In my letter, No. 291, I acquainted your Excellency of the course pursued with regard to Pedro José de Costa Barros, who, under the mistaken counsels of a faction here, would have again involved this province in scenes of bloodshed and confusion. It is neither my duty nor inclination to become a tool in the hands of any faction, whose views are contrary to the true interests of His Imperial Majesty, and, were they countenanced and protected, would infallibly involve all Brazil in civil war and anarchy.

I contented myself, however, with continuing the usual precautions, which were sufficient to prevent disasters till His Majesty's pleasure, with regard to recent occurrences in this province, should become known, of which I have been in daily expectation for some time past; but Barros—after agreeing to await the expected instructions—considered that he had gained over a sufficient party to overthrow the government by violent means, and addressed to me the letter A, which was considered by him a sufficient pretext to warrant the imprisonment of the President interino, during my temporary absence on board the flagship, whence, it was supposed, I should not be able to arrive in time to prevent the execution of that violent measure; and I regret to add, that, in this plot—so prejudicial to His Majesty's interests, and so disgraceful to the parties concerned—persons whose duty it was to have at once combatted such unjustifiable proceedings took an underhand but active part. The letters of Barros, A and B, will sufficiently shew the violence of his prejudices, his credulity, and precipitancy in acting upon false information and reports, as well as

his total ignorance of law and justice, in requiring the seizure of an individual without specifying either crime or accuser.

I enclose to your Excellency all the correspondence which has taken place between Barros and myself, together with the proclamation which I felt it my duty to issue for the maintenance of order; for the legal department here now profess to consider that, although the constitution has been granted and accepted, they have no authority to put it in practice—hence, between the ancient and new laws, justice is at a stand.

(Signed) COCHRANE AND MARANHAÕ.

To these and all my previous communications no reply was returned either in the way of approval or otherwise. There was, however, one member of the administration, Luiz José Carvalho e Mello, who had ever been my friend, being himself a man of patriotic and enlightened views, but without the influence to counteract the designs of his Portuguese colleagues. As I knew from private sources, that this silence had its objects, I addressed to Carvalho e Mello the following letter:—

Maranham, March 22nd, 1825.

MOST EXCELLENT SIR,

By the arrival of my despatches transmitted by the *George* and other ships, your Excellency will have been successively informed of such public transactions and occurrences as seemed to me worthy of the attention of the Imperial Government. But notwithstanding that three months and upwards have now elapsed since the date of my first communications, I have the misfortune (for so I must call it) to be left without any precise or applicable instructions from Rio de Janeiro.

The responsibility, therefore, rests entirely on my shoulders, and I feel this the more—being aware that not only shall I meet with no support from the majority of the Ministry itself—but that the most powerful faction in Rio de Janeiro will represent every thing I have done—or may do—in the blackest colours.

I console myself, however, with the knowledge that I possess the means of exposing the falsehood of every allegation that can be brought against me. I have acted towards His Imperial Majesty and the Brazilian nation, in the same manner as I should have done for my native Sovereign and country; and I must say—that, had I freed the shores of England from a superior hostile force, and rescued half the country from the dominion of an enemy—the British Government would not have left me to seek the fruit of my labours, and those of the officers and seamen who served with me, in the manner in which I have been compelled to seek them in Brazil; and would never have subjected me to the necessity of having recourse to measures capable of being so perversely represented as to obscure for a time that credit to which I am entitled for the successful conduct of the naval war. I am, however, resolved never to be deterred, by fear of consequences, from using every endeavour within my power to obtain justice for all who have continued to perform their duty in the Imperial service. And I have the less hesitation in persevering in this resolution—because it cannot be denied that I have strictly limited the claims of the naval service to such rewards as would have been admitted to be due, under similar circumstances, in the navy of England.

I have used the freedom to say thus much to your Excellency as my friend—because I am well aware that the old cry of the Portuguese faction in Rio will be set up against me the moment they hear that I have caused the Junta of Fazenda of this province to pay a part of the

amount of the money and bills taken on the surrender of the Portuguese authorities at Maranham. This, of course, though only one-fourth of the amount due, *will be represented as an outrageous robbery*; but I again say, that it is not from the Portuguese faction at Rio, that I expect either credit or justice. Their object is sufficiently evident, namely—*the expulsion of every foreign officer from the service, by means of privation and insult, in order that they may fill the ships with their Portuguese countrymen and dependents*; a result which I should lament to witness, because fraught with mischief to His Imperial Majesty and Brazil.

I feel myself much shaken in health by the great heat of the climate, and the anxiety occasioned by the peculiar circumstances in which I have been placed; all of which I might have saved myself under the plea of want of instructions, but for my desire to promote the real interests of His Imperial Majesty, by once more accomplishing that which His Majesty, in his instructions to me of the 31st of July last, was graciously pleased to describe as "*of no less importance than the integrity and independence of the Empire*."

I am, with great respect,

Your Excellency's devoted friend,

and obedient servant,

COCHRANE AND MARANHAÕ.

On the 16th of March, the Junta—finding that I would not listen to any farther evasion—paid 30 contos (£.6000) in bills, and 3 contos (£.600) in silver, as the first instalment of the 106,000 dollars (£.21,200) for which the restoration of 425,000 dollars (£.85,000) had been commuted. The

disbursement of this sum amongst the officers and men entitled to it, is fully narrated in the concluding chapter, containing a full statement of the disbursement of this and other monies charged against me, which statement is accompanied by vouchers fortunately retained in my possession, these placing the proper disbursement of the money amongst its rightful owners beyond doubt or question.

CHAPTER XII.

I QUIT MARANHAM FOR A CRUISE—BAD STATE OF THE FRIGATE—CONNIVANCE AT ILLICIT TRADE—WE ARE COMPELLED TO PROCEED TO ENGLAND—THE FRIGATE REPORTED TO THE BRAZILIAN ENVOY—WHO CHEATS ME OF £.2,000—HIS ASSUMPTION THAT I HAD ABANDONED THE SERVICE—MY CONTRADICTION THEREOF—ORDER TO RETURN TO RIO—REASONS FOR NOT DOING SO—BRAZILIAN ENVOY TAMPERS WITH MY OFFICER—WHO ACQUAINTS ME THEREWITH—ENVOY STOPS PAY AND PROVISIONS—DECLARES THAT THE BRAZILIAN GOVERNMENT WILL GIVE ME NOTHING!—CAPTAIN SHEPHERD'S REPLY—I PREPARE TO RETURN TO RIO—THE ENVOY DISMISSES ME FROM THE SERVICE—WITHOUT REASON ASSIGNED—HE DECLARES THAT I VOLUNTARILY ABANDONED THE SERVICE—RECEIPTS FOE ACCOUNTS TRANSMITTED TO BRAZIL—THESE DENIED TO HAVE BEEN SENT.

The anxiety occasioned by the constant harassing which I had undergone—unalleviated by any acknowledgment on the part of the Imperial government of the services which had a second time saved the Empire from intestine war, anarchy and revolution—began to make serious inroads on my health; whilst that of the officers and men, in consequence of the great heat and pestilential exhalations of the climate, and of the double duty which they had to perform, afloat and ashore, was even less satisfactory. As I saw no advantage in longer contending with factious intrigues at Maranham—unsupported and neglected as I was by the administration at Rio de Janeiro, and as I knew that my immediate return to the Capital would instantly be followed by resident contention, I resolved upon a short run into a more bracing Northerly atmosphere, which would answer the

double purpose of restoring our health, and of giving us a clear offing for our subsequent voyage to Rio de Janeiro.

Accordingly—after paying both to officers and crews their share of the prize money refunded by the Junta of Maranham (see concluding Chapter), I shifted my flag into the *Piranga*, despatched the *Pedro Primiero* to Rio, and leaving Captain Manson, of the *Cacique*, in charge of the naval department at Maranham, put to sea on the 18th of May.

On the 21st we crossed the Equator, and meeting with a succession of Easterly winds, were carried to the Northward of the Azores, passing St. Michael's on the 11th of June. It had been my intention to sail into the latitude of the Azores, and then to return to Rio de Janeiro; but strong gales coming on we made the unpleasant discovery that the frigate's maintopmast was sprung, and when putting her about, the main and maintopsail yards were discovered to be unserviceable. A still worse disaster was, that the salt provisions shipped at Maranham were reported bad; mercantile ingenuity having resorted to the device of placing good meat at the top and bottom of the barrels; whilst the middle, being composed of unsound provisions, had tainted the whole, thereby rendering it not only uneatable, but positively dangerous to health.

For the condition of the ship's spars I had depended on others, not deeming it necessary to take upon myself such investigation; it is however possible that we might have patched these up, so as to reach Rio de Janeiro, had not the running rigging been as rotten as the masts, and we had no spare cordage on board. The state of the provisions, however, rendered a direct return to Rio de Janeiro out of the question, the good provisions on board being little more than sufficient for a week's subsistence of the crew.

On ascertaining these facts, I convened the officers for the purpose of holding a survey on the state of the ship and provisions, they all agreeing

with me as to the impracticability of attempting a six weeks' voyage with defective masts and rigging, and only a week's provisions on board, at the same time signing a survey to that effect, which document is now in my possession. It was therefore determined to put into some port for the purpose of refitting; but here another difficulty presented itself. Portugal was still an enemy's country. Had we made a Spanish port, the prominent part I had taken in depriving Spain of her colonies in the Pacific would have ensured me a questionable reception. A French port too was unsuitable, as France had not acknowledged the independence of Brazil.

To enter an English harbour was attended with some risk of annoyance to myself, in consequence of the enactments of the "Foreign Enlistment Bill," the provisions of which had been specially aimed at my having taken service in South America though before that Bill was passed, so that I did not consider myself to come within the meaning of the Act. Still the point was debateable, and were it raised, might subject me to considerable personal inconvenience, the more so as being in command of a foreign ship of war belonging to an unacknowledged state. The necessity was, however, urgent, and taking all circumstances into consideration, I resolved, notwithstanding the Foreign Enlistment Bill, to stretch on to Portsmouth, and there procure provisions, anchors, cables, and stores, indispensable for the use of a ship of war; the frigate being so destitute of all these, that, had I been fully aware of her condition before quitting Maranham, I should have hesitated to put to sea.

In passing the Azores, we overtook the brig *Aurora*, which left Maranham ten days before the *Piranga*, cleared out for Gibraltar under Brazilian colours. She was now steering direct for Lisbon under a Portuguese ensign, in company with a Portuguese schooner; this circumstance clearly shewing the kind of intercourse carried on between Brazil and the mother country by connivance of the authorities. Though

both vessels were within my grasp I did not molest them, in consequence of having received private information of a decree passed by the supreme military council at Rio de Janeiro on the 26th of October, from the tenor of which decree, had I made further captures from the enemy, I should have incurred additional penalties, as acting contrary to the obvious intentions of a majority of the council, though their views had not been officially communicated to me.

I had, however, stronger reasons for not molesting these vessels. Knowing that both were bound for Lisbon, I felt certain that they would carry the news of our approaching the shores of Portugal with a view to mischief—and that a knowledge of the proximity of a Brazilian ship of war, with the further consideration of the injury she might do to the trade of that nation in case of rupture of the pending negociations, could not fail to inspire a desire for peace on the minds of the mercantile portion of the population, who had hitherto been chiefly instrumental in delaying the paternal intentions of His Portuguese Majesty with regard to the independence of Brazil as now firmly established under the government of his descendant and heir apparent. The effect anticipated was, in reality, produced by their report, so that we contributed in no small degree to hasten the peace which was shortly afterwards established.

Another motive for not molesting these vessels was, that being compelled, for the reasons before stated, to resort to an English port, at a time when I knew the British Government to be carrying on negociations for peace between Portugal and Brazil, I felt it better to abstain from hostilities against Portuguese vessels or property—considering that a contrary course might impede the reconciliation which was desirable both for the interests of His Imperial Majesty and his royal father; a result scarcely less advantageous to England on account of her rapidly extending commerce in Brazil.

We sighted the English coast on the 25th of June, and on the following day came to anchor at Spithead, our available provisions being entirely expended. My first step was to inquire of the authorities at Portsmouth, whether, in case of the *Piranha's* saluting, the compliment would be returned with the same number of guns? The inquiry being answered in the affirmative, the salute was fired, and replied to; thus, for the first time, was the flag of His Imperial Majesty saluted by an European state, and the independence of Brazil virtually acknowledged.

My next step was to report the arrival of the *Piranga* at Portsmouth, to the Chevalier Manoel Rodriguez Gameiro Pessoa, the Brazilian Envoy in London; at the same time informing his Excellency of the circumstances which had unavoidably led to our appearance in British waters, and requesting him to forward the means of paying the men's wages. This requisition was complied with, to the extent of two months' pay to the men.

As it was contrary to the law or usage of England to assist in the equipment of ships of war belonging to foreign belligerent states, the articles required for the re-equipment of the frigate could not be furnished from the Royal arsenal—the duty of providing these, therefore, devolved upon the Brazilian Envoy, who soon afterwards represented that he was without means for the purpose, thus impeding the equipment of the frigate. The men being also without fresh provisions or the means to procure them, were beginning to desert, I advanced £.2000, in order to keep them together, giving the Chevalier Gameiro an order for this amount on my bankers, Messrs. Coutts, and taking his receipt for the amount, for which I drew a bill upon the Imperial Government at Rio de Janeiro, which was *protested, and has not been paid to this day!*

On the 4th of August, I was surprised at receiving from the Envoy a letter charging *me personally* with the amount he had advanced to the *Piranga*,

and also with £.295, an alleged error of account in payments made at Maranham; his Excellency concluding with the extraordinary declaration, that—"having received from my bankers, Messrs. Coutts and Co. the sum of £.2000 he had placed against it the amount advanced, the transaction leaving me indebted to the Legation in the sum of £.25!" Though the Legation could not have anything to do with the assumed error arising from transactions at Maranham.

On the 21st of August, I received a letter from the Brazilian Envoy to the effect that he had perceived in the newspapers a report that I had accepted from the Government of Greece the command of its navy—and wished to know if there was any truth in the assertion. To this inquiry I replied that so long as I continued in the Brazilian service I could not accept any other command; that the Greek command had been offered to me whilst in Brazil, in the same manner as the Brazilian command had been offered to me whilst in the service of Chili; and that, soon after my return to Portsmouth, the Greek committee, zealous in the cause which they had adopted, had renewed their offers, under the impression that my work in Brazil was now completed. At the same time, I assured the Envoy that as, in the case of Chili, I did not accept the Brazilian command till my work was done, neither should I accept a Greek commission till my relations with Brazil were honourably concluded, but that nevertheless the offer made to me on behalf of Greece was not rejected.

This reply was construed by the Chevalier Gameiro into an admission that *I had* accepted the Greek command, and he addressed to me another letter, expressive of his regret that I should have "come to the resolution to retire from the service of His Imperial Majesty the Emperor of Brazil, in the great work of whose independence I had taken so glorious a part, (a grande obra da independencia, V. E'a teve tao gloriosa parte) regretting the more especially that his august Sovereign should be deprived of my important

services (prestantes servicios) just at a moment when new difficulties required their prompt application," &c. &c.

These expressions were probably sincere, for, since my departure from Maranham, serious difficulties had arisen in the river Plate, which afterwards ended with little credit to the Brazilian cause. But *I had not accepted the Greek command*, and had no intention of so doing otherwise than consistently with my engagements with Brazil. On the 6th of September, I therefore addressed to the Envoy the following letter:—

Edinburgh, 6th Sept. 1825.

MOST EXCELLENT SIR,

I regret that your translator should have so far mistaken the words and meaning of my last letter as to lead your Excellency to a conclusion that I had taken the resolution to leave the service of H.I.M. the Emperor of Brazil, or, in other words, that it was I who had violated the engagements entered into with the late ministers of His Imperial Majesty in 1823. Whereas, on the contrary, the *portaria* published in the Rio Gazette on the 28th of February, 1824, was promulgated without my knowledge or sanction, and the limitation of my authority to *the existing war* was persevered in by the present ministers, notwithstanding my remonstrance in writing, both to the Minister of Marine and the Minister of the Interior.

Your Excellency ought not therefore to be surprised, if—threatened as I am with this *portaria*—I should provide beforehand against a contingency which might *hereafter* arise from an occasion happily so nigh, as seems to be the restoration of peace and amity between His Imperial Majesty and his royal father.

With regard to any communications of a pressing nature relative to the equipment of the *Piranga*, your Excellency may consider Captain Shepherd authorised to act, in my absence, in all ordinary cases. And that officer, having instructions to acquaint me whenever the *Piranga* shall have two-thirds of her complement of men on board—I can at any time be in London within two days of the receipt of such communication, and most assuredly before the complement can be procured.

I have the honour, &c.

COCHRANE AND MARANHAÕ.

To Chevalier MANOEL RODRIGUEZ GAMBIRO PESSOA.

Notwithstanding that my engagements with Brazil rested on the original patents conferred upon me by His Majesty, of which the validity had been further established by the additional documents given before my departure for Pernambuco—the latter completely setting aside the spurious *portaria* of Barbosa, limiting my services to the duration of the war—I nevertheless felt confident that, when my services were no longer required, no scruples as to honourable engagements would prevent the ministry from acting on the spurious documents, though promulgated without my knowledge or consent, against every principle of the conditions upon which I entered the Brazilian service. No blame could therefore attach to me, for not rejecting the offer of the Greek command, in case a trick of this kind should be played, as I had every reason to believe it would be—and as it afterwards in reality was.

On the 27th of September, the Brazilian Envoy forwarded to me an order from the Imperial Government at Rio, dated June 27th, and addressed to me at Maranham; the order directing me to proceed from that port to Rio

immediately on its receipt, to give an account of my proceedings there—though despatches relating even to minute particulars of every transaction had, as the reader is well aware, been sent by every opportunity. His Majesty, when issuing the order, was ignorant that I had quitted Maranham, still more that on the day the order was issued at Rio de Janeiro, I had anchored at Spithead, so that obedience to His Majesty's commands was impossible.

Acting on this order, the Chevalier Gameiro took upon himself to "require, in the name of the Emperor, the immediate return of the *Piranga*, so soon as her repairs were completed, and her complement of men filled up." As I knew that the order in question would not have been promulgated by the Emperor, had he known the effect produced by the presence of the *Piranga* in the vicinity of Portugal; and as, in everything I had accomplished in Brazil, His Majesty had placed the fullest confidence in my discretion, I felt certain that he would be equally well satisfied with whatever course I might deem it necessary to pursue, I did not therefore think it expedient to comply with the requisition of the Envoy, assigning the following reasons for using my own judgment in the matter:—

Edinburgh, Oct. 1, 1825.

MOST EXCELLENT SIR,

I have this day been favoured with your letter containing a copy of a *portaria* dated June 27th, wherein His Imperial Majesty, through his Minister of Marine, directs my immediate return from Maranham to Rio de Janeiro, leaving only the small vessels there; which order you will observe I had anticipated on the 20th of May, when I left the Imperial brig-of-war *Cacique* and the schooner *Maria* in that port. Since then, His Excellency the Minister of Marine is in possession of duplicates of my correspondence mentioning the arrangements I had

so made in anticipation of the Imperial order; and of my official communications—also in duplicate—transmitted on my arrival at Portsmouth, by your Excellency's favour, with your despatches.

These will have acquainted His Imperial Majesty with the cause and necessity of our arrival at Spithead—as well as with my intention there to wait a reasonable time before the departure of the *Piranga*, in order to learn the result of the negociations with Portugal.

I have only to add that, by some inadvertence, your Excellency's secretary has sent me the copy instead of the original order addressed to me by order of His Imperial Majesty, which mistake may be remedied on my return to town.

I am gratified to learn that there is less difficulty in procuring men than I had anticipated under the regulations respecting foreign seamen.

I have the honour, &c.

COCHRANE AND MARANHAÕ.

The Chevalier GAMEIRO.

Shortly previous to this, the Chevalier Gameiro addressed a letter to Lieutenant Shepherd, under the title of "Commander of the *Piranga*!" unjustifiably informing him officially that *"I had retired from the service of His Majesty the Emperor of Brazil!"* notwithstanding my letters to him in contradiction. Indeed, the letter just quoted is sufficient to shew that not only had I not relinquished the service, but that I refused to obey Gameiro's order to proceed to Rio, because I knew that if the frigate returned to Brazil, the impression her presence had produced on Portugal would be altogether

neutralized, and the negociations for peace might be indefinitely prolonged; so that his order to run away from the good which had been effected, was so truly absurd, that I did not choose to comply with it. Had the negociations for peace been broken off, I had formed plans of attacking Portugal in her own waters, though with but a single frigate; and I had no reasonable doubt of producing an impression there of no less forcible a character than, with a single ship, I had, two years before, produced on the Portuguese fleet in Brazil. The order was, therefore, one commanding me to run away from my own plans, of which the Envoy however knew nothing, as I did not feel justified in entrusting him with my intentions.

On receiving the above-mentioned intimation to proceed to Rio de Janeiro—without my intervention, Lieutenant Shepherd very properly forwarded the Envoy's letter to me—when, of course, I apprised him that he was under my command, and not under that of the Chevalier Gameiro. At the same time I wrote to the latter, that "it would be the subject of regret if anything should cause the spurious decree of the 28th of February, 1824, to be brought into operation, but that, *at present, being in full possession of my office and authority*, my opinion was in no way changed, that the *Piranga* should be first fully equipped, and then wait for a reasonable time for the decision of those important matters in discussion."

Finding that Lieutenant Shepherd would not fly in the face of my authority, the Envoy finally resorted to the extraordinary measure of stopping the seamen's wages and provisions. On the 6th of October, Lieutenant Shepherd wrote to me, that "in consequence of their wages not being paid they had all left off work, and though Clarence did all he could to pacify them, and get them to return to their duty, they had determined not to go to work until they were paid." On the 8th, Lieutenant Shepherd again wrote, "that Gameiro having ceased to supply the frigate with fresh provisions, he had, on his own responsibility, ordered the butcher to

continue supplying them as usual." On Lieutenant Shepherd waiting upon the Envoy to remonstrate against this system of starvation, he replied—and his words are extracted from Lieutenant Shepherd's letter to me, that as "His Lordship did not think proper to sail at the time he wished, he would not be responsible for supplying the frigate with anything more—nor would he advance another shilling." In all this, Gameiro—acting, no doubt, on instructions from the Portuguese faction at Rio—resorted to every kind of falsehood to get the officers to renounce my authority and to accept his! Of the character of the man and his petty expedients, the following extract from Lieutenant Shepherd's letter of the 8th of October, will form the best exponent:—

> I have had another visit from General Brown, when he began a conversation by mentioning the evils which would arise from the feeling between your Lordship and Gameiro, who was at a loss how to act, as he had no authority over you—Gen. Brown suggesting how much better it would be for me to place myself under Gameiro's orders. Finding that I refused—on the following morning he called again, and told me that he had seen Gameiro, and had heard that the misunderstanding between your Lordship and him was at an end, but that Gameiro wanted to see me. On this I waited on Gameiro, who after some conversation told me that if I had any regard for His Imperial Majesty's service, I should never have acted as I had done. I told him that all I had done had been for the good of the service, and that I was ready to put to sea as soon as I received your Lordship's orders. He then asked me if I was the effective Captain of the ship? and whether I was not under the orders of Captain Crosbie? I told him that I was not acting under the orders of Captain Crosbie, but that I was Captain of the ship by virtue of a commission from the Emperor, and by an order from Lord Cochrane. He then said—Are you authorised to obey the orders of Captain Crosbie? and I said, I was

not. Suppose you were to receive an order from Captain Crosbie, would you obey it? I said I would not. Then you consider yourself the lawful Captain of that ship? I do.

Upon this Gameiro remarked, "You are not an officer of Lord Cochrane's, but of the Imperial Government. It is impossible for Lord Cochrane to return to the Brazils as the Admiralty Court there *has sentenced him to pay £.60,000 sterling, and his command will cease as soon as peace is made between Brazil and Portugal! Besides, Lord Cochrane's motive for detaining the* Piranga *is the expectation on his part of receiving £.6000 per annum at the termination of the war, which the Government will never give him*!"

Finding that this made no impression on me, he began to threaten, saying that "he would state to his Government that all delay was occasioned by me, and that I should have to answer for it." I told him that, in the event of my sailing without your orders, I subjected myself to be tried by a court-martial for so doing, and leaving your Lordship behind. He answered that "I must be aware that he was the legal representative of His Imperial Majesty, and that he would give me despatches of such a nature as would not only exonerate me from all blame, but would shew the great zeal I had for His Imperial Majesty's service."

I asked Gameiro—if I were to act in such a manner, what would people think of me? The answer was, "*Never mind what Lord Cochrane says, you will be in the Brazils and he in England, and I will take upon myself all the blame and the responsibility.*" He gave me till the evening to think of his proposals, and if I would not consent to them, he had other means of sending the *Piranga* to sea. He further requested me to keep this secret from your Lordship, as if

you heard of it you would come post and stop it; adding that if I would consent, he would send a sufficient number of men in a steamboat, with every kind of store and provisions required to complete us, and we were to sail immediately.

This deep laid plot of Gameiro's was not to be carried on as Portuguese plots are in general, but was to be done—using his own words—*at a blow*, before anybody could know anything about it.

With this I send a copy of my answer to Gameiro's proposals, and a letter representing the state of the ship.

I have the honour to remain
Your Lordship's obedient Servant,
JA'S. SHEPHERD.

Such were the underhand expedients of a man who was silly enough to tell the secrets of his Government, as regarded the intended injustice of the Brazilian Ministry towards me—in spite of stipulations thrice ratified by the Emperor's own hand. But in confiding them to Lieutenant Shepherd, the Envoy's want of common honesty, no less than of common sense, did not perceive that he was imparting iniquitous projects to a brave and faithful officer, who would not lose a moment till he had apprised me of the whole. I should be unjust to the memory of Captain Shepherd did I not give his written reply to the infamous proposals of Gameiro, a copy of which was enclosed to me in the preceding letter.

Copy of my answer to Gameiro's proposals, sent in Portuguese, and translated by Mr. March:—

MOST EXCELLENT SIR,

In answer to the wishes of your Excellency to place myself under your immediate orders, I have to acquaint you that I have this morning had a letter from Lord Cochrane, stating that he had received letters from your Excellency of such a nature as to require his immediate presence in town, where he intends to be on Monday next. This alone—you must be aware—will entirely preclude the possibility of putting into execution the arrangements which you wished; the celerity of the Admiral's movements being such as to preclude all hope of effecting them.

I am sorry to add, that all our men have this morning left the ship in a complete state of mutiny, occasioned by their not having received their last two months' pay, and I much fear that it will be now more difficult than ever to get her manned—as, from their having been so long kept in arrears, and leaving their ship without being paid, has irritated their feelings to such a degree, that I have no hesitation whatever in saying that they will do all in their power to prevent others from joining her.

I have the honour to remain
Your obedient humble Servant,

JAMES SHEPHERD.

To His Excellency
MANOEL RODRIGUEZ GAMEIRO PESSOA.

On the 29th of October, I received from the Brazilian Legation in London, further orders from the Imperial Government, dated August 25th, 1825, to return with the *Piranga* to Rio de Janeiro—and with these I made preparations to comply, notifying to Gameiro my readiness to sail—by the following letter:—

London, Nov. 3, 1825.

MOST EXCELLENT SIR,

Having informed your Excellency on the 1st of October, that previous to quitting Maranham I had anticipated the Imperial resolutions, and having in my letter of the 24th further made known to your Excellency that the *Piranga* should sail for Brazil on or as soon after the 10th of this month as the wind would permit, your Excellency will perceive that there is nothing remaining of the Imperial decree to be executed, unless the *Piranga* (which I much doubt) should be enabled to put to sea before the early day which I have fixed for departure.

(Signed) COCHRANE AND MARANHAÕ.

His Excellency

MANOEL RODRIGUEZ GAMEIRO PESSOA.

This declaration of my readiness to comply with His Imperial Majesty's orders did not, however, suit the Envoy, nor did it fall in with his instructions from the Brazilian Ministry, which, no doubt were, as soon as peace was proclaimed, *to get rid of me without satisfying my claims*—this course being, indeed, apparent from what the Envoy, as just shewn, had communicated to Lieutenant Shepherd. (See page 260.) On the 3rd of November, peace between Portugal and Brazil was announced, and the independence of the Empire acknowledged; Gameiro being, on the occasion, created Baron Itabayana, whilst I—to whose instrumentality the peace—as a consequence of the consolidation of the Empire had been mainly owing, *was to be ignominiously dismissed the service*!

On the 7th of November—four days only after the announcement of peace—Gameiro took upon himself the execution of the spurious ministerial decree issued by Barbosa on the 27th of February, 1824, which *had been abrogated by the Emperor, through the same minister, in the July following, as a prelude to my employment in the tranquillisation of the Northern provinces*. Gameiro did not venture previously to apprise me of the act lest I should resist it—but insultingly sent an order to the officers of the Piranga to "disengage themselves from all obedience to my command." (Se desligaõ de toda subordinacaõ a o Ex'mo S'r Marquez do Maranhaõ), thus unjustifiably terminating my services—as I was on the point of returning, in obedience to the order of the Emperor. The subjoined is the order alluded to:—

> *To* Captain SHEPHERD, *commanding the Piranga, still refusing supplies whilst I held the command.*
>
> Having received the two letters which you addressed to me on the 4th of this month, enclosing three demands for various articles for the use of the frigate, I have to reply that I persist in my resolution not to furnish anything to the frigate unless she is placed under the immediate orders of this Legation, which I shall only consider accomplished when I shall receive a reply signed by yourself, and by all the other officers, declaring that—in compliance with the orders of His Imperial Majesty, contained in the two portarias of 37th of June and 20th of August last—*you all place yourselves under the orders of this Legation, and cast off all subordination to the Marquis of Maranhaõ!*

Dated London, 7th November, 1825.

(Signed) GAMEIRO.

As this was done without the slightest motive existing or assigned, there was no doubt in my mind but that Barbosa and his colleagues in the ministry had instructed Gameiro to dismiss me from the service whenever peace was effected; indeed, he had so informed Lieutenant Shepherd by the letter before quoted. To resist a measure—though thus insultingly resorted to—in the face of the Imperial order to return, was out of the question, as the instant consequence would have been a disgraceful outbreak between the Brazilian and Portuguese seamen of the *Piranga*, in the principal war port of England, to my own scandal, no less than to that of the Imperial government. I had, therefore, no alternative to avert this outrage but by submitting to the forcible deposition from my authority as Commander-in-Chief.

This act of the Envoy—*based upon the deliberate falsehood that His Imperial Majesty had ordered the officers not to obey me, no such order existing* in either of the Portarias mentioned—precluded my obedience to the Imperial command to return to Rio de Janeiro, for being no longer acknowledged as "First Admiral of Brazil, and Commander-in-Chief of the National Armada," I could only have accompanied the *Piranga* as a passenger, or rather *quasi* prisoner; and to this, in either capacity, it was impossible, without degradation, to submit. I had no inclination to place myself at the mercy of men who had taken advantage of a spurious decree to dismiss me—now that—in spite of their opposition—the destiny of the Empire had been irrevocably decided by my having counteracted their *anti-national* views whilst carrying out the intentions of His Imperial Majesty.

As will presently be seen, it was falsely represented by Gameiro, to the Imperial Government, that I had *voluntarily abandoned the service!* though, from the letter just quoted—ordering the officers to "disengage themselves from all subordination to me," this subterfuge of my having *dismissed myself* is obviously false. I will not, therefore, trespass on the patience of

the reader by dilating upon the subject; suffice it to say that, not choosing to return to Rio de Janeiro as a passenger, I had no dignified alternative but to give up the frigate to the command of the senior officer, Captain Shepherd; confiding to him all accounts of monies distributed for the Imperial service, with the vouchers for the same—taking the precaution to send however the duplicate receipts given by the officers on account of the monies paid by the Junta of Maranham—and retaining the originals in my possession, where they now remain, and will be adduced in the statement of account forming the concluding chapter of this volume.

For these accounts—which the Brazilian ministers *deny ever to have received*—Captain Shepherd gave me, under his own signature, the following acknowledgment—now in my possession; a photograph of which, together with photographs of other important documents has long since been sent to the Brazilian Government:—

> Received from Lord Cochrane, Marquess of Maranhaõ, the key of the iron chest, in which the prize lists and receipts for the disbursement of public monies have been kept during His Excellency's command; which key and chest I engage faithfully to deliver to the accountant-general of His Imperial Majesty's navy, or to the proper authority at Rio de Janeiro, taking his receipt for the same.

On board H.I.M.'s ship *Piranga*, November 12th, 1825,

JA's SHEPHERD.

The denial by the Brazilian Administration—of the accounts and receipts thus acknowledged by Captain Shepherd, and the absence of any ministerial communication on the subject, forms an unworthy imputation on the memory of a gallant officer, who a short time afterwards nobly died in

action in the cause of Brazil. It was utterly impossible that Captain Shepherd should have done otherwise than have delivered them, for he was a man upon whose honour no reproach could be cast. There are only two ways to account for their not having been delivered, if such be the case. 1st, that Gameiro on the delivery of the frigate to the legation obtained possession of the chest in which they were deposited, and withheld them to justify my dismissal by casting the reproach upon me of having appropriated the amount—an act of which the Brazilian Government may judge whether he was capable; or, 2ndly, that from the same reason they were purposely withheld or destroyed by the ministers who had been so inimical to me. The present Brazilian Administration is happily composed of men of a different stamp, and it becomes them, for the sake of the national reputation, to institute the strictest search for the documentary evidence adduced, as no man will believe that I withheld documents which could alone justify my acts.

And here I must be permitted to remark, that the documentary evidence adduced in this volume proves the history, and not the history the documents. If any question be made as to their validity or fidelity, *I hereby call upon the Brazilian Government to appoint a Commission, or authorise their Embassy to compare the extracts with the originals in my possession, so that no manner of doubt or question shall attach to them.* My object in now producing them is, that I will not voluntarily go to my grave with obloquy, cast on me by men, who, at the outset of Brazilian independence, were a misfortune to the Empire no less than to myself; men who not only pursued this shameful line of conduct towards me who was unable to resist it,—but towards His Imperial Majesty,—who, by similar practices, was eventually disgusted into AN ABDICATION OF HIS THRONE AND AN ABANDONMENT OF THE COUNTRY—to which he had given one of the freest Constitutions in existence—achieved under the Imperial watchword, "Independencia ou morte."

CHAPTER XIII.

I AM DISMISSED THE SERVICE BY THE BRAZILIAN GOVERNMENT—WITHOUT ANY ACKNOWLEDGMENT OF MY SERVICES—INCONSISTENCY OF THIS WITH FORMER THANKS—THOUGH DISMISSED I AM TRIED AS A DESERTER—AND AM REFUSED ALL COMPENSATION—REPORT OF RECENT COMMISSION ON THE SUBJECT—FALSE REPRESENTATIONS—BUT PARTIALLY TRUE CONCLUSIONS—MY ORIGINAL PATENTS NEVER SET ASIDE—UNTRUE ASSUMPTIONS AS TO MY DISMISSAL—MY CLAIMS FOUNDED ON THE ORIGINAL PATENTS—LESS THAN HALF THE INTEREST DUE PAID—OPINIONS OF EMINENT BRAZILIANS THEREON—MY SERVICES TARDILY ACKNOWLEDGED—NO ACT OF MINE HAD ANNULLED THEM—THE ESTATE CONFERRED, NOT CONFIRMED—PROMISES ON ACCOUNT OF CHILI UNFULFILLED—THE WHOLE STILL MY RIGHT.

Having been thus unceremoniously dismissed from the Imperial service—without doubt, by order of the Brazilian Ministry to their Envoy in London, I was some months afterwards surprised by the receipt of a letter from the Imperial Government, dated December 21st, 1825, and signed "Visconde de Paranagua," informing me that His Imperial Majesty had ordered all my pay and other claims to be suspended till I should return to Rio de Janeiro to justify myself and give an account of my commission—this being now out of my power, as I had been deprived of command, and the frigate in which I came to England had returned, by order of the Envoy, to Rio de Janeiro.

Without, however, giving me time to do this, I received another letter from the same authority, dated Dec. 30, containing my formal dismission

from the service—this shewing that Gameiro had previous instructions to act in the way narrated in the last chapter.

The following is the official letter dismissing me from the command of the Navy, and from the post of First Admiral:—

> His Majesty the Emperor, informed of that which your Excellency has set forth in your letter No. 300, dated the 5th of November last, has been pleased to determine that your Excellency shall fulfil the orders already several times transmitted to you, and further in compliance with the order of the 20th inst., a copy of which I inclose, you are to return to this Court, where it is necessary you shall give an account of the Commission with which you were entrusted. His Majesty is much surprised that, after having taken the frigate *Piranga* to a foreign port, and having there remained in despite of the Baron Itabayana, you should have adopted the extraordinary resolution, not only *to abandon that frigate, but also to retire from the service of the Emperor*, without having returned to give an account of your proceedings *previous to your dismissal from the command of the naval forces, and from the post of First Admiral* of the National and Imperial Armada. All which I communicate for the information and execution of your Excellency.

God preserve your Excellency.

Palace of Rio de Janeiro, Dec. 30th, 1825.

(Signed) VISCONDE DE PARANAGUA.

To the Marquis of Maranhaõ.

From this extraordinary document it is plain that Gameiro had written to the Imperial Government the same falsehood, as he had used when endeavouring to seduce Lieut. Shepherd from his duty to me as his Commander-in-Chief; viz. that I had voluntarily retired from the service, because the Admiralty Court having condemned me in £.60,000 *damages, I durst not return to Rio de Janeiro!* though I announced to him my readiness to sail in the frigate. The Jesuitical nature of the preceding letter amply proves its object and motive. It does not dismiss me—but *it calls on me to come and be dismissed*! carefully addressing me, however, as "Marquis of Maranhaõ," and not as First Admiral, thereby intimating that I was *already dismissed*! As there can be no mistake about the meaning of the document, it is not worth while to discuss it—the reason why it is adduced being to shew that I was not only dismissed by the Envoy Gameiro, but in a little more than a month afterwards by the Imperial Government itself; which for thirty years reiterated in reply to my often pressed claims—that *I dismissed myself by abandoning the service of my own accord*!

Not a word of acknowledgment was ever given for having a second time saved the Empire from dismemberment, though this service was entirely extra-official, it being no part of my contract with the Brazilian Government to put down revolution, nor to take upon myself the responsibility and difficult labour of reducing half the Empire to the allegiance which it had perhaps not without cause repudiated—at the same time, of necessity, taking the management of the whole upon myself. This had been done at the pressing personal request of His Imperial Majesty, in face of the decree of the Court of Admiralty *that no prizes should be made within a certain distance of the shore*; so that no benefit, public or private—arising from the operations of war—could result from blockade; yet I had a right to expect even greater thanks and a more liberal amount of compensation in case of success, than from the first expedition. Not a word of acknowledgment nor a shilling of remuneration for that service has ever been awarded to this

day; though such treatment stands out in glaring inconsistency with the Imperial thanks and honours—the thanks of the Administration—and the vote of the General Assembly, for expelling on the first expedition enemies not half so formidable as were the revolutionary factions with which I had to contend in the Northern provinces.

Neither in Brazil nor in England had I done anything to forfeit my right to the fulfilment of the explicit stipulations set forth in the Imperial patents of March 26th, and November 25th, 1823. His Imperial Majesty had all along marked his approbation of my zealous exertions for the interests of the empire—designating them "*altos e extraordinarios servicios*."—and desired that I should have the most ample remuneration; having, in addition to every honour in his power to confer, granted me an estate, which grant was by the Portuguese faction strenuously and successfully opposed, and not this only, but every other recompence proposed by His Majesty as a remuneration for my services. The object being to subvert whatever had been effected by my exertions, though, but for these the inevitable consequence would have been the establishment of insignificant local governments in perpetual turmoil and revolution, in place of an entire empire in the enjoyment of uninterrupted repose. Had I connived at the views of the Anti-Imperial faction—even by avoiding the performance of extra-official services—I might, without dereliction of my duty as an officer, have amply shared in their favours; but for my adherence to the Emperor against their machinations, that influence was successfully used to deprive me even of the ordinary reward of my labours in the cause of independence.

As soon as the compulsory deprivation of my command, by the Envoy Gameiro, became known in Rio de Janeiro—where, doubtless, it was expected—a great outcry was raised against me, *as though my non-return had been my own act*. The press was set in motion, and every effort was

used to traduce me in the eyes of the Brazilian people, from whom the truth of the matter was carefully withheld; the whole, eventually, terminating with a mock trial in my absence, when it had been placed out of my power to defend myself. At this trial I was accused of contumacy—stigmatised as a deserter, though, as has just been seen, formally dismissed by the government, in confirmation of my dismissal by the Envoy in England—and not only this, but I was declared by the creatures of the administration in the National Assembly, to merit punishment as a deserter! Such was my reward for first consolidating and afterwards preserving the Empire of Brazil.

Never dreaming of the advantage which might thus be taken by the Administration of the act of their envoy—on the 10th of February, 1826, I drew a bill upon the Brazilian Government for the remainder of my pay up to the period of my dismissal by Itabayana. This was refused and protested, as was also another afterwards drawn.

This course clearly indicated the intention of the Administration not to pay me anything, now that they had dismissed me from the service. To have returned then to prosecute my claims against such judges, would have been an act of folly, if not of insanity; my only alternative being to memorialize the Emperor, which for many successive years I did without effect—the execution of the Imperial will unhappily depending on the decision of his ministers, who, little more than five years afterwards, partly forced, and partly disgusted His Majesty into an abdication in favour of his infant son, Don Pedro de Alcantara, now Emperor of Brazil; committing the guardianship of his family to José Bonifacio de Andrada, who, like myself, had been forced into exile from the hatred of the very men who had so bitterly persecuted me, but had been permitted to return to Brazil from which he never ought to have been exiled.

For more than twenty years did I unceasingly memorialize successive Brazilian governments, but without effect. At length the Administration which had so bitterly visited its hatred on me passed away, and it became evident to His present Imperial Majesty, and the Brazilian people, that I had been most shamefully treated. Nearly at the same time I had fortunately succeeded in convincing the British Government that the obloquy for so many years heaped upon me was unmerited; and Lord Clarendon warmly espoused my cause, as did the Hon. Mr. Scarlett, the British Minister at Rio de Janeiro; these excellent personages taking the trouble to investigate the matter, a boon which I had in vain solicited from any of their predecessors; though, had the favour previously been granted, it would have had the effect of explaining my conduct in Brazil as satisfactorily as, I trust, this volume has done to the reader.

The result of this was a commission, appointed by the Brazilian Government, to inquire into the case of the squadron generally. The following is an extract from their report, so far as regards myself:—

LORD COCHRANE.

The first in rank and title assuredly is Lord Cochrane, Earl of Dundonald, and Marquis of Maranhaõ, First Admiral and Commander-in-Chief of the National Armada during the War of Independence.

The fame of the services rendered by Lord Cochrane in Chili, as Commander-in-Chief of the squadron of that republic induced the Imperial Government to invite him to accept a similar command in Brazil, so long as the War of Independence should last, with the promise of the same advantages which he there enjoyed.

Accepting the invitation, he was appointed by the decree of the 21st of March, 1823, with the pay of 11.520 milreis, being the same as he had in Chili, conferring upon him, by communication of the same date, the command of the squadron which was being equipped in the port of this city; and by decree of the 23rd of February, 1824, the command-in-chief of the naval forces of the Empire during the War of Independence.

It was afterwards decreed, on the 27th of July, 1824, that he should enjoy the said pay in full, so long as he continued in the service of the Empire; and *in case of his not desiring to continue therein* after the War of Independence, one half of the said pay as a pension, which, in the event of his decease, should revert to Lady Cochrane.

Lastly, by a *portaria* of the 20th of December, 1825, it was decreed that all his muniments and rights should be suspended, and he was dismissed by a decree of the 10th April, 1827.

Justice demands that we shall acknowledge (says the Commission) that the services of Lord Cochrane in the command of the squadron, put an end to the war more speedily than had been expected; but if his services were great, it is impossible to conceal that unqualified and arbitrary acts of the most audacious daring were committed by him and by the ships under his command, occasioning to the National Treasury enormous losses, particularly by the heavy indemnification of an infinite number of bad prizes, which it was obliged to satisfy; and truth demands that we should declare that if the pretended claims are suspended, the fault was entirely his own, from having disobeyed the repeated orders of the Imperial Government, which commanded his return to this Court to give account of his commission, aggravated by the crime of having withdrawn himself from the Empire for

England with the frigate *Piranga*, and there remaining with that frigate, notwithstanding the reiterated orders of the Imperial Government, for more than two years, pretending that he had not received the said orders, which at last were ordered to be communicated to him through the Brazilian Minister resident in London.

All this is amply proved by different official documents, some of which documents are from the claimant himself, this justifying the suspension of the payment of his claims, no less than the crime of his obstinate disobedience; and, indeed more by the indispensable obligation by which he was bound to give accounts of the sums which he received on account of prizes to distribute to the squadron under his command, which distribution he himself acknowledged in his letter of the 5th of November, 1825, wherein he says, "I shall forward to the Imperial Government an account of the money received from His Imperial Majesty for distribution to the seamen, as well as other sums to the account of the captors."

Having traced this outline relative to the services and excesses of Lord Cochrane, the Commission now proceeds to discuss his claims.

First,—His annual pay is 11.520 milreis, which was owing to him from the 1st of August to the 10th of November 1825, when he left the service of the Empire. The claimant founds his demand on the decree of the 21st of March 1823, added to and confirmed on the 27th of July, 1824.

The second decree says,—"I deem fit, by the advice of my Council of State, to determine that the said Marquis of Maranhaõ shall receive, so long as he is in the service of the Empire, the pay of his patent (11.520 milreis), and in case of his not choosing to continue

> therein after the termination of the present war, the half of the said pay, as a pension, the same being extended, in case of his death, to Lady Cochrane." The said enactment being so positive that at the sight thereof, the Commission declares, that *it cannot do otherwise than confirm the right of the claimant to the prompt payment of the pension due to him.*

In this report there are many inaccuracies. It is stated that when in Chili I accepted "the Brazilian command during the war of Independence" only.—"*Viesse occupar igual commando no Brazil emquanto durasse Guerra da Independencia.*" This is contrary to fact, as will be seen in the first chapter of this volume, where both the invitation to accept the command, and my conditional acceptance thereof are given. To repeat the actual words of the invitation, *"Abandonnez-nous, Milord, à la reconnaissance Brésilienne—a la munificence du Prince—à la probité sans tache de l'actuel Gouvernement—on vous fera justice"* &c. &c. It was neither "princely munificence"—"ministerial probity"—nor "common justice," to dismiss me from the service without my professional and stipulated emoluments, or even the arrears of my pay, the very moment tranquillity had been established as a consequence of my exertions, and so far the Commission decided; though they ought to have added, as was well known, that my command in Chili had been without limitation of time, and therefore my Brazilian command, as expressed in the Imperial patents, was not accepted under other conditions. The above opinion, expressed by the Commission, could only have been given to justify the spurious decree of Barbosa, in virtue of which, though set aside by His Imperial Majesty, I was dismissed by Gameiro, that decree—under the hypocritical pretence of conferring upon me a boon—limiting my services to the war, *after the war had been terminated by my exertions;* the object being to get rid of me, and thus to avoid condemning the prizes captured by the squadron. Nevertheless, the promises held out to me in Chili, were most honourably admitted by His

Imperial Majesty and his first Ministry—and were moreover twice confirmed by Imperial patent, counter-signed by the Ministers, and registered in the National Archives. These patents *have never been set aside by any act of mine*, yet to this day their solemn stipulations remain unfulfilled.

The Commission complains that the Treasury was caused to sustain "enormous losses by the indemnification of an infinite number of bad prizes, which it was obliged to satisfy." I deny that there was *one bad prize*, all, without exception, being captured in violation of blockade, or having Portuguese registers, crews, and owners. But even if they had been bad—His Majesty's stipulation, in his own handwriting (see page 118), provided that they should be paid by the state. The fact was, as proved in these pages beyond contradiction, that they were given back by the Portuguese members of the Prize Tribunal to their own friends and relations—this alone constituting the illegality of the captures. Some—as in the case of the *Pombinho*'s cargo—were given up to persons who had not the shadow of a claim upon them. The squadron never received a shilling on their account.

Again, the Commission declares that I was dismissed the service on the 10th of April, 1827; whereas I have given the letter of Gameiro, dismissing me, on the 7th of November, 1825, and the *portaria* of the Imperial Government, dismissing me, on the 30th of December, in the same year! This renewed dismissal was only a repetition of the former unjustifiable dismissals, adding nothing to their force, and in no way alleviating their injustice.

The imputation of "the crime of obstinate disobedience" has been so fully refuted in this volume, that it is unnecessary to offer another word of explanation.

Finally, the Commission decided that the "Imperial act of July 27, 1824, *is so positive that, at the sight thereof, the Commission declares it cannot do otherwise than confirm the right of the claimant to the prompt payment of the pension due to him.*" But if the Commissioners had examined this act of His Imperial Majesty more closely, together with the explanatory letter of Barbosa, accompanying it, they would have seen that the decree of July 27th, 1824, was not only additive to the Imperial patents, but admitted *to be confirmatory of them*, by Barbosa himself, notwithstanding his own spurious decree, nullified by His Imperial Majesty, but afterwards unjustifiably acted upon. (See page 150.)

If I have any claim at all for the numerous and important services which I rendered to Brazil, it is founded *on the original patents* granted to me by His Imperial Majesty, without limitation as to time, which I solemnly declare was not even mentioned—much less stipulated—as the patents themselves prove. The decree awarding me half pay as a pension, "in case *I did not choose* to continue in the service," has no reference to me. I never left the service, but—as even admitted by Gameiro, in his negotiations with Lieutenant Shepherd—was most unjustifiably, and by wilful falsehood, *turned out of it*, in order to rid the administration of my claims on a hundred and twenty ships, and a vast amount of valuable property captured in lawful warfare, under the express directions of His Imperial Majesty.

Why also is no compensation awarded to me for my extra-official services in putting down revolution in the Northern provinces—an act, or series of acts—in my estimation, of far greater importance and difficulty than the expulsion of the Portuguese fleet and army? Every historian of Brazil has spoken in high praise of my execution of this almost impracticable task—but coupled with the infamous lie derived from the Government that, for my own personal benefit, I robbed the Treasury at Maranham of 106,000 dollars; though in the concluding chapter *I will print*

in full the receipt of every officer under my command for his share of the money returned by the Junta, the original receipts being now in my possession for the inspection of the Brazilian Government, or of any commission or persons it may choose to appoint for that purpose. Were these services nothing, just as half the Empire had declared itself Republican? Was my refusal to accept a bribe of 400,000 dollars from the revolutionary president of Pernambuco the act of a man who would afterwards conduct himself as has been falsely imputed to me? The Brazilian Government cannot refuse to inspect or authorise the inspection of the originals of documents contained in this narrative, and if they consent, I have no fear but that the national honour will yet do me justice.

It is not justice to have awarded to me the above-named pension merely —even on the assumption of the Commissioners that I did leave the service of my own accord—for that sum is *less than one half the simple interest* of the amount of which for thirty years I was, even by their own admission, unjustly deprived. This may be a cheap way of liquidating obligations, but it is not consistent with the honour of a nation thus to delay its pecuniary obligations, and then *pay the principal with less than half the interest*! I feel certain that when making an award—which they admit could not be avoided—the Commissioners inadvertently lost sight of this obvious truth.

Let me refer the Brazilian Government to the officially recorded opinions of honourable men on the Commission, or "*Seccoes*," when commenting upon this very inadequate reward about to be given after the lapse of thirty years of unmerited obloquy, which would have sunk any man unsupported by the consciousness of rectitude to a premature grave.

> Senor Alvez Bhanco E Hollanda declared that "as a commemoration of the benefits which Brazil had derived from Lord Cochrane, there was no other conclusion than that *he ought to be paid*

the whole sum which he claimed, for which the 'Assemblea Geral' should ask a credit."

Senor Hollanda Cavalcante, in taking into account the requisition of Lord Cochrane, was "altogether of the opinion expressed by Senor Alvez Branco—that his Lordship as well as others should have the whole amount claimed."

Viscount Olinda, in the Council of State, gave his opinion that "Lord Cochrane shall be paid the various demands he has made. He repeated his opinion that this course alone was consistent with the dignity of the Government, or the services of the Admiral. He (Viscount Olinda) well remembered the great services of Lord Cochrane, and these ought not to be depreciated by paltry imputed omissions. It appeared to him little conformable to the dignity of Brazil, to enter, at this distance of time, into questions of money with one to whom they owed so much."

Viscount Parana "was of opinion that *no responsibility for captures rested on the officers who had made them, they acting under the orders of the Government, which took the responsibility on itself*. Justice demanded this view of the matter, and even the acquittal of many of the prizes might be attributed to *a change of Ministerial policy*."

Senor Aranjo Vicuna. "There is no necessity for continuing the suspension of Lord Cochrane's pay. It ought to be paid as remuneration for important services, the benefits whereof were not diminished by any subsequent conduct on the part of His Lordship."

"It was the opinion of the Council that Lord Cochrane's pension ought to be paid, notwithstanding any question as to the limitation of

prizes, or any defects in the prize accounts."—*Correio Mercantil*, Aug. 29, 1854.

Yet notwithstanding these expressions of opinion, less than half the interest of even the limited sum admitted to be due to me was awarded.

The Commissioners admit in the preceding Report that *my speedy annexation of the Portuguese provinces was unexpected*, and this alone should have made them pause ere they awarded me less than half the interest of my own money, withheld for 30 years—themselves retaining the principal—the amount received, being, in reality, insufficient to liquidate the engagements which I had of necessity incurred during the thirty years of neglect to satisfy my claims—now admitted to be beyond dispute. Their admission involves the fact that the "*unexpected*" expulsion of the Portuguese fleet and army *saved Brazil millions of dollars in military and naval expeditions* against an organised European power, which only required time to set at complete defiance any efforts which Brazil herself was in a condition to make. It was, in fact, a question of "*speedy*" annexation, or no annexation at all, and it was this consideration which impelled me to the extraordinary measures adopted for the intimidation of the enemy, in the absence of means for their forcible expulsion. But is it generous to reward a service of such admitted importance, by giving me less than half the interest of a sum—acknowledged as a right which could no longer be withheld?

Is it not ungenerous to exclude me from my share of the prize-money taken in the first expedition, though a prize tribunal is at this moment sitting in Rio de Janeiro to consider the claims of officers and men, nine-tenths of whom are dead? Is it not ungenerous to have engaged me in the extra-professional service of putting down revolution and anarchy in the Northern provinces, and when the mission was successfully accomplished, to have

dismissed me from the Imperial service without one expression of acknowledgment or the slightest reward?

But to put generosity out of the question—is it wise so to do? That, says Burke—"can never be politically right which is morally wrong." Brazil, doubtless, expects other nations to keep faith with her, and it is not wise on her part to afford a precedent for breaking national faith. The *Amazon* is a rich prize, and may one day be contested. What reply would Brazil give to a power which might attempt to seize it, under the argument that she broke faith with those *who gave her the title to this, the most magnificent river on the face of the earth*, and that therefore it was not necessary to preserve faith with her? It would puzzle Brazilian diplomatists to answer such a question.

From what has been adduced in this volume, it must be clear to all who have perused it with ordinary attention that Brazil is to this day in honour bound to fulfil the original stipulations solemnly entered into with me, and twice guaranteed under the Imperial sign manual, with all the official ratifications and formalities usual amongst civilized states. This *I claim individually*; and further—*conjointly with the squadron*—my share of the prize-money conceded to the captors by Imperial decree, without which customary incentive neither myself, nor any other foreign officer or seaman, would have been likely to enter the service. My *individual claim*, viz. the pay stipulated in the Imperial patents, was agreed upon without limitation as to time, as is clear from the expression that I should receive it whether "afloat or ashore," "*tanto em terra como no mar*," *i.e.* whether "actively engaged or not"—whether "in war or peace." I have committed no act whereby this right could be cancelled, but was fraudulently driven from the Imperial service, as the shortest way of getting rid of me and my claims together. These are no assertions of mine, but are the *only possible*

deductions from documents which have one meaning, and that incontestible.

I claim, moreover, the estate awarded to me by His Imperial Majesty, with the double purpose of conferring a mark of national approbation of my services, and of supporting the high dignities to which—with the full concurrence of the Brazilian people and legislature—I was raised as a reward for those services, the magnitude and importance of which were on all hands admitted. To have withheld that estate, after the reasons assigned by His Imperial Majesty for conferring it, was a national error which Brazil should not have committed, and which it should, even now, be careful to efface; for by approving the dignities conferred, and withholding the means of supporting them, it has pronounced its highest honours to be worthless, empty sounding titles, lightly esteemed by the givers, and of no value to the recipient. Had this estate cost anything to the Brazilian nation, a miserable economy might have been pleaded as a reason for withholding it; but even this excuse is wanting. Any territorial grant to myself could only have been an imperceptible fraction of the vast regions, which, together with an annual revenue of many millions of dollars—my own exertions, *without cost to the Empire*, had added to its dominions "*unexpectedly*" as the Commission appointed to investigate my claim felt bound to admit. If Brazil value its national honour, that blot upon it should not be suffered to remain.

With regard to the sum owing to me by Chili, for which, in the event of its non-payment, both His Imperial Majesty Don Pedro I. and his Minister José Bonifacio de Andrada made the Brazilian nation responsible. The discussion in the National Assembly testifies to the validity of the claim, which therefore rests upon the generosity no less than the good faith of Brazil, for whose interests, in accordance with the most flattering promises, I was induced to quit Chili. To this day, Chili has not fulfilled her obligations to me; the miserable pittance of £.6000, which—by some

process I do not now care to inquire into, she has fixed upon as ample remuneration for one who consolidated her liberties and those of Peru, supporting her navy at its own expense during the operation—constituted no part of my admitted claim for the capture of Valdivia and other previous services, involving no dispute. Payment of this sum (67,000 dollars) was promised at the earliest possible period by the then Supreme Director of the Republic—but to this day the promise has never been redeemed by succeeding Chilian Governments. With regard to this claim, founded on the concessions of His late Imperial Majesty and his Minister, I am content, as before said, to leave the matter to the generosity of the Brazilian nation. The other, and more important claims, I demand as a right which has never been cancelled, and which a strict sense of national honour ought not longer to evade. If it be evaded, the documentary history of the whole matter is now before the world—and let the world judge between us. I have no fears as to its decision.

CHAPTER XIV.

PROCLAMATION FOR PAYMENT OF OFFICERS AND MEN—LOG EXTRACTS IN PROOF THEREOF—THE SUM GIVEN UP TO THE SQUADRON DISBURSED—DENIAL THEREOF BY THE BRAZILIAN GOVERNMENT—THOUGH MADE TO SERVE AS ADVANCE OF WAGES—THE AMOUNT RECEIVED AT MARANHAM FULLY ACCOUNTED FOR—BY THE RECEIPTS OF THE OFFICERS—OFFICERS' RECEIPTS—EXTRACTS FROM LOG IN FURTHER CORROBORATION—UP TO MY ARRIVAL IN ENGLAND—ALL OUR PRIZES MONOPOLIZED BY BRAZIL—THE CONDUCT OF THE BRAZILIAN GOVERNMENT UNJUSTIFIABLE.

The whole dispute raised by the Brazilian Administration as a pretext for evading my claims, has been—as the reader is now aware—about the sum of 200,000 dollars, *given out of the proceeds of our own captures, which cost nothing to the Government; but were made to serve as a substitute for the usual advance of wages!* Also about 40,000 dollars ordered by His Imperial Majesty as compensation for the *Imperatrice* frigate, captured by Captain Grenfell at Parà—but *never paid*, and therefore never accounted for. Finally, with regard to 106,000 dollars reimbursed by the authorities of Maranham, as a compromise for four times the amount generously surrendered by the squadron to the necessities of the province in 1823—on promise of repayment. As regards the whole of the sums, it is alleged that *I never furnished accounts of their expenditure, and therefore they are charged against me, as though not expended at all.*

For the disbursement of the first item of 200,000 dollars, I have already stated sufficient to satisfy any reasonable person. The accounts set forth at

page 169, shews that a balance remained in hand from the 200,000 dollars put on board at Rio de Janeiro, of 39,538 dollars. I shall now state what became of this sum. And first let me adduce the following proclamation:—

By His Excellency the Marquis of Maranhaõ, First Admiral, &c. &c.

WHEREAS, many officers and seamen are here employed who were not present, last year, at the capitulation of the hostile authorities, and seizure of Portuguese funds and property at Maranhaõ;

And whereas it is condusive to the interests of His Imperial Majesty, that all those officers and seamen who have now contributed to the restoration of tranquillity, good order, and obedience to His Imperial Majesty, shall receive encouragement and reward;

It is hereby directed that three months additional pay shall, without deduction, be distributed *as a gratuity* to the said officers and men.

Given under my hand, this 8th day of February, 1825,

I had, it is true, no authority for making this extra payment, but at the same time, I had the authority of His Imperial Majesty to devote the 200,000 dollars to the good of the service—thus clearly leaving its disbursement to my discretion; and this appeared to me to be properly exercised in rewarding those who had been performing double duty afloat and ashore, in the arduous task of putting down, and keeping down revolt and anarchy. On this principle, I had previously doubled the pay of some of the officers, without whose incessant exertion, I could not have effected the tranquillization of the province. It is true that the principle adopted was

opposed to that pursued by the Administration, viz. neither to acknowledge these extra services nor reward them; but such a course neither accorded with my judgment nor discretion. The sums paid as above were entered in the usual manner in a pay book, acknowledged by the signatures of the recipients—attested by the officers—and, as has been said, duly forwarded to the Imperial Government.

I shall now give some extracts from the log before quoted in reference to these and other transactions:—

> *January 5th*, 1825. His Lordship left at Hesketh's his last two months' pay, received this month, and also two months' pay for Captain Crosbie. Paid other officers and men two months' pay.
>
> *6th*. Employed in sorting the paper money in the small iron chest. *Found its contents to be only* 16,000 dollars. (This was all that now remained of the 200,000 dollars received at Rio de Janeiro.)
>
> *8th*. Officers having been paid, the men received to-day two months' pay.
>
> *9th*. Admiral took to Hesketh's three bags of dollars (Each containing 1000 dollars, the remainder of money which I had brought from Chili, and which therefore had nothing to do with the Brazilian Government).
>
> *February 10th*. Paid third payment of prize-money to Clewley, Clare and January.
>
> *11th*. Paid prize-money to March and Carter.
>
> *26th*. Paid Lieutenant Shepherd 1,500 dollars.

28th. Paid Commissary, Escrivaõ, and Pilot.

March 1st. Paid Portuguese Doctor.

3rd. Paid Corning's account for ship provisions.

The above payments, with others disbursed in pursuance of my proclamation, were all made out of the balance of the 200,000 dollars aforesaid, and 40,000 dollars which had been in my possession ever since the capture of Maranham; the latter being the amount which I had refused to give up to the prize tribunal at Rio de Janeiro, well knowing that it would be returned to their Portuguese friends and connections. When these payments were made, a few hundred dollars alone remained. As this 200,000 dollars was the indisputable property of the squadron before it was assigned for distribution amongst those to whom it belonged—on this ground alone it scarcely became the Government to raise doubts about its proper application; for they well knew that if it were not distributed, the fact could not be concealed from the officers and men, who would not have submitted quietly to my retention of their money, as has been shamelessly imputed to me. Not only was the whole disbursed—but the accounts, as has been stated, were faithfully transmitted to the Brazilian authorities at Rio de Janeiro, as appears by Captain Shepherd's receipt, adduced in the present volume, and years ago photographed, and transmitted with a memorial to the Brazilian Government, which, nevertheless, on the 28th of April, *in the present year*, published in its official organ, the *Correio Mercantil*, a report on the prizes made during the war of independence—excluding me from a share, on *the ground of not having delivered my accounts*. The following is an extract:—

> (After enumerating the prizes, and estimating their gross value at 521,315 dollars—*not one-fourth of the real amount*—the Commission goes on to say:—)

Referring to what has been stated, it appears that the First Admiral and Commander-in-Chief of the Squadron from its commencement to the conclusion of the war, *had a right to his share of all prizes*—and so the Commission has judged in regard to the total value, amounting to the said sum of 521,315 milreis up to the 12th of February, 1824. *From that sum, however, must be deducted 200,000 dollars given to the Admiral on account of prize-money for distribution, which it does not appear by any document that he made*. It also appears by the report of the Junta of Maranhaõ, of the 17th of October, 1825, that the said Admiral received the further sum of 217,659 dollars at different times, there appearing 108,736 dollars under the title of indemnification for prizes made by the squadron in the port of that city, to be divided as such. *This division does not seem to have been made*.

From this it appears that the said Admiral must be charged as having received the sum of 308,238 dollars on account of prizes to be divided amongst the squadron; with the addition of 40,000 dollars which he received also by decree of the 23rd of February, to be, in like manner, divided amongst those who co-operated in the annexation of the province of Maranhaõ, and the capture of the frigate *Imperatrice—seeing that there is no evidence that such distribution took place*—thus increasing the sum due to 348,238 dollars, of which the said claimant is bound to give account to the Imperial Government.

In consequence of the determination of the Regulations let this decree be printed and published.

Rio, April 21, 1858.

(Signed) JOAQUIM JOSÉ IGNACIO,
Chefe de esquadra, President.

ANTONIO JOSÉ DA SILVA,
Contador da Marinha.

JOSÉ BAPTISTA LISBOA,
Auditor e Secretario.

This document, so recently promulgated, after the decision of the *Seccoes* in 1854, and the expression of opinion given by the most eminent men of Brazil (see page 282), that I ought to have the whole of my claims—is really wonderful. But the false assertions it contains must be met.

And first—the receipt of the 40,000 dollars for the *Imperatrice*, I altogether deny, and can be easily convicted of untruth if my receipt for that sum can be produced. It is worthy of note, that the date of the decree for the payment of this sum is carefully given in the preceding document, but the data of my acknowledgment of having received is annulled for the sufficient reason that no acknowledgment was ever given. The 200,000 dollars, I trust that I have sufficiently accounted for, as well as for the vouchers sent to Rio by Captain Shepherd, whose receipt I took for the chest containing them. But the 200,000 dollars with which the Government charges me—even supposing the accounts to be lost—destroyed—or purposely made away with—was not the property of the Brazilian Government, but of the squadron, who received it only as part payment of ten times the amount due to them! This sum though the property of the squadron, was made to serve *as an advance of wages*, no less than as prize-money; and does the Brazilian Government imagine that any squadron could be sent to sea without money? Or that any reader of common sense will acquiesce in the assertion that under such circumstances it was not properly disbursed, even though I had not shewn *its precise disbursement*?

The Brazilian Government well knows that the men composing the squadron were of so mutinous a character, that the slightest deviation from their rights would have been met with instant insubordination. Did this ever occur, even in the slightest possible degree? It is no fault of mine, if the accounts were destroyed, as I have no doubt they were, from pure malice towards myself, in order to bring me into an amount of disrepute, which might justify the withholding of my claims according to the stipulations of the Imperial patents. By whom this infamy was perpetrated, it is impossible for me to say—but that it was perpetrated—there cannot be the smallest possible doubt.

It is altogether unnecessary to say another word about the 40,000 dollars for the *Imperatrice*, or the 200,000 dollars for distribution—as the evidence adduced is sufficient to satisfy any man not determined to be unconvinced.

I now come to the amount alleged to have been received from the Junta of Maranham, viz. 217,659 dollars, "at different times," which I have no doubt is perfectly correct, though that portion of it under the title of "indemnification for prizes"—is incorrect, the amount being 106,000 dollars—*minus* the discount, and not 108,736 dollars as represented. The difference is not, however, worth notice. Deducting this sum from the total of 217,659 dollars, would leave 108,923 dollars to be accounted for otherwise than as "indemnifieation." This also is, no doubt, correct. The inhabitants of Maranham cheerfully agreed *to pay and subsist the squadron*, provided it remained amongst them to preserve the order which had been restored, and the offer was accepted by me. The 108,923 dollars thus went for the pay and subsistence of the squadron during many months of disturbance; and if it prove any thing, it is the economy with which the wants of the squadron were satisfied, despite the corruption of the authorities, in paying double for provisions, because the merchants could only get paid at all, except by bribes to their debtors. Does the Brazilian

Government mean to tell the world that it sent a squadron to put down revolution in a territory as large as half Europe, *without receiving a penny in the shape of wages*, except their own 200,000 dollars of prize-money—that it never considered it necessary to send to the squadron a single dollar of pay whilst the work was in process—and that it now considers it just to charge the whole expenses to me as Commander-in-Chief, though the expedition did not cost the Government any thing? Yet this is precisely that which the Brazilian Administration has done—with what justice let the world decide. I aver that the accounts were faithfully transmitted. The Imperial Government of the present day, says that the accounts are not in existence—*not that I did not transmit them*! Surely they ought to blame their predecessors, not me. Let this history decide which of the two is deserving of reprobation.

I now come to the 108,736 dollars—or rather 106,000 dollars received from the Junta of Maranham as "indemnification,"—respecting which the Commission unjustly asserts that "*no division appears to have been made!*" The untruth of this imputation, the most atrocious of all, is very easily met *by the publication of every receipt connected with the matter*; and to this I now proceed, requesting the reader to bear in mind that in my letter to the Minister of Marine (see page 209), I announced my intention of retaining for my own justification all *original documents*, sending to the Government, copies or duplicates. The whole of the subjoined receipts are now in my possession, and I demand from the Brazilian Government their verification, by its Ministerial or Consular representatives in Great Britain.

RECEIPTS OF OFFICERS,

And others for their proportion of 106,000 dollars paid by the Junta of Fazenda of Maranham in commutation of 425,000 dollars—the value of prize property left for the use of the Province on its

acquisition from Portugal in 1823; the duplicates having been sent by me to the Imperial Government, the originals now remaining in my possession.

5,000 000.

Received from the Right Hon. Lord Cochrane, Marquis of Maranhaõ, and Commander-in-Chief of the Imperial Armada, the sum of five thousand milreis, being four thousand one hundred and thirty-seven, or one-third of the Admiral's share of prize-money; and eight hundred and sixty three to account of double pay for services on shore.

DAVID JOWETT,

Maranhaõ, 19th March, 1825. Chief of Division.

* * * * *

Received of the Right Hon. Lord Cochrane, Marquis of Maranhaõ, First Admiral of Brazil, and Commander-in-Chief of the Naval Forces of the Empire, the sum of five hundred milreis, as a recompence for extra services as Commandant-Interim of His Imperial Majesty's ship *Piranga*, during the absence of Chief of Division Jowett, on service on shore at Maranhaõ during four months past.

March 32nd, 1825. JAMES WALLACE.

Witness, W. JACKSON.

* * * * *

Received this 18th day of March, 1825, of the Right Hon. Lord Cochrane, Marquis of Maranhaõ, First Admiral of Brazil, and Commander-in-Chief of the Naval Forces of the Empire, the sum of ten thousand milreis, on account of a distribution of eighty contos of reis, being part of certain monies received from the Junta of Fazenda of Maranhaõ.

T. SACKVILLE CROSBIE.

Rs. 10,000 000.

* * * * *

5,000 000.

Received of the Right Hon. Lord Cochrane, Marquis of Maranhaõ, First Admiral and Commander-in-Chief of the Naval Forces of the Empire, the sum of five thousand milreis, being the amount of additional pay to all the subordinate officers and seamen of His Imperial Majesty's ship *Piranga*, who have served on shore at Maranhaõ, between the 18th day of November, 1824, and the 14th day of March, 1825.

DAVID JOWETT,

Chief of Division, Commandant of the *Piranga*.
Maranhaõ, 20th March, 1825.

* * * * *

Received this 18th day of March, 1825, of the Right Hon. Lord Cochrane, &c. &c. the sum of one thousand five hundred milreis, on account of a distribution of eighty contos of reis, being part of certain monies received from the Junta of Fazenda at Maranhaõ.

W. JACKSON, *Rs.* 1,500 000. Capt.-Lieut. and Secretary.

Received this 21st day of March, 1825, of the Right Hon. Lord Cochrane, Marquis of Maranhaõ, &c. &c. the sum of one thousand milreis, on account of an allowance of one-half per cent. for my trouble in the distribution of prize-money.

W. JACKSON, 1,000 000. Capt.-Lieut. and Secretary.

* * * * *

Received this 21st of March, 1825, of the Right Hon. Lord Cochrane, &c. &c. the sum one thousand five hundred milreis, on account of a distribution of eighty contos of reis, being part of certain monies received from the Junta of Fazenda of Maranhaõ.

JA's SHEPHERD,

1,500 000. First Lieut. of *Pedro Primiero.*

* * * * *

Pedro Primiero, March 24, 1825.

Received from the Right Hon. Lord Cochrane, &c. &c. the sum of one thousand milreis, on account of a distribution of eighty contos of reis, being part of certain monies received from the Junta of Fazenda of Maranhaõ.

1,000 000. S.E. CLEWLEY.

* * * * *

Pedro Primiero, March 24th, 1825.

Received from the Right Hon. Lord Cochrane, &c. &c. the sum of one thousand milreis, on account of a distribution of eighty contos of reis, &c. &c.

1,000 000. FRANCIS CLARE.

* * * * *

Naõ Nacional e Imperial,

Pedro Iro, March 24, 1825.

Recebei do Excellentissimo Lord Cochrane, &c. &c. a quartier de hum contos de reis, pro conta de huma divisiaõ de octento contos de reis, senda parte de certos dinheiros recebidos da Junta da Fazenda do Maranhaõ.

FRANCISCO DE PAULO DOS SANTOS GOMEZ.

1,000 000.

* * * * *

OFFICERS' RECEIPTS

Precisely similar receipts, on same date, from the following officers:

FRANCISCO ADEIAO PERA……. 1,000 000

MANOEL S. SINTO …… 500 000

ALEXANDER JOSÉ (remainder illegible) …… 200 000

* * * * *

Received from the Right Hon. Lord Cochrane, &c. &c. the sum of five hundred milreis, on account of a distribution, &c. &c. 500 000. G. MARCH.

* * * * *

Maranhaõ, 24th March, 1825. Received from the Right Hon. Lord Cochrane, &c. &c. the sum of five hundred milreis, on account of a distribution, &c. &c. 500 000. W. JANNARY.

* * * * *

24th March, 1825. Received from the Right Hon. Lord Cochrane, &c. &c. the sum of five hundred milreis, on account of distribution, &c. &c. 500 000. DAVID CARTER, Second Lieut.

* * * * *

Received, April 9th, 1825, of the Right Hon. Lord Cochrane, &c. &c. the sum of one thousand four hundred and eighty milreis, being prize-money due to Capt.-Lieut. G. Manson. For CAPT.-LT. MANSON, 1,480 000. W. JANNARY.

* * * * *

Received of the Right Hon. Lord Cochrane, &c. &c. the sum of one thousand milreis, on account of a distribution of eighty contos of reis, being part of certain monies received from the Junta of Fazenda of Maranhaõ. 1,000 000. GEO. MANSON. April 9, 1825.

* * * * *

Received of the Right Hon. Lord Cochrane, &c. &c. the sum of four hundred and eighty milreis, on account of prize-money due to me. 480 000. GEO. MANSON. Maranhaõ, April 9, 1825.

Authoriso Se José Perea de sua Excellencia Marques do Maranhaõ recober e quantier de quinhentos milreis. March 9th, 1825. (Name illegible.)

500 000.

* * * * *

Maranham, March 3, 1825.

Received of Lord Cochrane, &c. &c. the sum of two thousand six hundred and five milreis, being the amount of my account for provisions supplied to the Brazilian Squadron.

2,605 000. LEONARD COMING.

* * * * *

Received, the 12th of April, 1885, of His Excellency Lord Cochrane, &c. &c. one hundred and ninety-five milreis, being additional pay for extra duty on shore for five months.

Rs. 195 000. G. MARCH.

* * * * *

Received, April 12th, 1825, of His Excellency Lord Cochrane, &c. &c. four hundred and eighty milreis, being additional pay for extra duty as Secretary to His Lordship for the period of five months.

480 000. W. JACKSON.

* * * * *

Received, April 21, 1825, of the Right. Hon. Lord Cochrane, &c. &c. thirty-nine milreis, being a month's additional pay for extra services at Maranham.

39 000. FRANCIS DRUMMOND.

* * * * *

Received, April 21, 1825, of the Right Hon. Lord Cochrane, &c. &c. sixty-nine milreis, being additional pay for sixty days' extra service at Maranham.

69 000. JOSEPH FITZCOSTEN.

* * * * *

Received, April 3rd, of His Excellency the Marquis of Maranhaõ, &c. &c. twenty-three dollars for my services as prize master of the vessels *Dido* and *Joaninho*.

23 000. C. ROSE, Second Lieut.

* * * * *

Received, May 14th, 1825, of Mr. W. Jackson, two hundred and eighty-five milreis, part of prize money due to me.

285 000. JA'S SHEPHERD.

* * * * *

Piranga, Spithead, July 5, 1835.

Received of Mr. W. Jackson, Secretary to His Excellency the Marquis of Maranham, &c. &c. the sum of two hundred and thirty-five pounds sterling, in order to pay the same as prize-money to those persons, late of the *Pedro Primiero*, but now belonging to this frigate, to whom the sum is due. £.235 or 1,175 000.

* * * * *

There is, however, *one omission*. The payment of the crews is not adduced, because the pay books were sent with duplicate receipts to Rio de Janeiro by the *Piranga*. But as no reasonable man will imagine that I publicly paid the officers and *neglected payment to the crews*, the omission is of the least possible consequence. But lest the payment of the crews may be disputed, I subjoin the following extracts from the log before quoted, from the commencement of the payment, to its termination.

DATES AND PARTICULARS.

1825.

March 16th. Received from the Junta of Maranham, 30 contos (£6,000) in bills, and 3 contos (£600) in money.

" 17th. Writing new book of distribution.

" 18th. Captain Crosbie brought 30 contas (£6,000). Went with him to Hesketh's, where I found that he had received 10 contos (£2,000) for himself.

" 19th. Lord Cochrane paid Jowett 5,000 dollars as prize-money and double pay.

" 20th. 5,000 dollars paid to Jowett's officers and men as double pay. Paid March his further share of prize-money, 500 dollars. Took at Admiral's desire 500 dollars for my distribution of the 100 contos in part received—from which it appears that I am to have half per cent, for distribution.

March 22nd. Received two months' pay to the 1st of February. Went on board the *Piranga*, and made Wallace a gratuity from the Admiral of 500 dollars.

" 24th. Paid Shepherd, Clewley, Clare, Commissary, Doctors Escrivaõ, Jannary, and the Pilot, a proportion of 80 contos, in course of payment by the Junta. Went on board the *Piranga*, and paid prize-money to Carter and a number of men.

" 26th. Paying prize-money to such of Jowett's men as were absent on shore on the 24th.

" 27th. Paying prize-money to such of the *Pedro's* people entitled thereto, as are to remain on board that ship.

" 30th. Making book for distribution of double pay to those who have served on shore.

April 6th. Counting out the money for double pay to the men who did shore service.

" 7th. Paid part of the men their additional pay.

" 8th. Paying the additional pay.

" 9th. Paying additional pay. Sent Capt. Manson by January 1480 dollars prize-money.

" 10th. A decree arrives by the _Guarani _from the Imperial Government, directing the Interim President that no money shall be paid to the squadron on account of the taking of Maranham. Admiral suspects Barros to be at the bottom of it.

" 11th. Went on shore with the Admiral, with sixteen bags of dollars, besides Clewley's bag and mine.

" 13th. Paid Inglis and his men additional pay.

" 14th. Admiral proposed to Hesketh to ship cotton to the extent of forty or sixty contos, to which Mr. Hesketh (British Consul) agreed.

" 25th. Remainder of the money from the Junta promised to-morrow.

April 26th. Captain Crosbie received 2,000 dollars as his further share. Received 285 dollars, seventy-six for distribution. More money from the Treasury.

May 5th. Wrote to the Junta, with further demand of 13,000 dollars to make up the stipulated amount.

" 11th. Paying his Lordship's bills.

" 12th. Paying his Lordship's bills.

" 17th. Received my last three months' pay to the 30th of April.

" 18th. Received the remaining money from the Treasury.

" 19th. Sailed in the *Piranga*.

" 20th. Sent sixty dollars by pilot to two soldiers on shore.

June 6th. Captain Crosbie appointed Captain of the Fleet, with rank of Chief of Division.

July 2nd. At Portsmouth. Agent arrived from London with two months' pay.

" 4th. Paying prize-money to men who had not been paid. Received two months' pay to the 1st instant.

" 11th. Paid John Skirr £.10 for wounds.

The amount paid by the Junta was, in fact, 105,800 dollars, partly in bills, from which a discount of 1800 dollars had to be taken. But these trifles are unworthy of notice: I have thus accounted for every shilling received from the Brazilian Government for the use of the squadron—to the satisfaction of

my own conscience, and, I trust, to the satisfaction of all who may read this narrative.

From what has been herein stated, it is obvious that Brazil was, by my instrumentality—though with inadequate means—entirely freed from a foreign yoke, not only without national cost, but with positive gain, arising from the vast territories and revenues annexed—as well as from prizes, the value of which alone exceeded the cost of all naval equipments. It is true that, after a lapse of thirty-five years, a profession is made of adjudicating these prizes—but as nearly all the claimants are dead, and as an intention is manifested to retain my share, unless I produce accounts already transmitted—Brazil will have thus monopolized the fruits of our exertions in the cause of independence—achieved without trouble or thought to the Imperial Government. For, beyond the usual orders on the departure of the squadron, not a single instruction was given—all being left to my discretion, and accomplished on my sole responsibility. Even the favourable contraction of a loan in England—the acknowledgment of Brazilian independence by European states—and the establishment of permanent peace—were the direct consequences of my services, but for which Brazil might still have presented the same lamentable specimen of weakness without, and anarchy within, which forms the characteristics of other South American states.

Can any government then justify the conduct pursued towards me by Brazil? Can any government believe that the promises held out to me as an inducement to accept the command—may be optionally evaded after the more than completion of my part of the contract? The services rendered were fully acknowledged by those with whom that contract was made, and only repudiated by their factions successors, to whom Brazil owed nothing but prospective confusion. Can any one, then, judge otherwise—than that the present Brazilian Government is bound, in honour and good faith, to

fulfil the national contract with me—not only on account of professional services accomplished—even beyond national expectation; but also on account of extra-official services which did not come within the scope of my professional duties, viz. the pacification of the Northern provinces? That the fulfilment of these obligations is due, I once more quote the Imperial invitation to adopt the cause of Brazil:—"*Votre Grace est invitée, pour—et de part le Gouvernement du Brésil, à accepter le service de la nation Brésilienne; chez qui je suis dûment autorisé à vous assurer le rang et le grade nullement inférieur à celui que vous tenez de la République. Abandonnez-vous, Milord, à la reconnaissance Brésilienne;* À LA MUNIFICENCE DU PRINCE; À LA PROBITÉ SANS TACHE DE L'ACTUEL GOUVERNEMENT; ON VOUS FERA JUSTICE; ON NE RABAISSERA D'UN SEUL POINT LA HAUTE CONSIDÉRATION—RANG—GRADE—CARACTÈRE—ET AVANTAGES QUI VOUS SONT DÛS." "VENEZ, MILORD, L'HONNEUR VOUS INVITE—LA GLOIRE VOUS APPELLE. VENEZ, DONNER À NOS ARMES NAVALES, CET ORDRE MERVEILLEUX ET DISCIPLINE INCOMPARABLE DE PUISSANTE ALBION."

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